RULE 7 & 8

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RULE VII - CLASSIFICATION AND GENERAL REQUIREMENTS OF ALL BUILDINGS BY USE OR OCCUPANCY

SECTION 701. Occupancy Classified

1. There are **10 Groups of Occupancies** sub-divided into **25 Divisions**. The accompanying matrix shows the Groupings and Divisions and the corresponding uses. The final column indicates the Zoning Classification.

   a. Buildings proposed for construction shall be identified according to their use or the character of its occupancy and shall be classified as follows:

      i. **Group A** - *Residential Dwellings*

      Group A Occupancies shall include:

      Division 1 - **Residential building**/structure for exclusive use of **single family occupants** including school or company staff housing; single (nuclear) family dwellings; churches or similar places of worship; church rectories; community facilities and social centers; parks, playgrounds, pocket parks, parkways, promenades and play lots; clubhouses and recreational uses such as golf courses, tennis courts, basketball courts, swimming pools and similar uses operated by the government or private individuals as membership organizations for the benefit of their members, families, and guests and not operated primarily for gain.

      Division 2 - **Residential building** for the exclusive use of **non-leasing occupants not exceeding 10 persons** including single-attached or duplex or townhouses, each privately-owned; school dormitories (on campus); convents and monasteries; military or police barracks/dormitories; pre-schools, elementary and high schools, provided that they do not exceed 16 classrooms; outpatient clinics, family planning clinics, lying-in clinics, diagnostics clinics, medical and clinical laboratories; branch library and museums; steam/dry cleaning outlets; party needs and accessories (leasing of tables and chairs, etc.).

ii. **Group B** - *Residentials, Hotels and Apartments*

Group B Occupancies shall be **multiple dwelling units** including boarding or lodging houses, hotels, apartment buildings, row houses, convents, monasteries and other similar building each of which accommodates more than 10 persons.

iii. **Group C** - *Education and Recreation*

Group C Occupancies shall be **buildings used for school or day-care purposes**, involving assemblage for instruction, education, or recreation, and not classified in Group I or in Division 1 and 2 or **Group H Occupancies**.

iv. **Group D** - *Institutional*

Group D Occupancies shall include:

Division 1 - Mental **hospitals**, mental sanitaria, jails, prisons, reformatories, and buildings were personal liberties of inmates are similarly restrained.

Division 2 - **Nurseries** for full-time care of children under kindergarten age, hospitals, sanitaria, nursing homes with non-ambulatory patients, and similar buildings each accommodating more than five persons.

Division 3 - **Nursing homes** for ambulatory patients, homes for children of kindergarten age or over, each accommodating more than five persons: Provided, that **Group D Occupancies** shall **not** include buildings used only for private or family group dwelling purposes.

v. **Group E** - *Business and Mercantile*

Group E Occupancies shall include:

Division 1 - Gasoline **filling and service stations**, storage garages and boat storage structures where no work is done except exchange of parts and maintenance requiring no open flame, welding, or the use of highly flammable liquids.

Division 2 - **Wholesale and retail stores**, **office buildings**, drinking and dining establishments having an occupant load of less than one hundred persons, printing plants, police and fire stations, factories and workshops using not highly flammable or combustible materials and paint stores without bulk handlings.

Division 3 - **Aircraft hangars** and **open parking garages** where no repair work is done except exchange of parts and maintenance requiring no open flame, welding or the use of highly flammable liquids.

vi. **Group F** - *Industrial*

Group F Occupancies shall include: ice **plants**, power plants, pumping plants, cold storage, and creameries, factories and workshops using incombustible and non-explosive materials, and storage and sales rooms for incombustible and non-explosive materials.

vii. **Group G** - *Storage and Hazardous*

Groups G Occupancies shall include:

Division 1 - **Storage** and handling of hazardous and highly flammable material.

Division 2 - **Storage** and handling of flammable materials, dry cleaning plants using flammable liquids; paint stores with bulk handling, paint shops and spray painting rooms.

Division 3 - Wood working establishments, planning mills and box factories, shops, factories where loose combustible fibers or dust are manufactured, processed or generated; warehouses where highly combustible materials is stored.

Division 4 - Repair **garages**.

Division 5 - Aircraft **repair hangars**.

viii. **Group H** - *Assembly Other Than Group I*

Group H Occupancies shall include:

Division 1 - **Any assembly building** with a stage and an occupant load of less than 1000 in the building.

Division 2 - **Any assembly building** without stage and having an occupant load of 300 or more in the building.

Division 3 - **Any assembly building** without a stage and having an occupant load of less than 300 in the building.

Division 4 - **Stadia**, reviewing stands, amusement park structures not included within Group I or in Division 1, 2, and 3 of this Group.

ix. **Group I** - *Assembly Occupant Load 1000 or More*

Group I Occupancies shall be any assembly building with a stage and an occupant load of 1000 or more in the building.

x. **Group J** - *Accessory*

Group J Occupancies shall include:

Division 1 - **Agricultural** structures.

Division 2 - Private **garages**, carports, fences over 1.80 meters high, tanks, swimming pools and towers.

Division 3 - **Stages**, platforms, pelota, tennis, badminton or basketball courts, tombs, mausoleums, niches, aviaries, aquariums, zoo structures, banks and record vaults

Other subgroupings or divisions within **Groups A to J** may be determined by the Secretary. Any other occupancy **not** mentioned specifically in this Section, or about which there is any question, shall be included in the Group which it most nearly resembles based on the existing or proposed life and fire hazard.

(emphases supplied)

Table VII.1. Schedule of Principal, Accessory and Conditional Use/Occupancy of Building/Structure

General USE Character of Occupancy of Building/ Structure	U S E			Zoning Classification
	PRINCIPAL	**ACCESSORY**	**CONDITIONAL**	
Group A – Residential (Dwellings)				
Division A-1 (**Residential building**/ structure for exclusive use of **single family occupants**)	1. Indigenous family dwelling units 2. Single-detached units 3. School or company staff housing 4. Single (nuclear) family dwellings 5. Churches or similar places of worship 6 Church rectories 7. Community facilities and social centers 8. Parks, playgrounds, pocket parks, parkways, promenades and playlots	1. Customary accessory uses incidental to any of the principal uses housed in the same Division A-1 (or R-1 class) building/structure, provided that such accessory uses shall not include any activity conducted for monetary gain or commercial purposes such as servants quarter, private garage, guardhouse, home laundries, non-	1. Preparatory schools, provided that they do not exceed three (3) classrooms and shall be located not less than 500 meters from nearest existing school offering similar course and are equipped with adequate parking or as provided in the local zoning ordinance. 2. Boarding houses with no more than eight (8) boarders.	Residential **R-1** - a **low-density residential** zone, characterized mainly by single-family, single detached dwellings with the usual community ancillary uses on a neighborhood scale, such as executive subdivisions and relatively exclusive residential communities which are not subdivisions.

	9. Clubhouses and recreational uses such as golf courses, tennis courts, basketball courts, swimming pools and similar uses operated by the government or private individuals as membership organizations for the benefit of their members, families, and guests and not operated primarily for gain.	commercial garages, houses for pets such as dogs, birds, rabbits and the like of not more than 4.00 sq. meters in floor area, pump houses and generator houses. 2. Auxiliary uses customarily conducted in dwellings and homes for the practice of one's profession such as offices of physicians, surgeons, dentists, architects, engineers, lawyers and other professionals provided that such professionals are members of the family residing in the premises; provided further, that not more than three (3) semi-professional assistants are employed at any time, that in no case that more than 20% of the floor area of the building be used for said professional practice or home occupation for engaging an in-house business such as dressmaking, tailoring, baking and the like, provided that the number of persons engaged in such business/industry shall not exceed five (5), inclusive of the owner; there shall be no change in the outside appearance of the building or premises; no home occupation	3. Neighborhood convenience stores selling miscellaneous items, provided that such stores shall not exceed 10% of the gross floor area (GFA) of the dwelling unit and provided that no liquor shall be allowed for sale. 4. Audio-video and computer rental shops, provided that such shops shall not exceed 10% of the total floor area of the dwelling unit. 5. Home occupation engaging in an in-house business such as dressmaking, tailoring, and baking, provided that the area used shall not occupy more than 20% of the total floor area of the dwelling unit; the number of persons engaged in such business/industry shall not exceed three (3) inclusive of the owner; there shall be no change in the outside appearance of the building/structure or premises; no home occupation shall be conducted in any customary accessory use; no traffic shall be generated by such home occupation in greater volume than would normally be expected in a residential neighborhood and	

		shall be conducted in any customary accessory uses cited above; no traffic shall be generated by such home occupation in greater volume than would normally be expected in a residential neighborhood and any need for parking generated by the conduct of such home occupation shall be met off the street and in a place other than in a required front yard; no equipment or process shall be used in such home occupation which	any need for parking generated by the conduct of such home occupation shall be met off the street and in place other than in a required front yard; no equipment or process shall be used in such home occupation which creates noise, vibration, glare, fumes, odors or electrical interference detectable to the normal senses and visual or audible interference in any radio or television receivers or causes fluctuation in line voltage of the premises. 7. Home industry classified as cottage industry provided that such home industry shall not occupy more than	
		creates noise, vibration, glare, fumes, odors or electrical interference detectable to the normal senses and visual or audible interference in any radio or television receivers or causes fluctuation in line voltage of the premises. 3. Home industry classified as cottage industry provided that such home industry shall not occupy more than 30% of the floor area of the dwelling unit; there shall be no change or alteration in	30% of the gross floor area (GFA) of the dwelling unit with employees not to exceed five (5) persons and shall have no change or alteration in the outside appearance of the dwelling unit and shall not be a hazard/nuisance; allotted capitalization shall not exceed the capitalization as set by the Department of Trade and Industry (DTI); no home industry shall be conducted in any customary accessory use; no	

		the outside appearance of the dwelling unit and shall not be a hazard/nuisance; allotted capitalization shall not exceed the capitalization as set by the Department of Trade and Industry (DTI); shall consider same provisions as enumerated in number 2, Profession or Home Occupation, this Section. 4. Recreational facilities for the exclusive use of the members of the family residing within the premises, such as swimming pool, pelota court, etc. 5. Religious use 6. Multi-purpose/*Barangay* Hall	traffic shall be generated by such home industry in greater volume than would normally be expected in a residential neighborhood and any need for parking generated by the conduct of such home occupation shall be met off the street and in a place other than in a required front yard; no equipment or process shall be used in such home industry which creates noise, vibration, glare, fumes, odors or electrical interference detectable to the normal senses and visual or audible interference in any radio or television receivers or causes fluctuation in line voltage of the premises.	
		7. Pre-School 8. Sports club 9. Clinic, nursing and convalescing home, health center 10. Plant nursery		
Division A-2 (**residential building** for the exclusive use of **non-leasing**	1. Single-attached or duplex or town-houses, each privately owned 2. School dormitories (on campus) 3. Convents and monasteries 4. Military or police barracks/	1. Customary incidental home occupations such as barber and beauty shops, tailoring and dress shops, neighborhood convenience stores, retail drug stores	1. Ballet, dance and voice studios provided that the classes or instructions are held in soundproofed and airconditioned buildings	Residential **R-2** - a **medium density residential** use or occupancy, characterized mainly as a low-rise single-attached, duplex or multi-level

occupants not exceeding 10 persons)	dormitories 5. All uses allowed in Division A-1 (or for R-1 class) buildings/structures 6. Pre-schools, elementary and high schools, provided that they do not exceed sixteen (16) classrooms 7. Outpatient clinics, family planning clinics, lying-in clinics, diagnostic clinics, medical and clinical laboratories 8. Branch library and museum 9. Steam/ dry cleaning outlets 10. Party needs and accessories (leasing of tables and chairs, etc.)		2. Sanitaria, nursery or convalescent homes 3. Philanthropic or charitable institutions upon approval of the Building Official and subject to such conditions and safeguards as deemed appropriate 4. Offices with no actual display, sale, transfer, or lending of the office commodities in the premises and with subject gross floor area (GFA) not exceeding 30% of the building GFA 5. Apartment hotels/hometels 6. Processing, refilling and retailing of bottled drinking water provided that clearances from local health department and certification of adequate supply from the water supply concessionaire shall be secured.	building/ structure for exclusive use as multiple family dwellings. This includes **R-2** structures within semi-exclusive subdivisions and semi-exclusive residential communities which are not subdivisions. There shall be two (2) general types of **R-2** use or occupancy, to wit: a. Basic **R-2** : single-attached or duplex building/structure of from one (1) storey up to three (3) storeys in height and with each unit for separate
			7. Home occupation for the practice of one's profession or for engaging in an in-house business such as dressmaking, tailoring, baking, barber and beauty shops and the like, provided that the area in use shall not exceed 30% of the gross floor area (GFA) of the dwelling unit with the number of persons engaged in such	use as single-family dwellings and; b. Maximum **R-2** : low-rise multi-level building/structure of from three (3) up to five (5) storeys in height and for use as multiple family dwellings

			business/industry not exceeding ten (10) inclusive of owner; there shall be no change in the outside appearance of the building or premises, no home occupation shall be conducted in any customary accessory use; no traffic shall be generated by such home occupation in greater volume than would normally be expected in a residential neighborhood and any need for parking generated by the conduct of such home occupation shall be met off the street and in a place other than in a required front yard; no equipment or process shall be used in such home occupation which creates noise, vibration, glare, fumes, odors or electrical interference detectable to the normal senses and visual or audible interference in any radio or television receivers or causes fluctuation in line voltage of the premises. 8. Car barns for not more than three (3) units. 9. LPG retailing with a maximum of twenty (20) units of LPG tanks at any given time	

			10. Recreational facilities such as resorts, swimming pools, clubhouses and similar uses except carnivals and fairs 11. Bank branches, savings/ loans/lending shops. 12. Driving range	
Group B – Residential (Buildings/ Structures, Hotels and Apartments)				
Division B-1	1. All uses permitted in Divisions A-1 and A-2 (or for R-1 class and R-2 class) buildings/structures 2. Leased single-detached dwelling unit, cottage with more than one (1) independent unit and duplexes. 3. Boarding and lodging houses	1. All customary accessory uses allowed in Divisions A-1 and A-2 (or for R-1 class and R-2 class) buildings/ structures 2. Branch library and museum 3. Hometel 4. Vocational school	1. All conditional uses in R-1 and R-2 with appropriate regulations	Residential **R-3** - a high-density residential use or occupancy, characterized mainly as a low-rise or medium-rise building/ structure for exclusive use as multiple family dwellings with mixed housing types. **R-3** structure may include **low-rise or medium-rise residential**
	4. Multiple-housing units for lease or still for sale 5. Townhouses, each privately owned 6. Boarding houses 7. *Accessorias* (shop-houses), rowhouses, townhouses, tenements and apartments 8. Multiple privately-owned condominium units or tenement houses (residential building for the exclusive use of non-leasing			**condominium buildings** that are already commercial in nature and scale. There shall be two (2) general types of **R-3** use or occupancy, to wit: a. Basic **R-3** : **rowhouse building**/structure of from one (1) storey up to three (3) storeys in height and with each unit for separate use as single-family

	occupants not exceeding ten (10) persons and of low—rise type (up to five (5) storeys maximum building height) 9. Hotels, motels, inns, pension houses and apartels 10. Private or off-campus dormitories. 11. Elementary schools and high schools, provided that these will not exceed twenty (20) classrooms			dwellings; and b. Maximum **R-3** : **medium-rise multi-level building**/ structure of from six (6) up to twelve (12) storeys in height and for use as multiple family dwellings. Residential **R-4** - a **medium to high-density residential** use or occupancy, characterized main-ly as a low-rise townhouse building/ structure for exclusive use as multiple family dwellings. The term **R-4** specifically refers to the building/structure on an
				individual lot (a **townhouse unit**) and generally refers to the series or rows of **R-4** buildings/structures within a subdivided lot or property (an **R-4** development).
	1. Multi-family residential buildings such as condominium, high-rise residential buildings/structures, multi-level apart-ments, tenements, mass housing, etc. taller than five (5) storeys but not more than twelve (12) storeys			Residential **R-5** - a very high-density residential use or occupancy, characterized mainly as a **medium-rise or high-rise condominium building**/structure for exclusive use as **multiple family dwelling**.

Group C – Education and Recreation				
Division C-1	1. Educational institutions like schools, colleges, universities, vocational, institutions, seminaries, convents, including school auditoriums, gymnasia, reviewing stands, little theaters, concert halls, opera houses. 2. Seminar/workshop facilities 3. Training centers/facilities 4. Libraries, museums, exhibition halls and art galleries			
	5. Civic centers, clubhouses, lodges, community centers. 6. Churches, mosque, temples. shrines, chapels and similar places of worship 7. Civic or government centers 8. Other types of government buildings			
Division C-2	1. Amusement halls and parlors 2. Massage and sauna parlors 3. Health studios and reducing salons 4. Billiard halls, pool rooms, bowling alleys and golf clubhouses 5. Dancing schools, disco pads, dance and amusement halls 6. Gymnasia, pelota courts and sports complex	1. Government centers to house national, regional or local offices in the area 2. Colleges, universities, professional business schools, vocational and trade schools, technical schools and other institutions of higher learning 3. General hospitals, medical centers, multi-purpose clinics 4. Scientific, cultural and academic		**GI** (**General Institutional**) - a **community to national level of institutional** use or occupancy, characterized mainly as a low-rise, medium-rise or high-rise building/structure for education-al, training and related activities, e.g., schools and related facilities and the like.

		centers and research facilities except nuclear, radioactive, chemical and biological warfare facilities 5. Convention centers and related facilities 6. Religious structures, e.g., church, seminary, novitiates 7. Museums 8. Embassies/ consulate 9. Student housing, e.g., dormitories, boarding house 10.		
Group D – Institutional (Government and Health Services)				
Division D-1 (**Institutional**, where personal liberties of in-mates are restrained, or quarters of those rendering public assistance and maintaining peace and order)	1. Mental hospitals, mental sanitaria and mental asylums 2. Police and fire stations, guard houses 3. Jails, prisons, reformatories and correctional institutions 4. Rehabilitation centers 5. Leprosaria and quarantine station	1. Welfare homes, orphanages, boys and girls town, home for the aged and the like 2. Rehabilitation and vocational training center for ex-convicts, drug addicts, unwed mothers, physically, mentally and emotionally handicapped, ex-sanitaria inmates; and similar establishments 3. Military camps/reservations/bases and training grounds 4. Penitentiary and correctional institution		**GI** (**General Institutional**) - a **community to national level of institutional** use or occupancy, characterized mainly as a low-rise, medium-rise or high-rise building/ structure for medical, government service administrative and related activities, e.g., hospitals and related health care facilities, government offices, military, police and correctional buildings and the like.

Division D-2 (Institutional, buildings for health care)	1. Hospitals, sanitaria, and homes for the aged 2. Nurseries for children of kindergarten age or non-ambulatory patients accommodating more than five (5) persons			

General Classification of Use/Character of Occupancy of Building/ Structure	**U S E**			**Zoning Classification**
	PRINCIPAL	**ACCESSORY**	**CONDITIONAL**	

Division D-3 (**Institutional**, for ambulatory patients or children over kindergarten age)	1. Nursing homes for ambulatory patients 2. School and home, for children over kindergarten age 3. Orphanages			
Group E – Business and Mercantile (Commercial)				
Division E-1 (**Business and Mercantile**, where no work is done except change of parts and maintenance requiring no open flames, welding, or use of highly flammable liquids)	1. All uses allowed in **Division B-1** (or for **R-3** class) buildings/ structures 2. Gasoline filling and service stations. 3. Storage garage and boat storage. 4. Commercial garages and parking buildings, display for cars, tractors, etc. 5. Bus and railways depots and terminals and offices 6. Port facilities 7. Airports and heliport facilities 8. All other types of transportation complexes 9. All other types of large complexes for public services 10. Pawnshops, money shops, photo and portrait studios, shoeshine/repair stands, retail drugstores, tailoring and dress shops	1. Office building 2. Office condominium 3. Department store/shopping center 4 Bookstore and office supply shop 5. Car shop 6. Home appliance store 7. Photo shop 8. Flower shop 9. Bakery and bake shop 10. Wine store 11. Grocery 12. Supermarket 13. Beauty parlor 14. Barber shop 15. Sauna bath and massage clinic 16. Dressmaking and tailoring shops 17. Movie house/theater	1. Garage for *jeepneys* and taxis not greater than six (6) units in number 2. Garage for bus and trucks not greater than three (3) units in number 3. Retailing of CHBs, gravel and sand and other concrete products	**C-1** (**Commercial One or Light Commercial**) - a **neighborhood or community level of commercial** use or occupancy, characterized mainly as a low-rise building/structure for low intensity commercial/trade, service and business activities, e.g., one to three (1 to 3) storey shopping centers, small offices or mixed-use/occupancy buildings and the like.
	11. Bakeshops and bakery goods stores	18. Playcourt, e.g., tennis, bowling, billiards		**UTS** (**Utilities, Transportation and Services**) – a range of

	12. Stores for construction supplies and building materials such as electrical and electronics, plumbing supplies, ceramic clay cement and other similar products except CHBs, gravel and sand and other concrete products	19. Swimming pool 20. Day/night club 21. Stadium, coliseum, gymnasium 22. Other sports and recreational establishments 23. Restaurants and other eateries 24. Short term special education like dancing schools, schools for self-defense, driving schools, speech clinics 25. Storeroom and warehouse but only as may be necessary for the efficient conduct of the business 26. Commercial housing like hotel, apartment, apartel, boarding house, dormitory, pension house, clubhouse, motel 27. Commercial condominium (with residential units in upper floors) 28. Embassy/ consulate 29. Library/museum 30. Filling station/service station 31. Clinic 32. Vocational/ technical school 33. Convention center and related facilities		**utilitarian/functional** uses or occupancies, characterized mainly as a low-rise or medium- rise building/structure for low to high intensity community support functions, e.g., terminals/inter-modals/multi-modals and depots
General	**U S E**			**Zoning Classification**

Classification of Use/Character of Occupancy of Building/ Structure	PRINCIPAL	ACCESSORY	CONDITIONAL	
		34. Messengerial service 35. Security agency 36. Janitorial service 37. Bank and other financial institution 38. Radio and television station 39. Building garage 40. Commercial job printing 41. Typing and photo engraving services 42. Repair of optical instruments and equipment and cameras 43. Repair of clocks and watches 44. Manufacture of insignia, badges and similar emblems except metal 45. Transportation terminal/garage 46. Plant nurseries 47. Scientific, cultural and academic centers and research facilities except nuclear, radioactive, chemical and biological warfare facilities.		
Division E-2 (**Business and Mercantile** in nature)	1. Wholesale and retail stores 2. Shopping centers, malls and supermarkets 3. Wet and dry markets	1. All uses in C-1 class buildings/ structures may be allowed in C-2 class buildings/structures 2. Repair shops like house	1. Institutional uses as colleges and universities, vocational and technical schools, general	**C-2** (**Commercial Two or Medium Commercial**) - a **municipal or city level of commercial** use or

	4. Restaurants, drinking and dining establishments with less than one hundred (100) occupancies. 5. Day/night clubs, bars, cocktails,	appliances, motor vehicles and accessory, home furnishing shops	hospitals and specialized general welfare, charitable and government institutions 2. Hauling services and garage terminals for trucks, tow trucks, and buses not	occupancy, characterized mainly as a medium-rise building/structure for medium to high intensity commercial/ trade, service and
	sing-along lounges, bistros, pubs, beer gardens 6. Bakeries, pastry and bake shops. 7. Office buildings 8. Financial Institutions 9. Printing & publishing plants and offices 10. Engraving, photo developing and printing shops 11. Photographer and painter studios, tailoring and haberdashery shops 12. Factories and workshops, using less flammable or non-combustible materials 13. Battery shops and repair shops 14. Paint stores without bulk handling 15. Funeral parlors 16. Memorial and mortuary chapels, crematories 17. Columbarium 18. Telephone and telegraph exchanges 19. Telecommunications, media and public information complexes including radio and TV broadcasting studios	3. Transportation terminal/garage with repair shops 4. Publishing 5. Medium scale junk shop 6. Machinery display shop/center 7. Gravel and sand 8. Lumber/hardware 9. Manufacture of ice, ice blocks, cubes, tubes, crushed except dry ice 10. Manufacture of signs and advertising displays (except printed) 11. *Chicharon* factory 12. Welding shops 13. Machine shops service operations (repairing/rebuilding, or custom job orders) 14. Motorcycles/bicycles repair shops 15. *Lechon* stores 16. Biscuit factory - manufacture of biscuits, cookies, crackers and other similar dried bakery products 17. Doughnut and *hopia* factory	exceeding three (3) units and storage facilities in support of commercial establishments 4. Auto sales and rentals, automotive handicraft, accessory and spare parts shops, marine craft, aircraft and sales yards 5. Junk shops, scrap dealer shops	business activities, e.g., three to five (3 to 5) storey shopping centers, medium to large office or mixed use/occupancy buildings/structures and the like. **SPE** (**Special**) – other vertical facilities not mentioned under regular uses/occupancies of buildings/structures such as cemeteries, memorial parks and the like

	20. Cell (mobile) phone towers 21. Battery shops and auto repair shops 22. Bakeries, pastry and bake shops 23. Police and fire stations	18. Factory for other bakery products not elsewhere classified (n.e.c.) 19. Shops for repacking of food products e.g. fruits, vegetables, sugar and other related products		
	24. Glassware and metalware stores, household equipment and appliance shops 25. Manufacture of insignia, badges and similar emblems except metal 26. General retail establishments such as curio or antique shops, pet shops and aquarium stores, bookstores, art supplies and novelties, jewelry shops, liquor wine stores and flower shops 27. Employment/recruitment agencies, news syndicate services and office equipment and repair shops and other offices 28. Watch sales and services, locksmith and other related services 29. Other stores and shops for conducting retail business and local shopping establishments 30. Radio, television and other electrical appliance repair shops 31. Furniture, repair and upholstering job 32. Computer stores and video shops, including repair	20. Funeral parlors, mortuaries and crematory services and memorial chapels 21. Parking lots, garage facilities 22. Buildings/structures for other commercial activities not elsewhere-classified (n.e.c.)		

	33. Internet cafes and cyber stations 34. Garment manufacturing with no more than twenty (20) machines 34. Signboard and streamer painting and silk screening			
	35. Car barns for *jeepneys* and taxis not more than six (6) units 36. Lotto terminals, off-fronton, on-line bingo outlets and off-track betting stations 37. Gardens and landscaping supply/ contractors 38. Printing, typesetting, copiers and duplicating services 39. Photo supply and developing 40. Restaurants, canteens, eateries, delicatessen shops, confectionery shops and automats/fastfoods 41. Groceries 42. Laundries and laundromats 43. Recording and film laboratories 44. Auto repair, tire, vulcanizing shops and carwash with minimum 100 sq. meters service area 45. Physical fitness gyms/centers			
Division E-3 (**Business and Mercantile**, where no repair work is done except exchange of parts and maintenance	1. All permitted uses in Division E-1 (or for C-1 and C-2 class) buildings/ structures 2. Aircraft hangars 3. Commercial parking lots and garages 4. Department stores, shopping malls/	1. All uses allowed in **R-1, R-2 and R-3** Zones 2. All uses allowed in **C-1, C-2 and C-3** Zones 3. Some uses allowed in **I-1** Zones 4. All uses allowed in **GI** Zones and **SI** Zones		**C-3** (**Commercial Three or Metropolitan Commercial**) means a **metropolitan level of commercial** use/ occupancy, characterized mainly as a medium-rise to high-rise building/structure for

requiring no open flames, welding or use of highly flammable liquid)	centers, commercial and sports complexes/ areas 5. Institutional uses as university complexes 6. Other commercial/ business activities not elsewhere classified (n.e.c.)	5. Parks and Recreation and Entertainment class buildings/ structures		high to very high intensity commercial/ trade, service and business activities, e.g., large to very large shopping malls, very large office or mixed-use/occupancy buildings and the like.
Group F – Industrial (Non-Pollutive/ Non-Hazardous Industries and Non-Pollutive/ Hazardous Industries)				
Division F-1 (**Light Industrial**)	1. Ice plants and cold storage buildings 2. Power plants (thermal, hydro or geothermal) 3. Pumping plants (water supply, storm	Customary support facilities for industries such as housing, community, utilities and services	Building/structure with lesser negative environmental impact	**I-1** (**Industrial One**) - a **light industrial** use or occupancy, characterized mainly as a low-rise but sprawling building/
	drainage, sewerage, irrigation and waste treatment plants) 4. Dairies and creameries 5. Rice mills and sugar centrals 6. Breweries, bottling plants, canneries, and tanneries 7. Factories and workshops using incombustible or non-explosive materials			structure for low intensity manufacturing or production activities.
Group G – Storage and Hazardous Industrial				

(Pollutive/ Non-Hazardous industries and Pollutive/ Hazardous Industries Only)				
Division G-1 (**Medium Industrial**, which shall include storage and handling of hazardous and highly flammable materials)	1. Storage tanks, buildings for storing gasoline, acetylene, LPG, calcium, carbides, oxygen, hydrogen, and the like 2. Armories, arsenals and munitions factories 3. Match and fireworks factories	Customary support facilities for industries such as housing, community, utilities and services	Building/structure with lesser negative environment impact	**I-2** (**Industrial Two**) - a **medium industrial** use or occupancy, characterized mainly as a low-rise but sprawling building/ structure for medium intensity manufacturing or production activities.
	4. Plastics resin plants (monomer and polymer) 5. Plastics compounding and processing plants 6. Acetylene and oxygen generating plants 7. Cooking oil and soap processing plants 8. Factories for highly flammable chemicals 9. Water and power generation/ distribution complexes 10. Liquid and solid waste management facilities 11. All other types of large complexes for public utilities			**UTS** (**Utilities, Transportation and Services**) – a range of utilitarian/functional uses/ occupancies, characterized mainly by low-rise or medium-rise buildings/structures for low to high intensity community support functions, e.g., power and water generation/ distribution facilities, telecommunication facilities, drainage/wastewater and sewerage facilities, solid waste handling facilities and the like excluding terminals/inter-modals/multi-modals and depot

Division G-2 (**Medium Industrial** buildings for storage and handling of flammable materials)	1. All uses permitted in **I-1** class 2. Dry cleaning plants using flammable liquids 3. Paint stores with bulk handling 4. Paint shops and spray painting rooms 5. Sign and billboard painting shops	Customary support facilities for industries such as housing, community, utilities and services	Building/structure with lesser negative environment impact	
Division G-3 (**Medium Industrial** buildings for wood working activities, papers cardboard manufactures, textile and garment factories	1. Wood working establishments, lumber and timber yards 2. Planing mills and sawmills, veneer plants 3. Wood drying kilns 4. Pulp, paper and paperboard factories 5. Wood and cardboard box factories 6. Textile and fiber spinning mills 7. Grains and cement silos 8. Warehouses where highly combustible materials are stored. 9. Factories where loose combustible fiber or dirt are manufactured, processed or generated. 10. Garment and undergarment factories	Customary support facilities for industries such as housing, community, utilities and services	Building/structure with lesser negative environment impact	
Division G-4 (**Medium Industrial**, for repair garages and engine manufacture)	1. Repair garages and shops 2. Factories for engines and turbines and attached testing facilities	Customary support facilities for industries such as housing, community, utilities and services	Building/structure with lesser negative environment impact	
Division G-5	1. Hangars	Customary support facilities for	Building/structure with lesser	

(**Medium Industrial**, for aircraft facilities)	2. Manufacture and assembly plants of aircraft engine 3. Repairs and testing shops for aircraft engines and parts	industries such as housing, community, utilities and services	negative environment impact	
Group H – Assembly for less than 1,000 (Cultural and/ or Recreational)				
Division H-1 (**Recreational**, which are assembly buildings with stage and having an occupant load of less than 1,000)	1. Theaters and auditoriums 2. Concert halls and open houses 3. Convention halls 4. Little theaters, audio-visual rooms			**PRE** (**Park Structures, Recreation and Entertainment**) - a range of recreational uses or occupancies, characterized mainly as a low-rise or medium-rise building/structure for low to medium intensity recreational or entertainment functions related to educational uses, e.g., structures on campuses or its component parks/open spaces and all other kinds of recreational or assembly buildings/structures on campus such as auditoria, mess halls, seminar facilities, gymnasia, stadia, arenas and the like. **CUL** (**Cultural**) - a **community to national level of cultural**

				use or occupancy, characterized
				mainly as a **low-rise or medium-rise building**/ structure for cultural activities, e.g., cultural centers, convention centers, very large office or mixed-use/occupancy buildings and the like.
Division H-2 (**Recreational**, which are assembly buildings with stage and having an occupant load of 300 or more)	1. Dance halls, cabarets, ballrooms 2. Skating rinks 3. Cockfighting arenas			
Division H-3 (**Recreational**, which are assembly buildings with stage and having an occupant load of less than 300)	1. Dance halls, ballrooms 2. Skating rinks			
Division H-4 (**Recreational**, tourism estate developments or tourism-oriented establishments, which are structures	1. Sports stands 2. Reviewing stands 3. Grandstand and bleachers 4. Covered amusement parks 5. Boxing arenas, jai-alai stadiums 6. Race tracks and hippodromes 7. All types of resort complexes			

not included in Divisions H-1)	8. All other types of amusement and entertainment complexes			
Group I – Assembly for More than 1,000 (Cultural and/or Recreational)				
Division I-1 (Recreational, Assembly Buildings with stage and an occupant load of 1,000 or more in the building)	1. Colisea and sports complexes 2. Theaters and convention centers 3. Concert halls and open houses 4. Convention centers	1. Parks/gardens 2. Resort areas, e.g., beaches, including accessory uses 3. Open air or outdoor sports activities and support facilities, including low rise stadia, gyms, amphitheaters and swimming pools 4. Golf courses, ball courts, race tracks and similar uses 5. Memorial/Shrines/monuments, kiosks and other park structures		**CUL** (**Cultural**) - a **community to national level of cultural** use or occupancy, characterized mainly as a low-rise or medium-rise building/structure for cultural activities **PRE** (**Park Structures, Recreation and Entertainment**) - a range of recreational uses or
		6. Sports Club 7. Underground parking structures/ facilities		occupancies, characterized mainly as a low-rise or medium-rise building/ structure for low to medium intensity recreational or entertainment functions related to educational uses, e.g., structures on campuses or its component parks/open spaces and all other kinds of recreational or assembly buildings/structures on campus

				such as auditoria, mess halls, seminar facilities, gymnasia, stadia, arenas and the like.
Group J – Accessory (Agricultural and Other Occupancies/ Uses not Specifically Mentioned Under Groups A through I)				
Division J-1	1. Agricultural structures: a. Sheds b. Barns c. Poultry houses d. Piggeries e. Hatcheries f. Stables g. Greenhouses h. Granaries i. Silos	1. Cultivation, raising and growing of staple crops such as rice, corn, *camote,* cassava and the like 2. Growing of diversified plants and trees, such as fruit and flower bearing trees, coffee, tobacco, etc. 3. Silviculture, mushroom culture, fishing and fish culture, snake culture, crocodile farm, monkey raising and the like 4. Customary support facilities such as *palay* dryers and rice threshers and storage barns and warehouses 5. Ancillary dwelling units/farmhouses for tillers and laborers 6. Agricultural research and		**A** (**Agricultural**) - an agricultural or agriculture-related use or occupancy, characterized mainly as a low-rise or medium-rise building/structure for low to high intensity agricultural or related activities, e.g., poultry houses, hatcheries, piggeries, greenhouses, granaries and the like as well as offices, educational, training, research and related facilities for agriculture and the like. **AI** (**Agro-Industrial**) - an agro-industrial or related use or occupancy, characterized mainly as a low-rise building/

		experimentation facilities such as breeding stations, fish farms, nurseries, demonstration farms, etc. 7. Pastoral activities such as goat-raising and cattle fattening 8. Home occupation for the practice of one's profession or engaging home business such as dressmaking, tailoring, baking, running a *sari-sari* store and the like, provided that, the number of persons engaged in such		structure for low to high intensity agro-industrial or related activities to include offices, educational, training, research and related facilities for agro-industry.
		business/industry shall not exceed five (5), inclusive of the owner; there shall be no change in the outside appearance of the building premises; no home occupation shall be conducted in any customary accessory uses cited above; no traffic shall be generated by such home occupation in greater volume than would normally be expected in a residential neighborhood and any need for parking generated by the conduct of such home occupation shall be met off the street in a place other than the required front yard; no equipment or process shall be used in such occupation which creates noise, vibration,		

		glare, fumes, odors and electrical interference detectable to the normal senses and visual or audible interference in any radio or television receiver or causes fluctuations in line voltage of the premises. 9. Home industry classified as cottage industry, e.g., mat weaving, pottery making, food preservation, etc. provided that such home industry shall not occupy more than 30% of floor area of the dwelling unit;		
		there shall be no change or alteration in the outside appearance of the dwelling unit and shall not be a hazard or nuisance; allotted capitalization shall not exceed the capitalization as set by the Department of Trade and Industry (DTI); such shall consider same provisions as enumerated in Home Occupation, this Section. 10. Backyard raising of livestock and fowl, provided that for livestock- a maximum of 10 heads; for fowl. a maximum of 500 birds 11. All uses allowed in agriculture 12. Rice/ corn mills (single pass) 13. Drying, cleaning, curing and		

		preserving of meat and its by products and derivatives 14. Drying, smoking and airing of tobacco 15. Flour mill 16. Cassava flour mill 17. Manufacture of coffee 18. Manufacture of unprepared animal feeds, other grain milling, n.e.c. 19. Production of prepared feeds for animals 20. Cigar and Cigarette factory 21. Curing and redrying tobacco leaves		
		22. Miscellaneous processing of tobacco leaves, n.e.c. 23. Weaving hemp textile 24. Jute spinning and weaving 25. Manufacture of charcoal 26. Milk processing plants (Manufacturing filled, reconstituted or recombined milk, condensed or evaporated) 27. Butter and cheese processing plants 28. Natural fluid milk processing (pasteurizing, homogenizing, vitaminizing, bottling of natural animal milk and cream related products) 29. Other dairy products, n.e.c. 30. Canning and preserving of fruits		

		and fruit juices 31. Canning and preserving of vegetables and vegetable juices 32. Canning and preserving of vegetable sauces 33. Miscellaneous canning and preserving of fruit and vegetables, n.e.c. 34. Fish canning 35. *Patis* factory 36. *Bagoong* factory		
		37. Processing, preserving and canning of fish and other seafoods, n.e.c. 38. Manufacturing of desiccated coconut 39. Manufacture of starch and its products 40. Manufacture of wines from juices of local fruits 41. Vegetable oil mills, including coconut oil 42. Sugarcane milling (centrifugal and refines) 43. Sugar refining 44. *Muscovado* sugar mill 45. Cotton textile mill 46. Manufacture/processing of other plantation crops, e.g., pineapple, bananas, etc. 47. Other commercial handicrafts and industrial activities utilizing plant		

		or animal parts and/or products as raw materials, n.e.c. 48. Other accessory uses incidental to agro-industrial activities		
Division J-2 (Accessory)	1. Private garages, carports 2. Towers, smokestacks and chimneys 3. Swimming pools including shower and locker room 4. Fence over 1.80 meters high, separate fire walls 5. Steel and/ or concrete tanks		1. All uses/occupancy permitted in all other Divisions (or classes of buildings/ structures) if such uses/occupancy are part of the Planned Unit Development (PUD)	**PUD (Planned Unit Development) -** refers to land development or redevelopment schemes for a new or built-up project site wherein said project site must have a Comprehensive Development Master Plan (**CDMP**) or its acceptable equivalent, i.e., a unitary development plan/site plan that permits flexibility in planning/ urban design, building/structure siting, complementarity of building types and land uses, usable open spaces for general public use services and
				Business activities and the preservation of significant natural land features if feasible, whereby said CDMP must be duly approved by the LGU concerned.

Division J-3	1. Stages, platforms and similar structures 2. Pelota, tennis, badminton or basketball courts 3. Tombs, mausoleums and niches 4. Aviaries and aquariums and zoo structures 5. Banks and record vaults			

(emphases, underscoring and annotations supplied)

SECTION 702. Change in Use

No change shall be made in the character of occupancy or use of **any building** which would place the building in a different division of the same group of occupancy or in a different group of occupancies, unless such building is made to comply with the requirements of the **Code** for such division or group of occupancy. The character of occupancy of existing buildings may be changed subject to the approval of the **Building Official** and the building

may be occupied for purposes set forth in other Groups: Provided the new or proposed use is less hazardous, based on life and fire risk, than the existing use.

SECTION 703. Mixed Occupancy

1. General Requirements

When a building is of **mixed occupancy** or used for **more than one occupancy**, the whole building shall be subject to the **most restrictive requirement** pertaining to any of the type of occupancy found therein except in the following:

a. When a **one-storey building** houses more than one occupancy, each portion of the building shall conform to the requirement of the particular occupancy housed therein and;

b. Where minor accessory uses do **not** occupy more than 10% of the area of any floor or a building, nor more than 10% of the basic area permitted in the occupancy requirements, in which case, the **major use** of the building shall determine the occupancy classification.

2. Forms of Occupancy Separation

Occupancy separations shall be vertical or horizontal or both, or when necessary, of such other forms as may be required to afford a **complete separation** between the various occupancy divisions in the building.

3. Types of Occupancy Separation

Occupancy separation shall be classified as "**One-Hour Fire-Resistive**", "**Two-Hour Fire-Resistive**", "**Three-Hour Fire-Resistive**" and "**Four-Hour Fire-Resistive**."

a. A "**One-Hour Fire-Resistive** Occupancy Separation" shall be of **not less than one-hour fire-resistive construction**. All openings in such separation shall be protected by a fire-assembly having a one-hour fire-resistive rating.

b. A "**Two-Hour Fire-Resistive** Occupancy Separation" shall be of **not less than two-hour fire-resistive construction**. All openings in such separation shall be protected by a fire assembly having a two-hour fire-resistive rating.

c. A "**Three-Hour Fire-Resistive** Occupancy Separation" shall be of **not less than three-hour fire-resistive construction**. All openings in walls forming such separation shall be protected by a fire assembly having a three-hour fire-resistive rating. The total width of all openings in any three-hour fire-resistive occupancy separation wall in any one-storey shall not exceed 25% of the length of the wall in that storey and no single opening shall have an area greater than 10.00 sq. meters. All openings in floors forming a "Three-Hour Fire-Resistive Occupancy Separation" shall be protected by vertical enclosures extending above and below such openings. The walls of such vertical enclosures shall be of not less than two-hour fire-resistive construction, and all openings therein shall be protected by a fire assembly having a three-hour fire-resistive rating.

d. A "**Four-Hour Fire-Resistive** Occupancy Separation" shall have no openings therein and shall be of **not less than four-hour fire-resistive construction**.

4. Fire Rating for Occupancy Separation

Occupancy Separations shall be provided between groups, subgroupings, or divisions of occupancies. The Secretary shall promulgate rules and regulations for appropriate occupancy separations in buildings of mixed occupancy; Provided, that, where any occupancy separation is required, the minimum shall be a "One-Hour Fire-Resistive Occupancy Separation"; and where the occupancy separation is horizontal, structural members supporting the separation shall be protected by an equivalent fire-resistive construction.

SECTION 704. Location on Property

1. General

a. **No building** shall be constructed unless it adjoins or has **direct access to a public space**, yard or street on at least one of its sides.

b. For the purpose of this Section, the centerline of an adjoining street or alley shall be considered an adjacent property line.

c. Eaves over required windows shall not be less than 750 millimeters from the side and rear property lines.

2. Fire Resistance of Walls

Exterior walls shall have fire resistance and opening protection in accordance with the requirements set forth by the Secretary. Projections beyond the exterior wall shall not exceed beyond a point one-third the distance from an assumed vertical plane located where the fire-resistive protection of openings is first required to the location on property whichever is the least restrictive. Distance shall be measured at right angles from the property line. When openings in exterior walls are required to be protected due to distance from property line, the sum of the areas of such openings in any storey shall not exceed 50% of the total area of the wall in that storey.

3. Buildings on Same Property and Buildings Containing Courts

For the purpose of determining the required wall and opening protection, buildings on the same property and court walls shall be assumed to have a property line between them. When a new building is to be erected on the same property with an existing building, the assumed property line from the existing building shall be the distance to the property line for each occupancy as set forth by the Secretary; Provided, that two or more buildings on the same property may be considered as one building if the aggregate area of such building is within the limits of allowable floor areas for a single building, and when the buildings so considered, house different occupancies or are of different types of construction, the area shall be that allowed for the most restrictive occupancy or construction.

4. **Building Footprint and Firewall Requirements**

a. The following rules shall be observed in the determination of the Allowable Maximum Building Footprint (**AMBF**) for buildings and related **habitable** structures. If the stated rules are compared with (1) ***Rule VIII Table VIII.1.***- Reference Table on Percentage of Site Occupancy and Maximum Allowable Construction

Area (**MACA**); (2) ***Rule VIII Tables VIII.2. and VIII.3.*** (setbacks, yards and courts); or (3) with the applicable stipulations under this Rule and with the applicable stipulations of the **Fire Code**, **the more stringent but applicable regulation out of the aforementioned rules should be observed**;

b. If **without a firewall**, the footprint of a proposed building/structure shall be measured horizontally from the property line to the outermost faces of the exterior walls of the building/structure; Provided, that the distance measured from the property line shall conform with the applicable stipulations of **this Rule and Rule VIII**; The resultant area established at grade level upon which the proposed building/structure may stand shall be the **AMBF**;

c. Footprint Based on **Firewall** Provisions

   i. If with a **firewall on one (1) side**, the footprint of a proposed building/structure shall be measured horizontally from the property line with a firewall to the outermost faces of the opposite exterior walls of the building/structure; Provided, that the applicable stipulations of the **Fire Code** are strictly followed;

   ii. If with a **firewall on two (2) sides** or on one (1) side and the rear property line, the footprint of a proposed building/structure shall be measured horizontally from the opposing property lines in case of a firewall on two (2) sides or from the rear property line with a firewall to the outermost faces of the opposite exterior walls of the building/structure; provided, that the applicable stipulations of the Fire Code are strictly followed;

   iii. **Absolutely no firewalls are allowed for a low density residential (R-1) uses or occupancies**; an **abutment of up to 3.20 meters** from established grade level may however be permitted but solely **for the purpose of supporting a carport roof**; provided further that such abutment shall be constructed of perforated or decorative concrete blocks above 1.50 meters measured vertically from the established grade level; such an abutment shall not be longer than 7.00 meters or 50% of the side property line in total length, whichever is shorter.

   iv. For **medium density residential** (**R-2**) uses or occupancies, **a firewall can be erected on a maximum of 80% of the total length of a side property line**; provided that **only one (1) side property line is used for a firewall** in the case of a R-2 structure; and provided further that the applicable stipulations of the Fire Code are strictly followed;

v. For **high-density residential** (**R-3**) uses or occupancies, **two (2) types of firewall construction may be permitted**:

(a) For a **R-3 use or occupancy with a firewall on two (2) sides**, a firewall can be erected on a maximum of 85% of the total length of each side property line; provided that all firewall construction shall not exceed 65% of the total perimeter of the R-3 property, i.e., total length of all property lines; provided that firewalls in R-3 lots shall only be allowed for a maximum two (2) storey component structure; and provided further that all the applicable stipulations of the Fire Code are strictly followed; and

(b) For a **R-3 use or occupancy with a firewall on one (1) side property line and at the rear property line**, a firewall can be erected on a maximum of 90% of the total length of the side and rear property lines and up to 100% in case the rear property line is only 4.00 meters wide; provided that all firewall construction at the side property lines shall not exceed 50% of the total perimeter of the R-3 property, i.e., total length of all property lines; provided that firewalls in R-3 lots shall only be allowed for a maximum two (2) storey structure but not at the rear property line where the maximum allowed firewall height shall only be 3.20 meters measured vertically from established grade; and provided further that all the applicable stipulations of the Fire Code are strictly followed.

vi. For **townhouse residential** (**R-4**) uses or occupancies, **firewalls on the two (2) sides of each townhouse unit may be permitted**; the R-4 firewall can be erected on a maximum of 85% of the total length of each side property line; provided that all firewall construction shall not exceed 50% of the total perimeter of each R-4 property, i.e., total length of all property lines; provided that firewalls in each R-4 use or occupancy shall be allowed for a maximum three (3) storey structure; and provided further that all the applicable stipulations of the Fire Code are strictly followed;

vii. For **residential condominium** (**R-5**) uses or occupancies, **two (2) types of firewall construction may be permitted**:

(a) For a **R-5 use or occupancy with a firewall on two (2) sides**, a firewall can be erected on a maximum of 75% of the total length of each side property line; provided that all firewall construction at the side property lines shall not exceed 50% of the total perimeter of the R-5 property, i.e., total length of all property lines; provided that side firewalls in R-5 uses or occupancies shall

only be allowed for a maximum eight (8) storey component structure, i.e., the podium; and provided further that all the applicable stipulations of the Fire Code are strictly followed; and

(b) For a **R-5 use or occupancy with a firewall on one (1) side and at the rear property line**, a firewall can be erected on a maximum of 65% of the total length of the side property line and on a maximum of 50% of the total length of the rear property line; provided that all firewall construction shall not exceed 60% of the total perimeter of the R-5 property, i.e., total length of all property lines; provided that the side firewalls in R-5 uses or occupancies shall only be allowed for a maximum eight (8) storey component structure and that at the rear property line, the maximum allowed firewall height shall only be 14.00 meters measured vertically from established grade; and provided further that all the applicable stipulations of the Fire Code are strictly followed.

viii. **All existing openings on all firewalls shall be sealed completely to maintain the fire integrity of adjoining buildings/structures**.

ix. The provision of a fully functional sprinkler system and the installation of other fire-retardant or fire suppression devices in the case of commercial, institutional and industrial buildings/structures may allow firewall construction for up to 70% of the total perimeter of the property lines provided that the prescribed setbacks, yards and courts fronting the Road Right-Of-Way (**RROW**) are first fully complied with; and provided further that all the applicable stipulations of the **Fire Code**, particularly on the number, type and locations of fire exits are strictly followed.

SECTION 705. Allowable Floor Areas

1. General. The Allowable Maximum Total Gross Floor Area (**TGFA**) of **any proposed building**/structure shall only be as allowed under this Rule.

2. TGFA Limitation. In ***Table VII.1.*** hereafter, the percentages (%) indicated in the third (3rd) through eighth (8th) columns, but excluding the multiplier numbers 3, 5, 12, 18, and 30 (which represent the number of storeys/floors), are the percentages of the Total Lot Area (**TLA**) that may be used to initially determine the Allowable Maximum **TGFA** for a proposed building/structure.

3. Crosscheck of **TGFA** with Allowable Maximum Volume Building (**AMVB**). The Allowable Maximum **TGFA** once established must be thoroughly crosschecked with the **AMVB** to find out if the AMVB is not exceeded. If exceeded, the necessary adjustments on the Maximum Allowable **TGFA** must be made since the **AMVB must always prevail**.

Table VII.1. **Allowable Maximum Total Gross Floor Area (TGFA) Based on the Allowed Percentage of Site Occupancy (PSO) of the Total Lot Area (TLA)**

Character of Use/ Occupancy	Type of Building/ Structure	Allowable Maximum Total Gross Floor Area (**TGFA**)* by Type/ Location of Lot *Note: Building Height Limit (**BHL**) multiplied by the Allowable Maximum Building Footprint (**AMBF**) expressed as a percentage (%) of the Total Lot Area or **TLA** (with or without firewall). Figure subject to reduction to comply with the floor area component of the Allowable Maximum Volume of Building (**AMVB**). Refer to ***Table VII.1.*** to arrive at the percentage (%) of **TLA**.					
		Interior (or Rear) Lot and End Lot (see ***Fig. VIII.8.*** and ***VIII.5.14.*** of Rule VIII)	Inside (or Regular) Lot (see ***Fig. VIII.9.*** of Rule VIII)	Corner Lot (see ***Fig. VIII.10.*** of Rule VIII)	Through Lot (see ***Fig. VIII.11.*** of Rule VIII)	Corner-Through Lot (see ***Fig. VIII.12.*** of Rule VIII)	Corner Lot Abutting 3 or More Streets, etc. Rivers, Etc. (see ***Fig. VIII.13.*** of Rule VIII)
Residential GROUP A-I firewalls)	Residential TLA	3 x60% of TLA	3 x50% of TLA	3 x70% of TLA	3 x70% of TLA	3 x70% of TLA	3 x70% of TLA
	Basic Residential 2 (**R-2**)	3 x 70%	3 x 60%	3 x 70%	3 x 70%	3 x 70%	3 x 70%
	Maximum Residential 2 (**R-2**)	5 x 70%	5 x 60%	5 x 70%	5 x 70%	5 x 70%	5 x 70%
	Basic Residential 3 (**R-3**)	3 x 70%	3 x 70%	3 x 70%	3 x 70%	3 x70%	3 x70%

	Maximum Residential 3 (**R-3**)	12x80%	12x80%	12x80%	12x80%	12x80%	12x80%
	Residential 4 (**R-4**)/ Individual Townhouse Lots/Units	3 x 80%	3 x 80%	3 x 80%	3 x 80%	3 x 80%	3 x 80%
	Residential 4 (**R-4**)/ Individual Townhouse Lots/Units	3 x 80%	3 x 80%	3 x 80%	3 x 80%	3 x 80%	3 x 80%
	Residential 5 (**R-5**)/ Condomin-iums	18x80%	18x80%	18x80%	18x80%	18x80%	18x80%
Residential GROUP A-I (with firewalls)	Residential 1 (**R-1**)	Not applicable (NA)	NA	NA	NA	NA	NA
Character of Use/ Occupancy	Type of Building/ Structure	Allowable Maximum Total Gross Floor Area (**TGFA**)* by Type/ Location of Lot *Note: Building Height Limit (**BHL**) multiplied by the Allowable Maximum Building Footprint (**AMBF**) expressed as a percentage (%) of the Total Lot Area or **TLA** (with or without firewall). Figure subject to reduction to comply with the floor area component of the Allowable Maximum Volume of Building (**AMVB**). Refer to Table VII.1. to arrive at the percentage (%) of TLA.					
	Basic Residential 2 (**R-2**)	3 x 75%	3 x 70%	3 x 75%	3 x 75%	3 x 75%	3 x 75%
	Maximum Residential 2 (**R-2**)	5 x 75%	5 x 70%	5 x 75%	5 x 75%	5 x 75%	5 x 75%
	Basic Residential 3 (**R-3**)	3 x 80%	3 x 80%	3 x 80%	3 x 80%	3 x 80%	3 x 80%
	Maximum Residential 3 (**R-3**)	12x80%	12x80%	12x80%	12x80%	12x80%	12x80%

	Residential 4 (**R-4**)/ Individual Townhouse Lots/Units	3 x 80%	3 x 80%	3 x 80%	3 x 80%	3 x 80%	3 x 80%
	Residential 5 (**R-5**)/ Condomin-iums	18x80%	18x80%	18x80%	18x80%	18x80%	18x80%
Commerc-ial GROUPS B, C, E, H, I	Commerc-ial 1 (Com-1)	5 x 80%	5 x 75%	5 x 80%	5 x 80%	5 x 90%	5 x 90%
	Commerc-ial 2 (Com-2)	12x80%	12x75%	12x80%	12x80%	12x90%	12x90%
	Commerc-ial 3 (Com-3)	30 x 80%	30x75%	30x80%	30x80%	30x90%	30x90%
	Commerc-ial 1 (Com-1) with Sprinkler System & Firewalls	5 x 85%	5 x 85%	5 x 90%	5 x 90%	5 x 95%	5 x 95%
	Commerc-ial 2 (Com-2) with Sprinkler System & Firewalls	12x85%	12x85%	12x90%	12x90%	12x95%	12x95%
	Commerc-ial 3 (Com-3) with Sprinkler System & Firewalls	30x85%	30x85%	30x90%	30x90%	30x95%	30x95%

Character of Use/ Occupancy	Type of Building/ Structure	Allowable Maximum Total Gross Floor Area (**TGFA**)* by Type/ Location of Lot *Note: Building Height Limit (**BHL**) multiplied by the Allowable Maximum Building Footprint (**AMBF**) expressed as a percentage (%) of the Total Lot Area or **TLA** (with or without firewall). Figure subject to reduction to comply with the floor area component of the Allowable Maximum Volume of Building (AMVB). Refer to ***Table VII.1.*** to arrive at the percentage (%) of **TLA**.					
Industrial GROUPS F, G	Industrial 1 (Ind-1)	Duly-approved Building Height Limit (**BHL**) x 80% of TLA	BHL x 75% of TLA	BHL x 80% of TLA	BHL x 80% of TLA	BHL x 90% of TLA	BHL x 90% of TLA
	Industrial 2 (Ind-2)	BHL x 80%	BHL x 75%	BHL x 80%	BHL x 80%	BHL x 90%	BHL X 90%
	Industrial 3 (Ind-3)	BHL x 80%	BHL x 75%	BHL x 80%	BHL x 80%	BHL x 90%	BHL x 90%
	Industrial 1 (Ind-1) with Sprinkler System & Firewalls	BHL x 85%	BHL x 85%	BHL x 90%	BHL x 90%	BHL x 95%	BHL x 95%
	Industrial 2 (I-2) with Sprinkler System & Firewalls	BHL x 85%	BHL x 85%	BHL x 90%	BHL x 90%	BHL x 95%	BHL x 95%
	Industrial 3 (Ind-3) with Sprinkler System & Firewalls	BHL x 85%	BHL x 85%	BHL x 90%	BHL x 90%	BHL x 95%	BHL x 95%
Institutional GROUP D	Without Sprinkler System & Firewalls	BHL x 50% of TLA	BHL x 50% of TLA	BHL x 60% of TLA	BHL x 60% of TLA	BHL x 60% of TLA	BHL x 60% of TLA
	With Sprinkler System & Firewalls	BHL x 60% of TLA	BHL x 60% of TLA	BHL x 70% of TLA	BHL x 70% of TLA	BHL x 70% of TLA	BHL x 70% of TLA

Cultural	Without Sprinkler System & Firewalls	BHL x 60% of TLA	BHL x 60% of TLA	BHL x 65% of TLA	BHL x 65% of TLA	BHL x 65% of TLA	BHL x 65% of TLA
	With Sprinkler System & Firewalls	BHL x 70%	BHL X 70%	BHL x 70%	BHL x 70%	BHL x 70%	BHL x 70%
Transport-ation	Without Sprinkler System & Firewalls	BHL x 50% of TLA	BHL x 50% Of TLA	BHL x 60% of TLA	BHL x 60% of TLA	BHL x 60% of TLA	BHL x 60% of TLA
	With Sprinkler System & Firewalls	BHL x 60%	BHL x 60%	BHL x 70%	BHL x 70%	BHL x 70%	BHL x 70%

***Note**:*
*Maximum of sixty (60) storeys (180.00 meters) **BHL** for inland areas not close to airports.*

SECTION 706. Allowable Floor Area Increases

The floor areas hereinabove provided may be increased in certain specific instances and under appropriate conditions, based on the existence of public space, streets or yards extending along and adjoining two or more sides of the building or structure subject to the approval of the **Building Official**. *(Refer to **Guidelines** on Determining Gross Floor Area and Total Gross Floor Area of a Building/Structure at the end of this Rule)*

SECTION 707. Maximum Height of Buildings

1. The maximum height and number of storeys of **proposed building** shall be dependent upon the character of use or occupancy and the type of construction, considering end-user population density, light and ventilation, width of **RROW**/streets particularly of its roadway/carriageway component, building bulk, off-street cum off-site parking requirements, etc. and in relation to local land use plan and zoning regulations as well as other environmental considerations, e.g., geological, hydrological, meteorological, topographical, prevailing traffic conditions, the availability and capacity of public utility/service systems, etc. *(Refer to **Guidelines** on Building Bulk at the end of this Rule)*

2. Determination of **Building Height**:

a. BUILDING HEIGHT LIMIT **(**BHL**) - the** maximum height **to be allowed for** buildings**/structures based on their proposed use or occupancy; the** BHL **is generally determined after the application of other** development controls **(**DC**) and certain other parameters, i.e., considerations of site conditions, view, etc. (***Table VII.2.*** of this Rule). The** BHL **shall be generally measured from the established grade line to the topmost portion of the proposed building/structure. If applicable, the** BHL **may be subject to clearance requirements of the Air Transportation Office (**ATO**) or of the concerned military/security authorities. *(Refer to* Guidelines *on Development Controls at the end this Rule)***

BHL excludes the height of permitted/allowed projections above the roof of the **building**/structure, e.g., signage, mast, antenna, telecom tower, beacons and the like.

b. The Building Height Limit (**BHL**) of any **proposed building**/structure shall only be as allowed under this Rule (as shown in table below) or under the duly approved city/municipal (local) zoning ordinance, whichever is more restrictive.

Table VII.2. Building Height Limit (BHL) by Type of Use or Occupancy

Character of Use or Occupancy	Type of Building/ Structure	Building Height Limit (**BHL**)	
		Number of allowable storeys/floors above established grade	Meters above highest grade
1. Residential	Residential 1 (**R-1**)	3	10.00
	Residential 2 (**R-2**) a. Basic b. Maximum	 3 5	 10.00 15.00
	Residential 3 (**R-3**) a. Basic b. Maximum	 3 12	 10.00 36.00
	Residential 4 (R-4)/ Townhouses (Individual lots/ units)	3	10.00
	Residential 5 (**R-5**)/ Condominiums	12 - 18	36.00 - 54.00

2. Commercial	Commercial 1 (**C-1**)	3 - 5	10.00 -15.00
	Commercial 2 (**C-2**)	6	18.00
	Commercial 3 (**C-3**)	16-60	48.00 -180.00
Character of Use or Occupancy	Type of Building/ Structure	Building Height Limit (**BHL**)	
		Number of allowable storeys/floors above established grade	Meters above highest grade
3. Industrial	Industrial 1 (**I-1**)	15.00 meters but not exceed the duly-approved **BHL** in the major zone it is part of	
	Industrial 2 (**I-2**)	21.00 meters but not exceed the duly-approved **BHL** in the major zone it is part of	
	Industrial 3 (**I-3**)	27.00 meters but not exceed the duly-approved **BHL** in the major zone it is part of)	
4. Institutional	-	15.00 meters (or must follow the duly-approved **BHL** in the major zone it is part of)	
5. Cultural	-	30.00 meters (or must follow the duly-approved **BHL** in the major zone it is part of)	
6. Utility/Transportat-ion/RROW/ Services	-	15.00 meters (or must complement the duly-approved **BHL** in the major zone it is part of)	
7. Parks and Open Recreational and Entertainment Spaces	-	15.00 meters (or must complement the duly-approved **BHL** in the major zone it is part of)	
8. Agricultural/Agro-Industrial/Tourism	-	15.00 meters (or must complement the duly-approved **BHL** in the major zone it is part of)	
9. Planned Unit Development (PUD)	PUD at a reclamation area close to an operating airport	3 - 15	10.00-45.00 (with ATO-prescribed **BHL** as needed)
	PUD at a reclamation area	3 - 30	10.00 - 30.00
	PUD at a coastal area	16 - 45	48.00 - 135.00

	PUD at an inland area close to an operating airport	3 - 25	10.00 - 75.00 (with ATO-prescribed **BHL** as needed)
	PUD at an inland area	12 - 60	36.00 - 180.00

Notes:

a. ***Establishing Grade***

- ***In case of sloping grade where the edges of the building footprint*** *(AMBF)* ***running perpendicular to the*** *RROW* ***has a difference in elevation of less than 3.00 meters, the highest adjoining natural grade (ground surface) or finished grade (sidewalk surface) shall be considered the established grade elevation (***Figure VII.1.***);***

- ***In case of sloping grade where the edges of the building footprint*** *(AMBF)* ***running perpendicular to the*** *RROW* ***has a difference in elevation of more than 3.00 meters, the average grade level of the building footprint*** *(AMBF)* ***shall be considered the established grade elevation (see*** *Figure VII.3.****); and***

- ***The*** *building/***structure height shall be measured from the highest adjoining public sidewalk (finished grade) or ground surface (natural grade); Provided, that the height measured from the lowest adjoining surface shall not exceed such maximum height by more than 3.00 meters; Except, that towers, spires and steeples, erected as parts of the building and not used for habitation or storage are limited as to the height only by structural design, if completely of incombustible materials, or may extend but not exceed 6.00 meters above the prescribed building height limit** *(BHL)* **for each occupancy group, if of combustible materials (***Figures VII.2.***).**

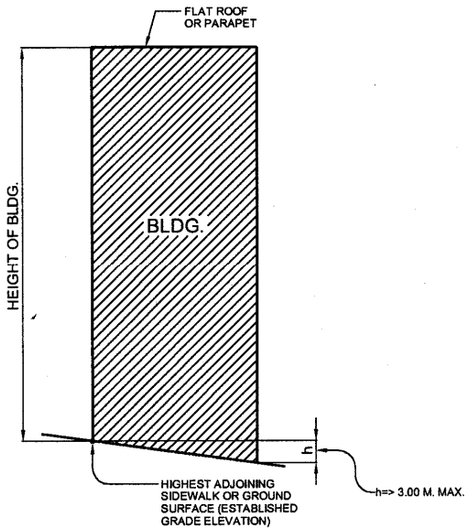


Figure VII.1.

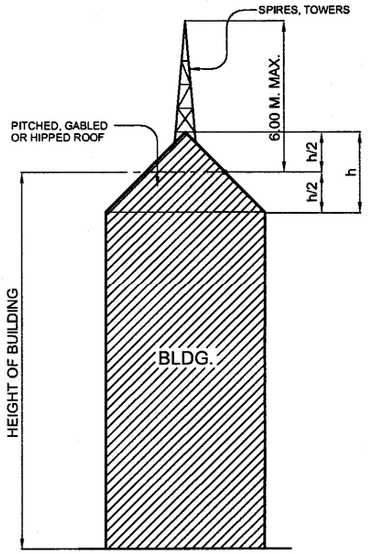


Figure VII.2.

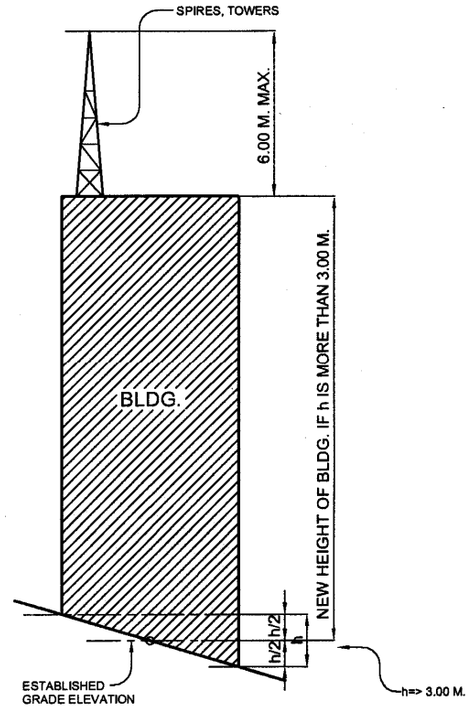


Figure VII.3.

HEIGHT OF BUILDING / STRUCTURE

Annotation. The height of buildings should also be generally proportional to its base/footprint. In practice, a smaller footprint cum taller profile for a building is resorted to in order to preserve as much of the open space within a lot (or surrounding the building) as much as possible.

3. Other Considerations in Height Determination

a. In any given locality, the height of proposed **buildings**/structures shall be governed by the following factors:

i. The **designer/space planner** must consider both the present and projected population density within the project site and in the project's location/area at full completion/operation of the project;

ii. For a given **volume of building**/structure (the **building bulk**), that which has a lesser Percentage of Site Occupancy (**PSO**) or area of ground coverage Allowable Maximum Building Footprint (**AMBF**) or Maximum Allowable Construction Area (**MACA**) may be built higher than that with a greater **PSO, AMBF or MACA**;

iii. A proposed building/structure which has a greater **TGFA** requirement shall be built higher than that with a lower **TGFA** requirement;

iv. A proposed building/structure on a lot with a higher **FLAR designation/rights** may be built higher than that on a lot with a lower **FLAR designation/rights**; and

v. Lots that face a wider **RROW** and therefore with more **RROW** features/elements may become the site of a taller building/structure as compared to a lot facing a narrow RROW.

b. The height of proposed buildings/structures shall also be governed by the following **RROW**-based limitations:

i. If only one (1) RROW **services a lot and such is only 6.00 to 7.00 meters wide, a** BHL **of three (3) storeys (or 9.00 meters maximum) shall be observed regardless of use or occupancy, lot size, lot dimensions, lot frontage and like considerations.**

ii. If only one (1) RROW **services a lot and such is only 4.00 to 5.00 meters wide, a** BHL **equivalent to 2 ½ storeys (or 7.50 meters maximum) shall be observed regardless of use or occupancy, lot size, lot dimensions, lot frontage and like considerations. If only one (1)** RROW **services a lot and such is only 3.00 meters wide or less, a** BHL **equivalent to two (2) storeys (or 6.00 meters maximum) shall be observed regardless of use or occupancy, lot size, lot dimensions, lot frontage and like considerations.**

iii. **Taller buildings are allowed for duly approved high-density developments such as Planned Unit Development** (PUD) **areas. Taller and bulkier buildings are better suited in such areas due to higher end-user targets, more advanced and coordinated planning efforts and the application of more stringent** development controls (DC) **by the project proponents themselves.**

c. **The following factors shall also be considered in the determination of the building height:**

i. **Soil characteristics, lot location in relation to fault lines and earthquake belts or proximity to volcanoes and other geological conditions.**

ii. **Hydrological conditions such as the water table at the site and distance to waterways and shorelines.**

iii. **Meteorological conditions such as the frequency and intensity of destructive typhoons/monsoon winds/rains, prevailing wind speed and direction, relative humidity, amount of precipitation and the prevailing ambient conditions.**

iv. **Effect/s of environmental conditions on the building/structure and vice versa coupled with the effective control of air, noise and thermal pollution, radiant heat, lights and shadows, etc., and the optimization of natural light and ventilation.**

v. **Effect/s of traffic conditions on the building/structure and vice versa and the satisfaction of parking/loading requirements in accordance with this Rule.**

vi. **Availability and capacity of public utility/service system considering the availability and adequacy of electric power, potable and non-potable water supply, drainage and sewerage, transportation and communications facilities, solid waste management system, etc.**

vii. **Need for applicable building safety and maintenance systems, e.g., lightning arresters, beacons, protective railings and barriers, gondolas, window washing systems, etc.**

d. In accordance with the Standards and Recommended Practices (**SARP**) of the International Civil Aviation Organization (**ICAO**) where the Philippines is a member state and of **Administrative Order No. 5** (**Civil Air Regulation**) of the Air Transportation Office (**ATO**), the following rules and regulations shall govern the construction of buildings/structures within the 24.00 kilometer radius of aerodromes where turbo-jet aircraft operate and within the 10.00 kilometer radius of aerodromes where no turbo-jet aircraft operate. (***Figs. VII.4.*** through ***VII.8.***)

i. The height of buildings/structures within this area shall be limited by an imaginary line with slope of 2% or 1:50 for aerodromes where turbo-jet aircraft operate and 2.5% or 1:40 for aerodromes where no turbo-jet aircraft operate from the inner edge reckoned from the surface of the runway. The dimensions of the isosceles trapezoidal are as shown on ***Table VII.3.*** hereafter.

Table VII.3. **Dimensions of Isosceles Trapezoid**

Type of Aerodrome	**Inner Edge (Start Base)** (meters)	**Long Base** (meters)	**Distance Between Bases** (meters)
Aerodromes where turbo-jet aircraft operates	300 150	4,800 4,650	15,000 15,000
Aerodromes where no turbo-jet aircraft operates	150 100	2,150 2,100	10,000 10,000

ii. No new buildings/structures shall be allowed within the runway strip.

iii. A height clearance certificate shall be first secured from the Air Transportation Office (**ATO**) before a building permit may be issued for the construction of buildings/structures located:
   (a) Within 4.00 kilometer radius of the runway ends of an aerodrome regardless of height;
   (b) From 4.00 kilometer to 24.00 kilometer radius of the runway ends of an aerodrome where turbo-jet aircraft operate and exceeding 45.00 meters in height above the elevation of the runway; and
   (c) From 4.00 kilometer to 10.00 kilometer radius of the runway ends of an aerodrome where no turbo-jet aircraft operate and exceeding 45.00 meters in height above the elevation of the runway.

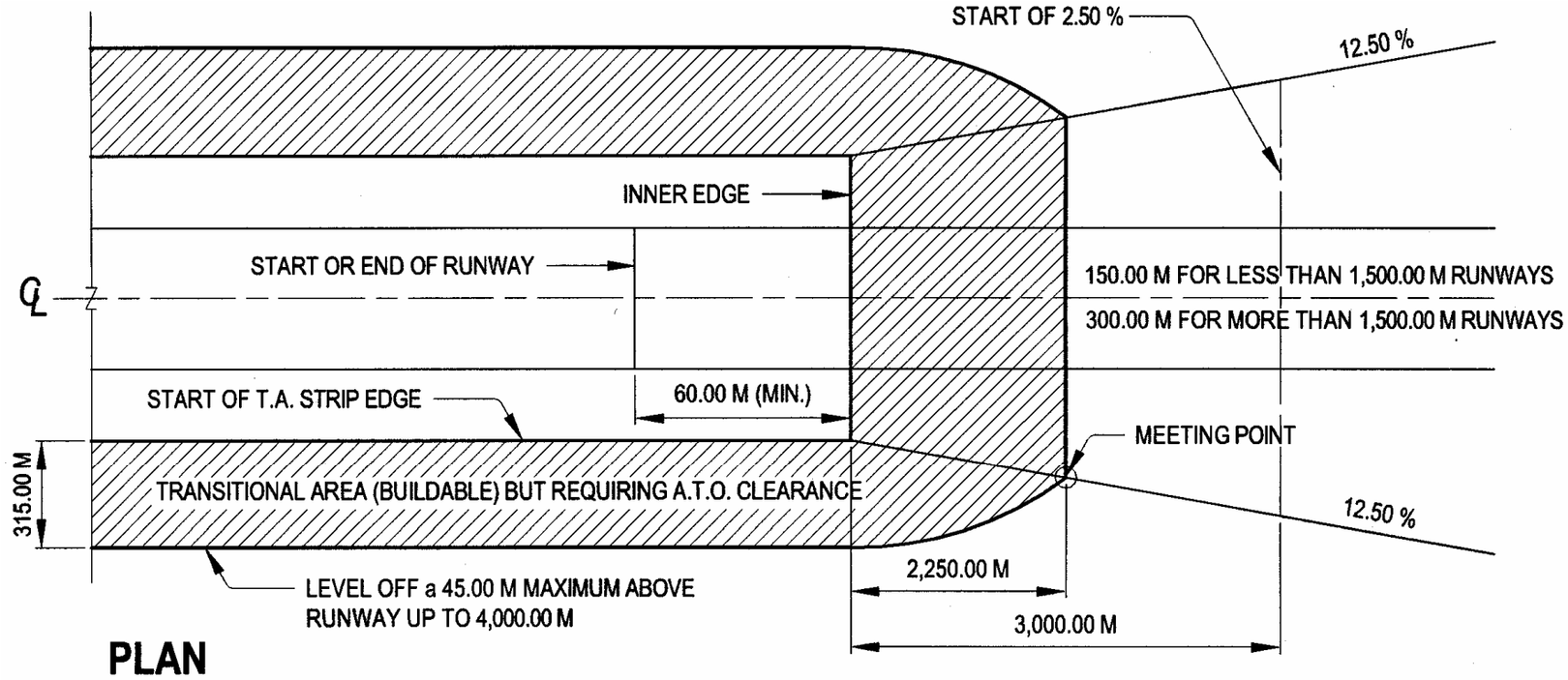
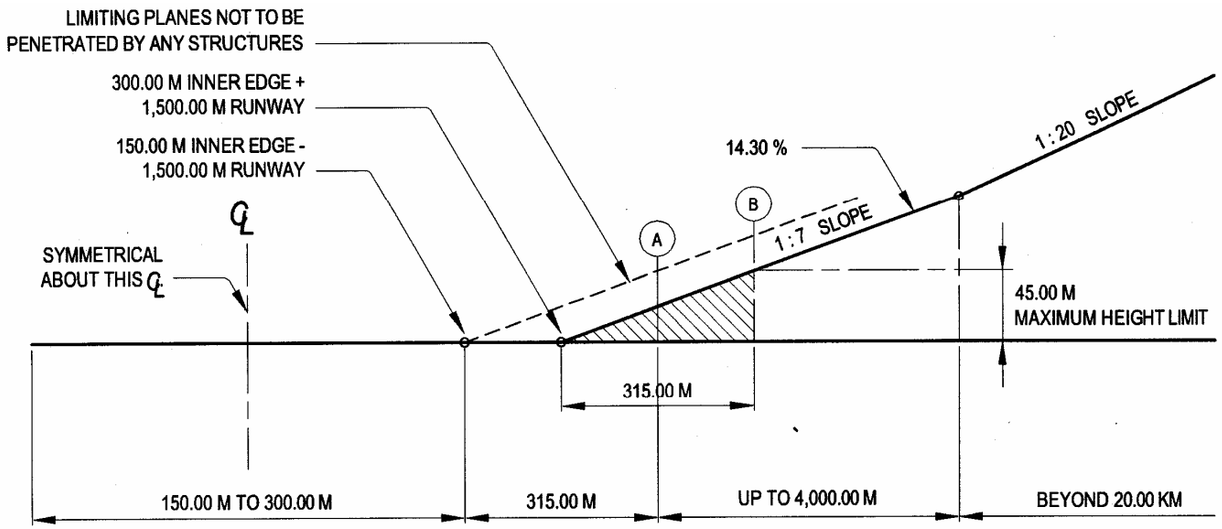


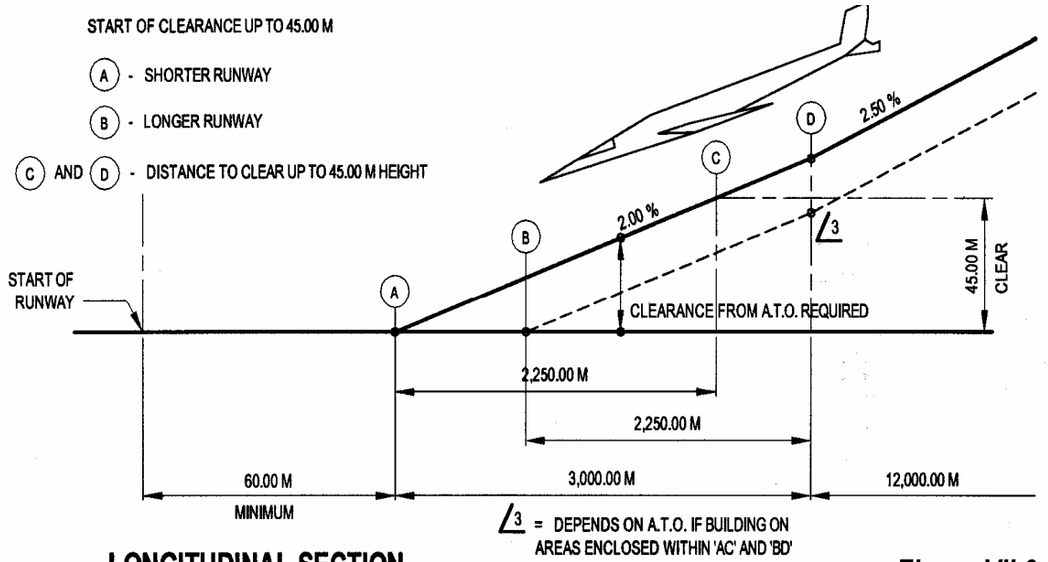
Figure VII.4.
APPROACH / DEPARTURE SURFACE

Annotation. Plan adjustments are necessary for airports with parallel runways and for runways with taxiways.



CROSS SECTION

Figure VII.5.



LONGITUDINAL SECTION

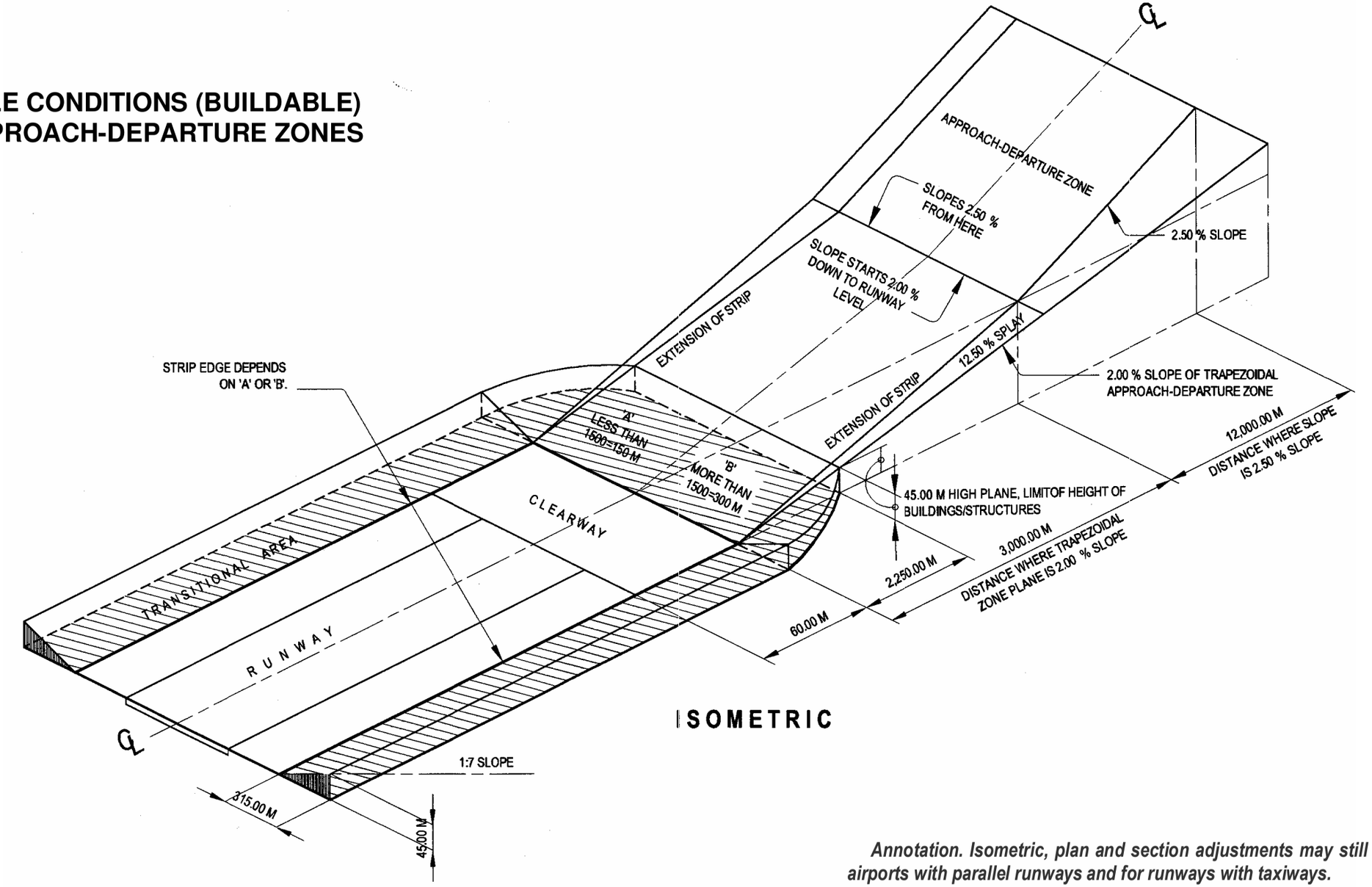
Figure VII.6.

APPROACH / DEPARTURE SURFACE

Annotation. Section adjustments may still be necessary for airports with parallel runways and for runways with taxiways.

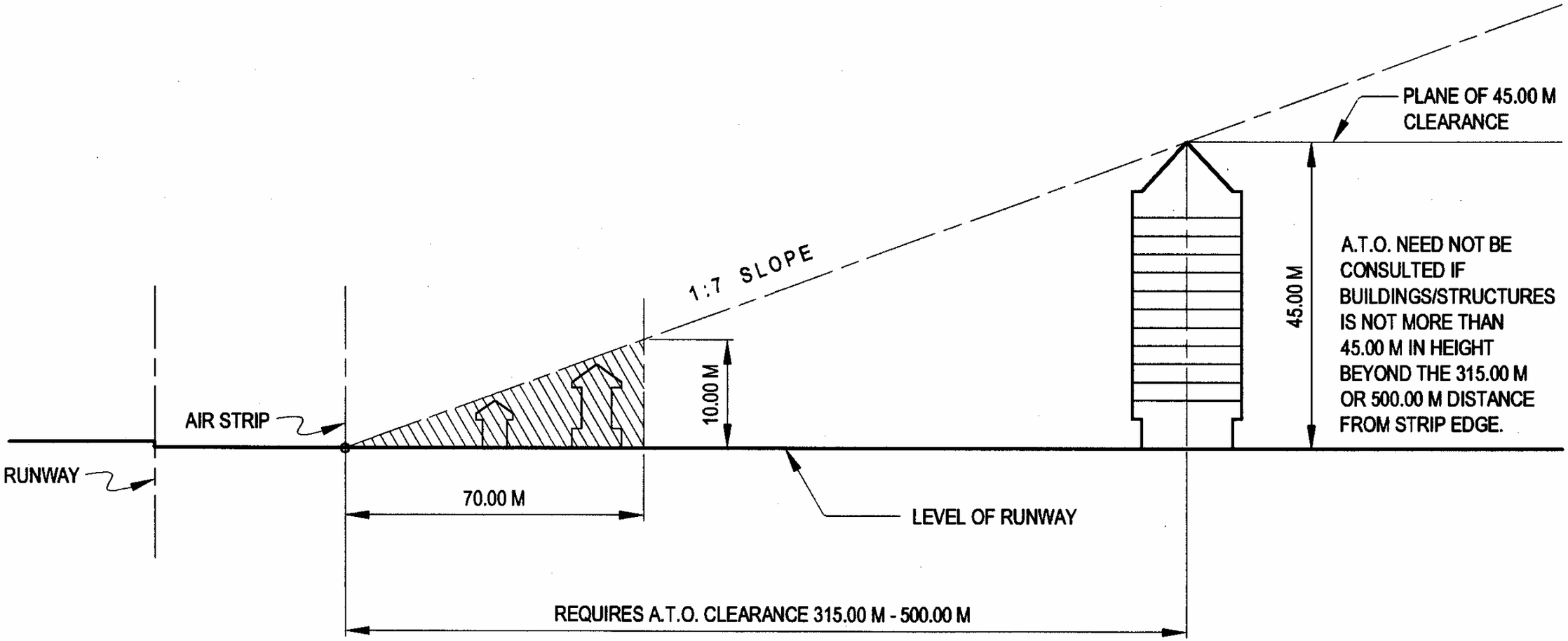
Figure VII.7.

ALLOWABLE CONDITIONS (BUILDABLE) WITHIN APPROACH-DEPARTURE ZONES



Annotation. Isometric, plan and section adjustments may still be necessary for airports with parallel runways and for runways with taxiways.

ALLOWABLE CONDITIONS (BUILDABLE) WITHIN APPROACH – DEPARTURE ZONES



CROSS SECTION

Figure VII.8.

Annotation. Adjustments may still be necessary for airports with parallel runways and for runways with taxiways.

4. **Parking** Slot, Parking Area and Loading/Unloading Space Requirements

a. The parking slot, parking area and loading/unloading space requirements listed hereafter are generally the minimum off-street cum on-site requirements for specific uses/occupancies for buildings/structures, i.e., all to be located outside of the road right-of-way (**RROW**).

b. The size of an **average** automobile (car) parking slot must be computed at 2.50 meters by 5.00 meters for perpendicular or diagonal parking and at 2.15 meters by 6.00 meters for parallel parking. A standard truck or bus parking/loading slot must be computed at a minimum of 3.60 meters by 12.00 meters. An articulated truck slot must be computed at a minimum of 3.60 meters by 18.00 meters which should be sufficient to accommodate a 12.00 meters container van or bulk carrier and a long/hooded prime mover. A *jeepney* or shuttle parking/loading/unloading slot must be computed at a minimum of 3.00 meters by 9.00 meters. The parking slots shall be drawn to scale and the total number of which shall be indicated on the plans and specified whether or not parking accommodations are attendant-managed.

c. The parking space ratings listed below are minimum off-street/**off-RROW** cum on-site requirements for specific uses/occupancies for buildings/structures, i.e., all to be located outside of the road right-of-way (**RROW**):

Table VII.4. Minimum Required Off-Street (Off-RROW) cum On-Site Parking Slot, Parking Area and Loading/Unloading Space Requirements by Allowed Use or Occupancy

Specific Uses or of Occupancy (refer to Section 701 of this Rule)	**Reference Uses** or Character of Occupancies or Type of **Buildings**/Structures	**Minimum** Required **Parking** Slot, Parking Area and Loading Space Requirements
1. GROUP A		
1.1. Division A-1	Single family and multi-family dwelling units [whether single-detached (**R-1**), single-attached or duplex (**R-2**) or rowhouse (**R-3**)], each privately owned or lots with dwelling units located in residential subdivisions/ developments regardless of number of hectares/dwelling units	Units with a lot measuring 32.00 to 72.00 sq. meters and/or with a dwelling unit having a gross floor area of from 18.00 to 22.00 sq. meters - a minimum of one (1) pooled off-street cum on-site parking slot* for every six (6) lots or lots with dwelling units;

		Units with a lot measuring 50.00 to 96.00 sq. meters and/or with a dwelling unit having a gross floor area of from 30.00 to 42.00 sq. meters - a minimum of one (1) pooled off-street cum on-site parking slot* for every four (4) lots or lots with dwelling units;
	Note: ** The parking slot requirements shall be an integral part of buildings/structures and any parking slot provided outside the building/structure will be quantified only as buffer parking.*	
Specific Uses or of Occupancy (refer to Section 701 of this Rule)	**Reference Uses** or Character of Occupancies or Type of **Buildings**/Structures	**Minimum** Required **Parking** Slot, Parking Area and Loading Space Requirements
		Unit with a lot measuring 100.00 to 120.00 sq. meters and/or with a dwelling unit having a minimum gross floor area of from 30.00 to 42.00 sq. meters - a minimum of one (1) off-street cum on-site parking slot* for each lot or lot with dwelling unit;
		Unit with a lot measuring more than 120.00 sq. meters and/or with a dwelling unit having a minimum gross floor area of more than 42.00 sq. meters - minimum of one (1) off-street cum on site parking slot* for each lot or lot with dwelling unit;
	Units located in townhouse (**R-4**) buildings/structures regardless of number of storeys	Units with a gross floor area of 50.00 sq. meters - provide one (1) pooled parking slot* for every two (2) units or fraction thereof, i.e., with more than two (2) but not less than four (4) units;

		Unit with a gross floor area above 50.00 up to 150.00 sq. meters - provide one (1) parking slot* for each unit;
		Unit with a gross floor area above 150.00 sq. meters - provide two (2) parking slots* for each unit.
	Indigenous family dwelling units; each privately owned	At least one (1) car parking slot* for every six (6) dwelling units and which shall be provided outside of the **RROW** (within property or lot lines only)
	Note: ** The parking slot requirements shall be an integral part of buildings/structures and any parking slot provided outside the building/structure will be quantified only as buffer parking.* ***The following prohibitions on parking slots:* *1. Conversion/change of use/occupancy.* *2. Reduction of parking spaces.* *3. Encroachment on RROW.* *4. Public utility and bulky vehicles.*	

Specific Uses or of Occupancy (refer to Section 701 of this Rule)	**Reference Uses** or Character of Occupancies or Type of **Buildings**/Structures	**Minimum** Required **Parking** Slot, Parking Area and Loading Space Requirements
1.2. Division A-2	Multi-family dwelling units located in residential condominium (**R-5**) buildings/structures regardless of number of storeys	Units with a gross floor area of from 18.00 to 22.00 sq. meters - provide one (1) pooled parking slot* for every eight (8) units or for a fraction thereof, e.g., another slot* shall be provided if there are more than eight (8) units but less than sixteen (16) units, etc.;
		Units with a gross floor area up to 50.00 sq. meters - provide one (1) pooled parking slot* for every six (6) medium cost units or for a fraction thereof, e.g., another slot* shall be provided if there are more than six (6) but less than twelve (12) medium cost units, etc., or provide one (1) parking slot* for each open market unit (as defined under the **revised IRR** of **PD 957**);
		Units with a gross floor area above 50.00 sq. meters up to 100.00 sq. meters - provide one (1) pooled parking slot* for every four (4) medium cost units, or provide one (1) parking slot* for each open market unit (as defined under the **revised IRR** of **PD 957**); and
		Units with a gross floor area of more than 100.00 sq. meters – one (1) parking slot* for each unit.
2. GROUP B		
2.1. Division B-1	Hotels	One (1) car parking slot for every three (3) rooms or a fraction thereof for highly urbanized areas and one (1) car parking slot for every seven (7) rooms or a fraction thereof for all other areas; and two (2) tourist bus parking slots for each hotel; provide at least one (1) loading slot for articulated truck or vehicle
	Note: **The parking slot requirements shall be an integral part of buildings/structures and any parking slot provided outside the building/structure will be quantified only as buffer parking.*	

Specific Uses or of Occupancy (refer to Section 701 of this Rule)	**Reference Uses** or Character of Occupancies or Type of Buildings/Structures	**Minimum** Required **Parking** Slot, Parking Area and Loading Space Requirements
		A 12.00 meters long container van plus 4.00 meter length for the prime mover and one (1) loading slot for a standard truck for every 5,000.00 sq. meters of gross floor area (GFA); and provide truck maneuvering area outside of the RROW (within property or lot lines only)
	Residential hotels and apartels	One (1) car slot for every five (5) units or a fraction thereof; and one (1) bus parking slot for every sixty (60) rooms/units or a fraction thereof
	Motels	One (1) car slot for every unit
	Pension/boarding/lodging houses	One (1) car slot for every twenty (20) beds
3. GROUP C		
3.1. Division C-1	Bowling alleys	One (1) car slot for every four (4) alleys
3.2. Division C-2	Churches and similar places of worship	One (1) car slot and one (1) *jeepney*/shuttle slot for every 50.00 sq. meters of congregation area
	Public elementary, secondary, vocational and trade school (GI)	One (1) off-street cum on-site parking slot for every ten (10) classrooms; and one (1) off-RROW (or off-street) passenger loading space that can accommodate two (2) queued jeepney/shuttle slots
	Private elementary, secondary, vocational and trade school (GI)	One (1) car slot for every five (5) classrooms; one (1) off-RROW (or off-street) passenger loading space that can accommodate two (2) queued *jeepney*/shuttle slots; and one (1) school bus slot for every one hundred (100) students

	Note: ** The parking slot requirements shall be an integral part of buildings/structures and any parking slot provided outside the building/structure will be quantified only as buffer parking.* *** The following prohibitions on parking slots:* *1. Conversion/change of use/occupancy.* *2. Reduction of parking spaces.* *3. Encroachment on RROW.* *4. Public utility and bulky vehicles.*

Specific Uses or of Occupancy (refer to Section 701 of this Rule)	**Reference Uses** or Character of Occupancies or Type of **Buildings**/Structures	**Minimum** Required **Parking** Slot, Parking Area and Loading Space Requirements
	Public colleges and universities (GI)	One (1) car slot for every five (5) classrooms; one (1) off-RROW (or off-street) passenger loading space that can accommodate two (2) queued *jeepney*/shuttle slots; and one (1) school bus slot for every two hundred (200) students
	Private colleges and universities (GI)	One (1) car slot for every three (3) classrooms; one (1) off-RROW (or off-street) passenger loading space that can accommodate two (2) queued *jeepney*/shuttle slots; and one (1) school bus slot for every one hundred (100) students
4. GROUP D		
4.1. Division D-1	Mental hospitals, sanitaria and mental asylums and like uses	One (1) off-street cum on-site car parking slot for every twenty five (25) beds; and one (1) off-RROW (or off-street) passenger loading space that can accommodate two (2) queued *jeepney*/shuttle slots

4.2. Division D-2	Public hospital	One (1) off-street cum on-site car parking slot for every twenty five (25) beds; and one (1) off-RROW (or off-street) passenger loading space that can accommodate two (2) queued *jeepney*/shuttle slots; provide at least one (1) loading slot for articulated truck or vehicle (a 12.00 meter long container van plus 6.00 meter length for a long/hooded prime mover) and one (1) loading slot for a standard truck for every 5,000.00 sq. meters of gross floor area (GFA); and provide truck maneuvering area outside of the RROW (within property or lot lines only)
	Note: ** The parking slot requirements shall be an integral part of buildings/structures and any parking slot provided outside the building/structure will be quantified only as buffer parking.* ***The following prohibitions on parking slots:* *1. Conversion/change of use/occupancy.* *2. Reduction of parking spaces.* *3. Encroachment on RROW.* *4. Public utility and bulky vehicles.*	

Specific Uses or of Occupancy (refer to Section 1.3 of this Rule)	**Reference Uses** or Character of Occupancies or Type of **Buildings**/Structures	**Minimum** Required **Parking** Slot, Parking Area and Loading Space Requirements
	Private hospital	One (1) off-street cum on-site car parking slot for every twelve (12) beds; and one (1) off-RROW (or off-street) passenger loading space that can accommodate two (2) queued *jeepney*/shuttle slots; provide at least one (12) loading slot for articulated truck or vehicle (a 12.00 meters long container van plus 6.00 meters length for a long/hooded prime mover) and one (1) loading slot for a standard truck for every 5,000.00 sq. meters of **GFA**; and provide truck maneuvering area outside of the RROW (within property or lot lines only)
4.3. Division D-3	Nursing homes for ambulatory patients, school and home, for children over kindergarten age, orphanages and the like	One (1) off-street cum on-site car parking slot for every twelve (12) beds; and one (1) off-RROW (or off-street) passenger loading space that can accommodate two (2) queued *jeepney*/shuttle slots
5. GROUP E		
5.1. Division E-1	Terminals, Inter-modals or Multi-modals, Depots and the like (UTS)	One (1) car slot for every 500.00 sq. meters of gross floor area or for a fraction thereof; and one (1) off-RROW (or off-street) passenger loading space that can accommodate two (2) queued jeepney/shuttle slots or two (2) queued bus slots whichever is applicable; maneuvering area of buses, trucks and like vehicles shall be outside of the RROW (within property or lot lines only)
	Note: ** The parking slot requirements shall be an integral part of buildings/structures and any parking slot provided outside the building/structure will be quantified only as buffer parking.*	

Specific Uses or of Occupancy (refer to Section 1.3 of this Rule)	**Reference Uses** or Character of Occupancies or Type of **Buildings**/Structures	**Minimum** Required **Parking** Slot, Parking Area and Loading Space Requirements
	Transit Stations and the like (UTS)	Provide on each side of the RROW one (1) off-RROW (or off-street) passenger loading space that can accommodate four (4) queued *jeepney*/shuttle slots or three (3) queued bus slots whichever is applicable; in case of elevated mass transit stations, on-roadway terminals or on-RROW terminals on both sides of the RROW may be considered
5.2. Division E-2	Neighborhood shopping center/supermarket (C-1)	One (1) car slot for every 100.00 sq. meters of shopping floor area
	Public Markets (C)	One (1) customer (buyer) *jeepney*/shuttle parking slot for every 150.00 sq. meters of wet and dry market floor area and one (1) vendor (seller) jeepney/shuttle parking slot or loading space for every 300.00 sq. meters of wet and dry market floor area; and one (1) off-RROW (off-street) terminal that can accommodate at least two (2) jeepneys and six (6) tricycles for every 1,000.00 sq. meters of wet and dry market floor area
	Restaurants, fast-food centers, bars and beerhouses (C)	One (1) car slot for every 30.00 sq. meters of customer area
	Nightclubs, super clubs and theater-restaurants (C)	One (1) car slot for every 20 sq. meters of customer area: and two (2) tourist parking slots for tourist bus parking slots for each theater-restaurant

	Note: ** The parking slot requirements shall be an integral part of buildings/structures and any parking slot provided outside the building/structure will be quantified only as buffer parking.*	
Specific Uses or of Occupancy (refer to Section 1.3 of this Rule)	**Reference Uses** or Character of Occupancies or Type of **Buildings**/Structures	**Minimum** Required **Parking** Slot, Parking Area and Loading Space Requirements
	Nightclubs, super clubs and theater-restaurants (C)	Units with a gross floor area of from 18. 00 to 40. 00 sq. meters – provide one (1) pooled parking slot* for every two (2) units or for a fraction thereof.
	Units located in office, commercial or mixed-use condominium buildings/ structures regardless of number of storeys	Unit with a gross floor area of from 41. 00 to 70. 00 sq. meters –provide one (1) parking slot* for each unit; and
		Unit with a gross floor area of more than 70.00 sq. meters provide one (1) parking slot* for every 70.00 sq. meters and for a fraction thereof;
	Columbarium	One (1) car slot for every compartment niche
5.3. Division E-3	Aircraft hangars, open parking carports and garages, etc.	One (1) car slot for every 1,000.00 sq. meters of gross floor area and one (1) bus slot for every one hundred (100) workers; if number of workers exceed two hundred (200), provide one (1) off-RROW (or off-street) passenger loading space that can accommodate two (2) queued *jeepney*/shuttle slots

6. GROUP F		
6.1. Division F-1	Industrial buildings, mills, breweries, etc. (I)	One (1) car slot for every 1,000.00 sq. meters of gross floor area and one (1) bus slot for every one hundred (100) workers; if number of workers exceed two hundred (200), provide one (1) off-RROW (or off-street) passenger loading space that can accommodate two (2) queued *jeepney*/shuttle slots; provide at least one (1) loading slot for
	Note: ** The parking slot requirements shall be an integral part of buildings/structures and any parking slot provided outside the building/structure will be quantified only as buffer parking.*	
Specific Uses or of Occupancy (refer to Section 1.3 of this Rule)	**Reference Uses** or Character of Occupancies or Type of Buildings/Structures	**Minimum** Required **Parking** Slot, Parking Area and Loading Space Requirements
		truck or vehicle (a 12.00 meter long container van plus 6.00 meters length for a long/hooded prime mover) and one (1) loading slot for a standard truck for every 5,000.00 sq. meters of GFA; and provide truck maneuvering area outside of the RROW (within property or lot lines only)

7. GROUP G		
7.1. Division G-1	Industrial buildings, factories, manufacturing establishments, mercantile buildings, warehouses, storage bins, power and water generation/distribution facilities	One (1) car slot for every 1,000.00 sq. meters of gross floor area and one (1) bus slot for every one hundred (100) workers; if number of workers exceed two hundred (200), provide one (1) off-RROW (or off-street) passenger loading space that can accommodate two (2) queued *jeepney*/shuttle slots; provide at least one (1) loading slot for articulated truck or vehicle (a 12.00 meter long container van plus 6.00 meters length for a long/ hooded prime mover) and one (1) loading slot for a standard truck for every 5,000.00 sq. meters of GFA; and provide truck maneuvering area outside of the RROW (within property or lot lines only)
7.2. Division G-2	-do-	-do-
7.3. Division G-3	-do-	-do-
7.4. Division G-4	-do-	-do-
7.5. Division G-5	-do-	-do-
	Note: ** The parking slot requirements shall be an integral part of buildings/structures and any parking slot provided outside the building/structure will be quantified only as buffer parking.* ***The following prohibitions on parking slots:* *1. Conversion/change of use/occupancy.* *2. Reduction of parking spaces.* *3. Encroachment on RROW.* *4. Public utility and bulky vehicles.*	

Specific Uses or of Occupancy (refer to Section 1.3 of this Rule)	**Reference Uses** or Character of Occupancies or Type of **Buildings**/Structures	**Minimum** Required **Parking** Slot, Parking Area and Loading Space Requirements
8. GROUP H		
8.1. Division H-1	Public recreational assembly buildings such as theaters/cinemas, auditoria, etc.	One (1) car slot and one (1) *jeepney*/shuttle slot for every 50.00 sq. meters of spectator area; and one (1) bus parking slot for every two hundred (200) spectators
8.2 Division H-2	Dance halls, cabarets, ballrooms, skating rinks and cockfighting arenas, etc.	-do-
8.3 Division H-3	Dance halls, ballrooms, skating rinks, etc.	-do-
8.4 Division H-4	Covered amusement parks, amusement and entertainment complexes, etc.	one (1) car slot for every 50.00 sq. meters of gross floor area
	Clubhouses, beach houses and the like	one (1) slot for every 100.00 sq. meters of gross floor area
9. GROUP I		
9.1. Division I-1	Recreational or similar public assembly buildings such as stadia, sports complexes, convention centers, etc.	One (1) car slot and one (1) *jeepney*/shuttle slot for every 50.00 sq. meters of spectator area; and one (1) bus parking slot for every two hundred (200) spectators.
10. GROUP J		
10.1. Division J-1	Agriculture-related uses or occupancies (A)	Not required if located outside urbanized area; if located within urbanized area, provide one (1) car slot for every 1,000.00 sq. meters of gross floor area and one (1) bus slot for every one hundred (100) workers; if number of workers exceed two hundred (200), provide one (1) off-RROW (or off-street) passenger loading space that can accommodate two (2) queued *jeepney*/shuttle slots; provide at least one (1) loading slot for articulated truck or vehicle

	Note: ** The parking slot requirements shall be an integral part of buildings/structures and any parking slot provided outside the building/structure will be quantified only as buffer parking.* ***The following prohibitions on parking slots:* *1. Conversion/change of use/occupancy.* *2. Reduction of parking spaces.* *3. Encroachment on RROW.* *4. Public utility and bulky vehicles.*	
Specific Uses or of Occupancy (refer to Section 1.3 of this Rule)	**Reference Uses** or Character of Occupancies or Type of **Buildings**/Structures	**Minimum** Required **Parking** Slot, Parking Area and Loading Space Requirements
		(a 12.00 meter long container van plus 6.00 meters length for a long/hooded prime mover) and one (1) loading slot for a standard truck for every 5,000.00 sq. meters of GFA; and provide truck maneuvering area outside of the RROW (within property or lot lines only)
10.2. Division J-2	Other uses not classified in previous sections (PUD, etc.)	Provide parking requirements stipulated for most similar or most related uses/occupancies
	Note: ** The parking slot requirements shall be an integral part of buildings/structures and any parking slot provided outside the building/structure will be quantified only as buffer parking.*	

d. In computing for parking slots, a **fraction** of 50% and above shall be considered as one (1) car parking slot to be provided. In all cases however, a minimum of one (1) car parking slot shall be provided unless otherwise allowed under this Rule.

i. **Multi-floor parking garages may serve the 20% parking requirements of the building**/structure **within 200.00 meter radius**, provided at least 80% of the parking requirements are complied with and integrated in the building design.

ii. Special Provision on the Handicapped: For buildings/structures to be provided with features intended for the use or occupancy of the handicapped, the minimum provisions of *Batas Pambansa* (***BP***) *Bilang* 344 and its Implementing Rules and Regulations (IRR) with respect to parking shall be strictly observed.

e. Allowed **Off-RROW**/Off-Street cum Off-Site **Parking** Provision:

i. In addition to on-site cum **off-RROW** (off-street) parking provisions mandated under this Rule, off-site cum off-street parking facilities may be allowed and considered part of a project provided that such facilities specifically consist of reserved or leased parking slots within a **permanent parking building**/structure and not in a vacant parking lot or parking structure/space for a commercial development and provided further that such parking slots are located no more than 100.00 meters away from a residential building project or are located **no more than 200.00 meters away** from an office or commercial building project.

ii. Direct access of parking/loading/utility slots and terminals to the RROW shall be generally disallowed to prevent the usage of the RROW as a maneuvering area.

iii. **Traffic generating buildings** such as shopping malls or similar facilities that have very high volumes of pedestrian and vehicular traffic may be located at major intersections or **within 100.00 meters** of such intersections, provided that the distance between the street curb of the ingress/egress of such a commercial lot/property (nearest the intersection) and the straight curb of the intersection shall not be less than 50.00 meters. (***Fig. VII.9.***)

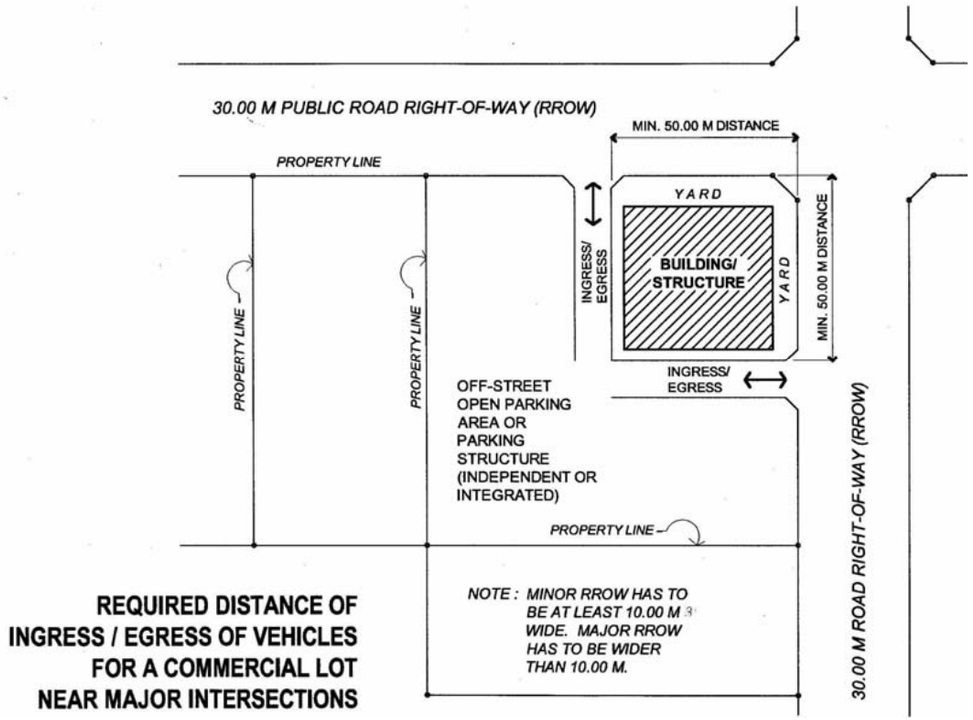


Fig.VII.9.

Annotation. For larger developments and traffic generating buildings as well as parking structures, a minimum 100.00 m distance should be the standard to be considered.

iv. For **R-2, R-3, GI, C, C-2** and **C-3** uses or occupancies, front yards abutting RROW are not to be used for long-term off-street parking. Due to the very public nature of these uses (high vehicular and pedestrian concentrations), the front yard (a transition space between the RROW and the building/structure) shall be used exclusively for driveways, off-RROW loading spaces, short-term off-RROW parking and landscaping (hardscape and softscape) treatment. Temporary or short-term off-street parking, particularly on driveways, shall preferably be only for visitors to these buildings/structures.

v. For **Basic R-2 and Basic R-3** uses or occupancies (for single family dwelling units only), up to 50% of the front yard abutting the RROW may be paved/hardscaped, i.e., converted into a courtyard for carport use. Such use shall not be permitted in all other uses or occupancies.

SECTION 708. Minimum Requirements for Group A Dwellings

1. Dwelling Location and Lot Occupancy
   The dwelling shall occupy not more than 90% of a corner lot and 80% of an inside lot, and subject to the provisions on Easements of Light and View of the **Civil Code** of Philippines, shall be **at least 2.00 meters** from the property line.

2. Light and Ventilation
   Every dwelling shall be so constructed and arranged as to provide **adequate light and ventilation** as provided under **Section 805 to Section 811 of the Code**.

3. Sanitation
   Every dwelling shall be provided with **at least one sanitary toilet** and adequate washing and drainage facilities.

4. Foundation
   Footings shall be of sufficient size and strength to support the load of the dwelling and shall be **at least 250 millimeters thick and 600 millimeters below the surface of the ground**.

5. Post
   The dimensions of wooden posts shall be those found in ***Table VII.5.***: Dimensions of Wooden Posts. Each post shall be anchored to such footing by straps and bolts of adequate size.

Table VII.5.*: Dimensions of Wooden Posts or *Suportales

Type Building	Maximum Height of 1st Floor (meters)	Maximum Height Total (meters)	Maximum Spacing of Post (meters)	Required Maximum Finished Size of *Suportales* (millimeters)
1-Storey Shed	-	4.00	3.50	100 X 100
1-Storey Shed	-	3.00	4.00	100 X 100
1-Storey Shed	-	5.00	4.00	125 X 125
1-Storey House or Chalet	1.00 - 3.00	5.50	3.60	125 X 125
2-Storey House	3.00	6.00	3.00	125 X 125
2-Storey House	4.50	7.00	4.00	120 X 120
2-Storey House	5.00	8.00	4.50	175 X 175
2-Storey House	-	9.00	4.50	200 X 200

Logs or tree trunk *suportales* may be used as post in indigenous traditional type of construction, *provided* that these are of such sizes and spacing as to sustain vertical loading equivalent at least to the loading capacities of the posts and spacing in this Table.

6. Floor
   The live load of the first floor shall be at least 200 kilograms per sq. meter and for the second floor, at least 150 kilograms per sq. meter.

7. Roof
   The wind load for roofs shall be at least 120 kilograms per sq. meter for vertical projection.

8. Stairs
   Stairs shall be at least 750 millimeters in clear width, with a rise of 200 millimeters and a minimum run of 200 millimeters.

9. Entrance and Exit
   There shall be at least one entrance and another one for exit.

10. Electrical Requirements
    All electrical installations shall conform to the requirements of the Philippine Electrical Code.

11. Mechanical Requirements
    Mechanical systems and/or equipment installations shall be subject to the requirements of the Philippine Mechanical Engineering Code.

SECTION 709. Requirements for Other Group Occupancies

Subject to the provisions of the **Code**, the Secretary shall promulgate rules and regulations for each of the other Group Occupancies covering: allowable construction, height, and area; location on property, exit facilities, light and ventilation, sanitation; enclosures of vertical openings; fire extinguishing systems; and special hazards.

A. DETERMINING BUILDING BULK

1. ***General.*** Building bulk **(a volume quantity) shall be generally determined by the application of the** Floor-Lot Area Ratio **(**FLAR**), vertically projecting the Allowable Maximum Building Footprint (**AMBF**), establishing the Outermost Faces of Building (**OFB**) and quantifying the Allowable Maximum Volume of Building (**AMVB**). The building bulk may be ultimately governed by the width of the RROW and other applicable provisions for light and ventilation (including incremental setbacks as a result of satisfying natural light and ventilation requirements for RROW and front yards as partly shown in** *Table VII.G.1.* **hereafter).**

2. **Application of the** FLAR**. The** FLAR **(***Table VII.G.1.***) shall be the primary or initial determinant of the building bulk.**

Table VII.G.1. Reference Table of Floor to Lot Area Ratio (FLAR) Designations/Rights

Type of Use or Occupancy	Type of **Building**/Structure	**FLAR Designation/Rights**
Residential	Residential 1 (R-1)	1.50 (at a 3-storey or 10.00 m BHL)
	Residential 2 (R-2)	
	a. Basic R-2	1.30 up to 1.50 (at a 3-storey or 10.00 m BHL)
	b. Maximum R-2	2.10 up to 3.00 (at a 5-storey or 15.00 m BHL)
	Residential 3 (R-3)	
	a. Basic R-3	1.80 up to 2.10 (at a 3-storey or 10.00 m BHL)
	b. Maximum R-3	7.10 up to 8.10 (at a 12-storey or 36.00 m BHL)
	Individual Lot for Residential 4 (R-4)/Townhouses	1.60 up to1.80 (at a 3-storey or 10.00 m BHL)

	Residential 5(R-5)/ Condominiums	6.00 up to 9.00 (at an 18-storey or 54.00 m BHL)
Commercial	Commercial 1 (Com-1)	1.70 up to 3.00 (at a 5-storey or 15.00 m BHL)
	Commercial 2 (Com-2)	3.60 up to 9.00 (at a 15-storey or 45.00 m BHL)
	Commercial 3 (Com-3)	9.00 up to 34.00 (at a 60-storey or 180.00 m BHL)
Industrial	Industrial 1 (Ind-1)	1.50 up to 2.50
	Industrial 2 (Ind-2)	2.50 up to 3.00
	Industrial 3 (Ind-3)	3.00 up to 5.00
Institutional	-	2.50
Cultural	-	3.50
Utility/Transportation/Road Rights-of Way (RROW)/ Services	-	2.00 up to 3.00
Parks and Open Recreational Spaces	-	0.50 up to 1.00
Agricultural/Agro-Industrial/Tourism	-	1.80 up to 2.20
Planned Unit Development (PUD)	PUD at a reclamation area close to an operating airport	6.00
	PUD at a reclamation area	6.00 up to 12.00
	PUD at a coastal area	12.00 up to 18.00
	PUD at an inland area very close to an operating airport	6.00 up to 18.00
	PUD at an inland area	9.00 up to 34.00 (at a 60-storey or 180.00 m BHL)
Cemetery	-	0.80
Residential 1	33%	1.50
Residential 2 (Basic), Residential 3 (Basic) and Residential 4	20%	1.25
Residential 2 (Maximum), Residential 3 (Maximum) and Residential 5	16%	1.20

Commercial 1	20%	1.25
Commercial 2	25%	1.33
Commercial 3	33%	1.50
Industrial 1	25%	1.33
Industrial 2 and 3	33%	1.50
Transportation, Utility and Service Areas	33%	1.50
Agricultural and Agro-Industrial	2%-5%	1.03-1.06

3. Establishing the **OFB**. The **OFB** shall be primarily determined by the vertical projections of the outermost faces of the **AMBF** up to a height prescribed by the applicable **BHL**. ***Figure VII.G.1***. shows the determination of the **angular planes** needed to establish the **outer limits for walls and projections** of the proposed building/structure facing RROW and for their corresponding roof configurations. ***Table VII.G.3.*** also shows the recommended angles or slopes for the angular planes originating from the centerline of the **RROW** for **R-1** and **C-3** properties only. Angles or slopes for other permitted uses/occupancies can be extrapolated from the two (2) examples. (***Figs. VIII.G.1.*** and ***VIII.G.2.***)

Table VII.G.3. **Reference Table of Angles/Slopes* To Satisfy Natural Light and Ventilation Requirements Along RROW and Front Yards**

Type of Use or Occupancy	Width of Road Right-of-Way (RROW)	Angle or Slope of Angular Plane for Buildings/Structures Without Projections**		Angle or Slope of Angular Plane for Buildings/Structures With Projections*	
		Angle from Centerline of RROW (Degrees)	Ratio (Slope)	Angle from Centerline of RROW (Degree)	Ratio (Slope)
Residential 1 (R-1)	8.00 meters	46.5	9 m:8.5m (1.06)	50.0	7.5 m:6.25m (1.20)
	10.00 meters	43.0	9 m:9.5m (0.95)	46.0	7.5 m:7.25m (1.03)
	12.00 meters	40.0	9 m:10.5m (0.86)	43.0	7.5 m:8.25m (0.91)
	14.00 meters	38.0	9 m:11.5m (0.78)	39.0	7.5 m:9.25m (0.81)
	16.00 meters	35.0	9 m:12.5m (0.72)	36.0	7.5m:10.25m (0.73)

	18.00 meters	33.5	9 m:13.5m (0.67)	33.0	7.5m:11.25m (0.67)
	20.00 meters	31.0	9 m:14.5m (0.62)	32.0	7.5m:12.25m (0.61)
Commercial 3 (C-3)	8.00 meters	71.0	48 m:16.5m	- (2.90)	-
	10.00 meters	69.5	48 m:17.5m (2.74)	-	-
Commercial 3 (C-3)	12.00 meters	68.0	48 m:18.5m (2.59)	-	-
	14.00 meters	65.5	48 m:19.5m (2.46)	-	-
	16.00 meters	63.6	48 m:20.5m (2.34)	-	-
	18.00 meters	61.7	48 m:21.5m (2.23)	-	-
	20.00 meters	60.0	48 m:22.5m (2.13)	-	-

NOTE:

* To be used for plotting the angular plane from the grade level centerline of the RROW. The angular plane can also help determine the Allowable Maximum Volume of Building (AMVB) as well as the alternative incremental setback lines. Only the uses/occupancies with the least and heaviest developments (R-1 and C-3 respectively are shown). The angles/slopes of angular planes for all other uses/occupancies in between can be extrapolated.

** Considered projections from the outermost face of the building/structure are eaves, medias aguas (canopy for windows), cantilevers, heavy sign supports (only for applications permitted or consistent with the Code) and the like.

4. Quantifying the **AMVB**. The **AMVB** shall be primarily determined by the following:
   a. Multiply the **AMBF** (in square meters) for the lot by the applicable **BHL** (in meters) for the lot to arrive at the initial **AMVB** (in cubic meters); the result of this step is the imaginary footprint prism;
   b. Superimpose the angular plane originating from the center of the RROW on the footprint prism; this shall result in the reduction of the initially computed building volume due to the application of incremental setbacks and of roof configuration dictated by the angular plane; the result of this step is the **AMVB**;

c. To crosscheck the AMVB against the Allowable Maximum TGFA (separately determined), convert the AMVB into its approximate area equivalent (in sq. meters) by dividing it with the BHL. Before converting the AMVB to its area component, check for the effects of the incremental setbacks on the TGFA for each floor of the proposed building/structure.

B. Application of Development Controls (DC)
(To Determine the Maximum Development Potential of a Lot)

1. *Sizing the Building/Structure*. To determine the allowed/appropriate building bulk (volume), the following series of steps using the **DC** under this **Guideline** and other Rules in the **Code** shall be followed:
   a. Refer to **Rule VIII** for prescribed setbacks, yards, courts (at grade level), etc. applicable to the lot/project site; determine the extent of firewall construction if required and/or if permitted; refer to **Rule VIII** for the Percentage of Site Occupancy (**PSO**); compute for the Allowable Maximum Building Footprint (**AMBF**) under this Rule by using the formula:

$$\text{Allowable Maximum Building/ Footprint or AMBF (in sq. meters)} = \left[\text{Total Lot Area (TLA)}\right] - \left[\text{Land area required for yards/ courts (prescribed under Rule VIII)}\right] + \left[\text{Additional buildable lot area due to Firewall construction (if permitted under this Rule)}\right]$$

   b. Check resultant building footprint against applicable **PSO** under Reference ***Table VIII.1.*** of Rule VIII and consult existing/applicable and/or duly approved zoning ordinances; to check, use the formula:

$$\text{Percentage of Site Occupancy (PSO)} = \left[\text{Allowable Maximum Building Footprint or AMBF (in square meters)}\right] \div \left[\text{Total Lot Area (TLA)}\right]$$

   c. Compute for the resultant height of the building/structure by referring to Table VII.2. of this Rule and by using the formula:

$$\text{Resultant Height of the building/structure (in meters)} = \left[\text{Building Height Limit or the BHL (as expressed in number of floors/storeys)}\right] \text{X} \left[\text{Desired Floor to Floor Height (in meters)}\right]$$

d. Check the resultant height against the **BHL** (refer to ***Table VII.2.*** of this Rule); if a greater building/structure height is desired, consult existing zoning ordinances or other applicable laws for possible relief; if relief cannot be sought, explore sub-grade (basement level) solutions or reduce the desired floor to floor heights in case it is greater than 3.00 meters;

e. Establish the Outermost Faces of Building (**OFB**) to help determine the Allowable Maximum Volume of Building (**AMVB**) and to satisfy natural light and ventilation requirements for RROW and front yards abutting RROW; an imaginary prism within which the proposed building/structure must fit shall result, unless specifically allowed under the **Code**; thereafter, establish the Outermost Limits of Building Projections (**OLBP**) to fully comply with other applicable light and ventilation provisions;

f. Initially determine building bulk by computing for the maximum allowable Gross Floor Area (**GFA**) for the building/structure using the formula:

$$\text{Gross Floor Area (GFA) of the building/structure (in square meters)} = \left[\text{Total Lot Area (TLA)}\right] \times \left[\text{Recommended Floor to Lot Area Ratio (FLAR)*}\right]$$

***NOTE**: * Refer to **Table VII.G.1.** of this **Guideline** (Recommended **FLAR Designations/Rights**) and/or consult existing/applicable and duly-approved zoning ordinances.*

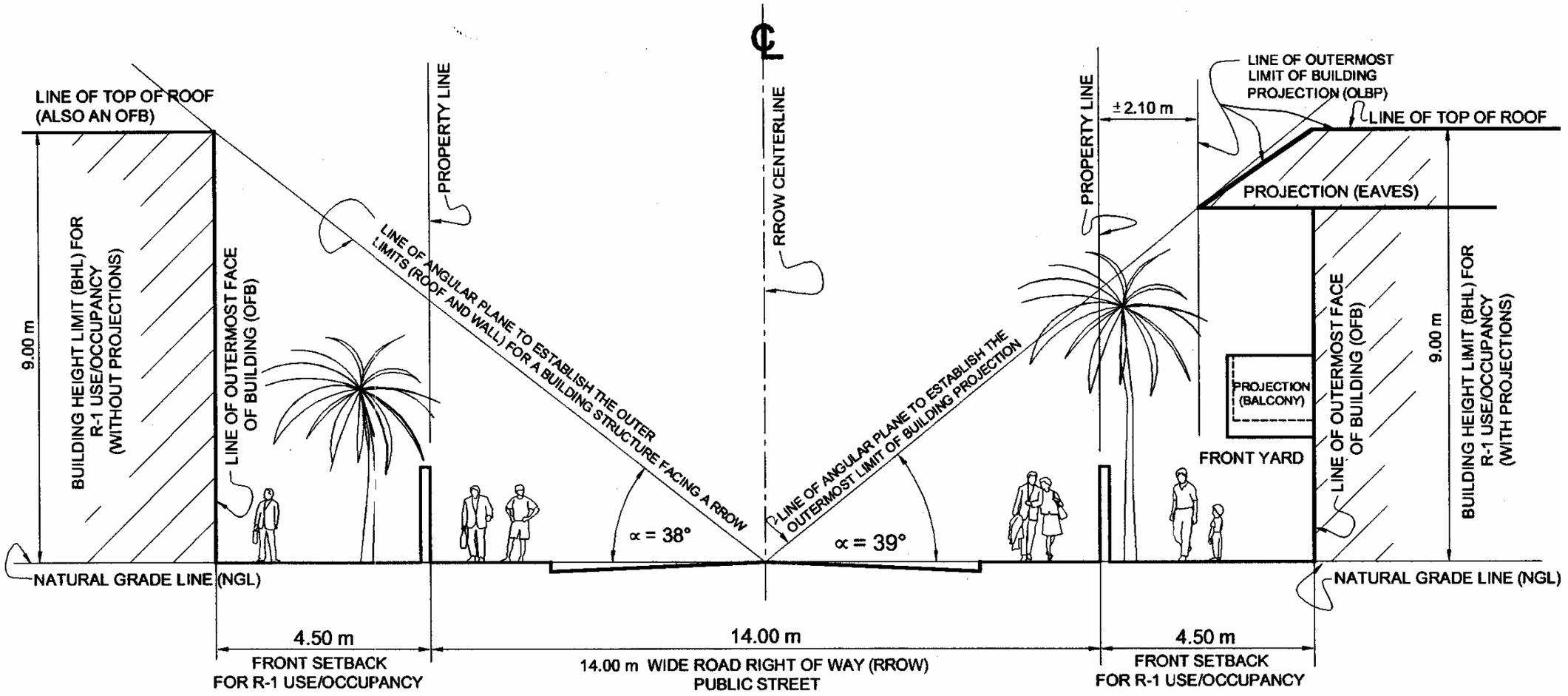
i. GROSS FLOOR AREA (**GFA**) - the total floor space within the perimeter of the permanent external building walls (inclusive of main and auxiliary buildings) such as office areas, residential areas, corridors, lobbies and mezzanine level/s. The **GFA** shall also include building projections which may serve as floors or platforms that are directly connected to/integrated with areas within the building/structure, e.g., balconies (Refer to **Section 1004 of Rule X of this IRR**) and the **GFA** excludes the following:
   (a) Covered areas used for parking and driveways, services and utilities;
   (b) Vertical penetrations in parking floors where no residential or office units are present; and
   (c) Uncovered areas for helipads, air-conditioning cooling towers or air-conditioning condensing unit (ACCU) balconies, overhead water tanks, roof decks, laundry areas and cages, wading or swimming pools, whirlpools or *jacuzzis*, terraces, gardens, courts or plazas, balconies exceeding 10.00 sq. meters, fire escape structures and the like.

g. Determine the Allowable Maximum Total Gross Floor Area (**TGFA**) to approximate building volume using the formula hereafter. In particular, determine the minimum required off-street cum on-site parking provisions, driveways and related access systems, particularly for new developments and/or re-developments whereby provisions of this Guideline shall apply.

Total Gross Floor Area (**TGFA**) of the building/ structure (in sq. meters)	=	Gross Floor Area (**GFA**) of the building/ structure (in square meters)	+	Non-**GFA** areas*	–	All requirements for courts at all floors (above grade) under **Rule VIII** (in square meters)

NOTE: ** Compute for all other areas not covered by the **FLAR** or by the **GFA** using **Table VII.G.2**.*

i. TOTAL GROSS FLOOR AREA (**TGFA**) - the total floor space within the main and auxiliary buildings primarily consisting of the **GFA** and all other enclosed support areas together with all other usable horizontal areas/surfaces above and below established grade level that are all physically attached to the building/s which shall consists of the following:
   (a) Covered areas used for parking and driveways, services and utilities. The **TGFA** specifically excludes provisions for courts above grade level;
   (b) Vertical penetrations in parking floors where no residential or office units are present;
   (c) Uncovered areas for helipads, air-conditioning cooling towers or ACCU balconies, overhead water tanks, roof decks, laundry areas and cages, wading or swimming pools, whirlpool or jacuzzis, terraces, gardens, courts or plazas, balconies exceeding 10.00 sq. meters, fire escape structures and the like; and
   (d) Other building projections which may additionally function as floors or platforms if properly reinforced, e.g., the top surfaces of roof extensions/eaves, sun-breakers, large roofed or cantilevered areas such as *porte cocheres*, canopies and the like.

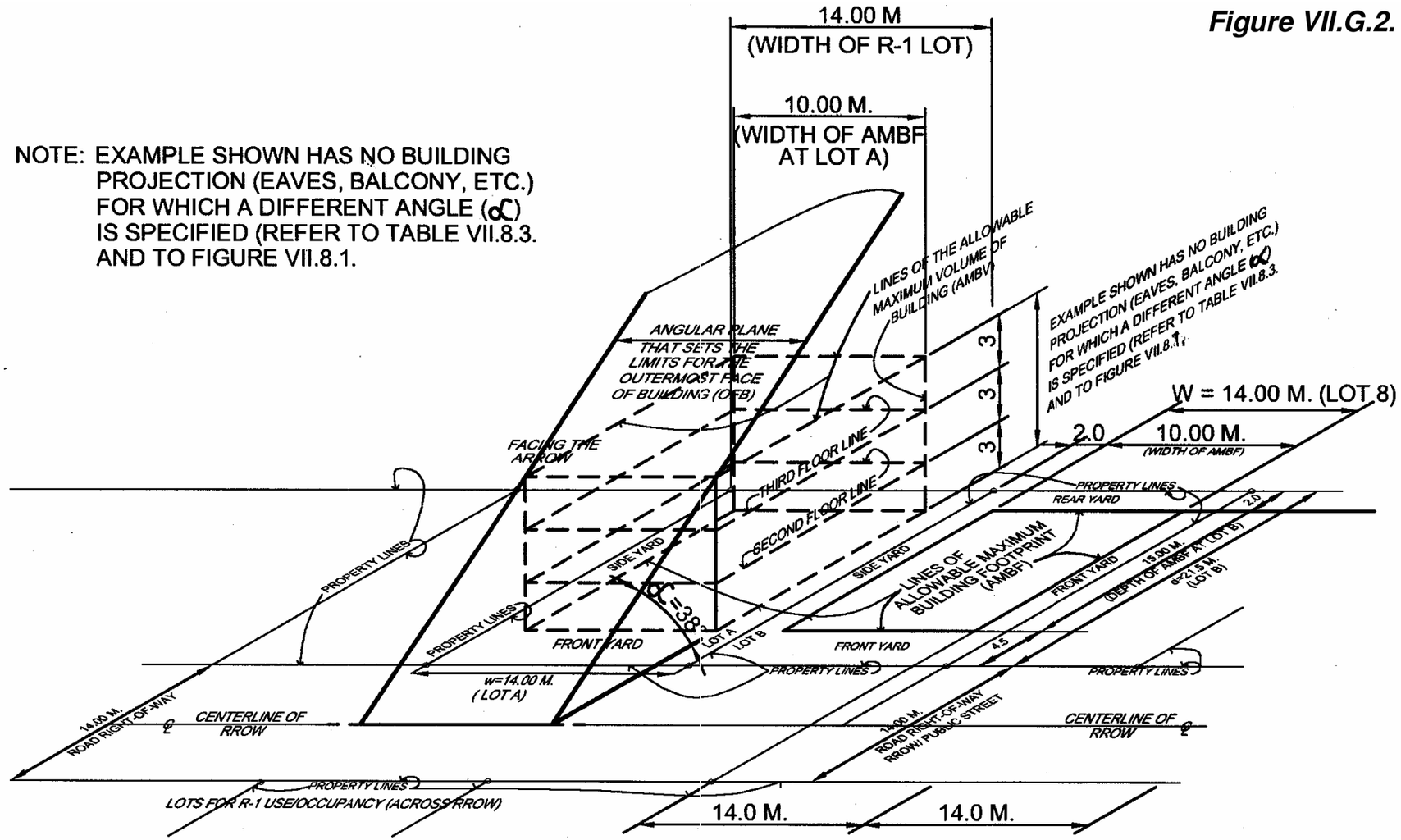


ANGLES FROM CENTERLINE THAT DETERMINE THE OFB AND OLBP OF R-1 BUILDINGS/STRUCTURES (WITH AND WITHOUT PROJECTIONS) ALONG A 14.00 M RROW

Figure VII.G.1.

Annotation. Steeper angles shall result if the RROW is narrower, particularly for higher density and higher intensity building uses/occupancies..

Figure VII.G.2.



ESTABLISHING THE OUTMOST FACES OF BUILDING (OFB) FOR A TYPICAL R-1 USE / OCCUPANCY THROUGH THE USE OF THE AMBF, THE BHL, THE AMVB AND THE ANGULAR PLANE ALONG THE RROW (14.00 M WIDE RROW)

Annotation. Steeper angles shall result if the RROW is narrower, particularly for higher density and higher intensity building uses/occupancies..

C. BUILDINGS AND OTHER ACCESSORY STRUCTURES WITHIN CEMETERIES AND MEMORIAL PARKS

1. Location of Cemeteries/Memorial Parks

   a. Cemeteries and Memorial Parks shall be located in accordance with the approved land use plan of the city/municipality concerned. Prior clearance shall be obtained from the Department of Health, the National Water Resources Council, the Department of Environment and Natural Resources and the Housing and Land Use Regulatory Board.

2. Protective Enclosures

   a. The cemetery shall be totally enclosed by a perimeter fence/wall of strong material, and all gates shall be provided with a strong door and lock. Perimeter wall shall not exceed 3.00 meters in height.

   b. Where a cemetery is enclosed by a solid reinforced concrete wall at least 2.00 meters high, it is allowed to construct tombs, vaults, mausoleums or other types of sepulchres for the dead up to the walls. Otherwise, a clearance of 5.00 meters shall be maintained between the perimeter fence and the nearest interment plot.

3. Interments, Burials and Entombments

   a. For ground interments, there shall be a minimum depth of excavation of 1.50 meters from ground level to base of excavation. However, if concrete vaults are used, the minimum depth of excavation from base of vault to ground level shall be 1.00 meter, depending on the depth of ground water table.

   b. Ground interments shall be allowed only in designated graveyard areas of the cemetery and may be provided with suitable markers, headstones or memorials.

   c. Vaults for tombs and mausoleums for aboveground interments shall be of solid reinforced concrete. Concrete hollow blocks or any unit masonry construction of ceramics, adobe or the like shall not be allowed for the construction of above-ground vaults; tombs or mausoleums. Mausoleums may be provided with ossuaries and/or cineraria along the interior walls.

   d. Multi-level interment niches shall only be of solid reinforced concrete construction, of not less than 150 millimeters thickness in which case they may be allowed to abut walls of the cemetery, *provided*, the walls are of solid reinforced concrete construction. Concrete hollow blocks, or any unit masonry construction of ceramics, adobe or the like shall not be allowed.

   e. Before construction is started on any mausoleum, canopy over a tomb, or multi-level niches, a building permit shall be secured therefor from the OBO**.**

f. Horizontal divisions of columbaria shall be of reinforced concrete of at least 50 millimeters thickness. Vertical divisions may be of concrete hollow blocks of at least 100 millimeters thickness, in which case, cement mortar shall be applied evenly to present a non-porous surface. Minimum dimensions of individual cinerarium shall be 300 millimeters by 300 millimeters by 460 millimeters. Cinerary remains shall be placed inside tightly sealed urns.

4. Accessory Structures

a. A chapel with a floor area of at least 50.00 sq. meters shall be constructed at a convenient location within the cemetery where funeral ceremonies may be held, and incidentally serve as haven for funeral participants against sun and rain.

b. Wake chaplets with a minimum area of 50.00 sq. meters for thirty (30) persons and at least 1.60 sq. meters for each additional person may be provided.

c. Administrative Office - a 64.00 sq. meters lot shall be allocated for an administration building office for memorial parks with an area of above one (1) hectare.

d. Electrical Power Supply - Distances of lampposts for street lighting shall be placed at a maximum of 100.00 meters or as prescribed by the power firm servicing the area. Utility poles shall be installed along sides of streets and pathways.

e. Parking Area - Parking area equivalent to a minimum of five 5% of the gross area of memorial park/cemetery shall be provided over and above the required parking area/facility for any structures to be constructed within the premises of the memorial park/cemetery.

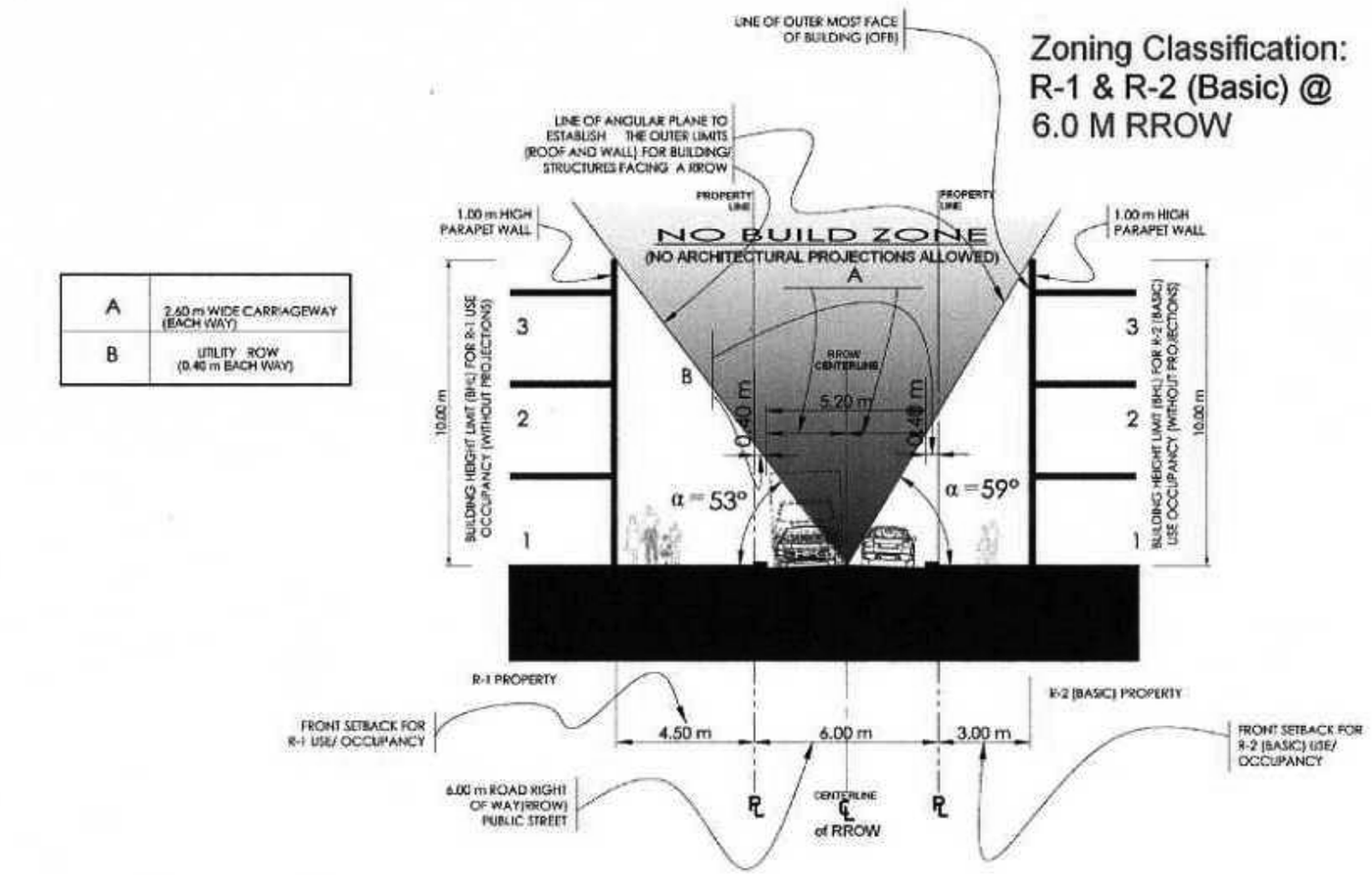
f. Comfort Rooms - Adequate and clean comfort rooms with facilities for disabled persons shall be provided in properly located areas.

NOTE: **Refer also to the latest applicable** HLURB Guidelines **regarding Cemeteries and Memorial Parks.**

(emphases, underscoring and annotations supplied)

Rule VIII follows

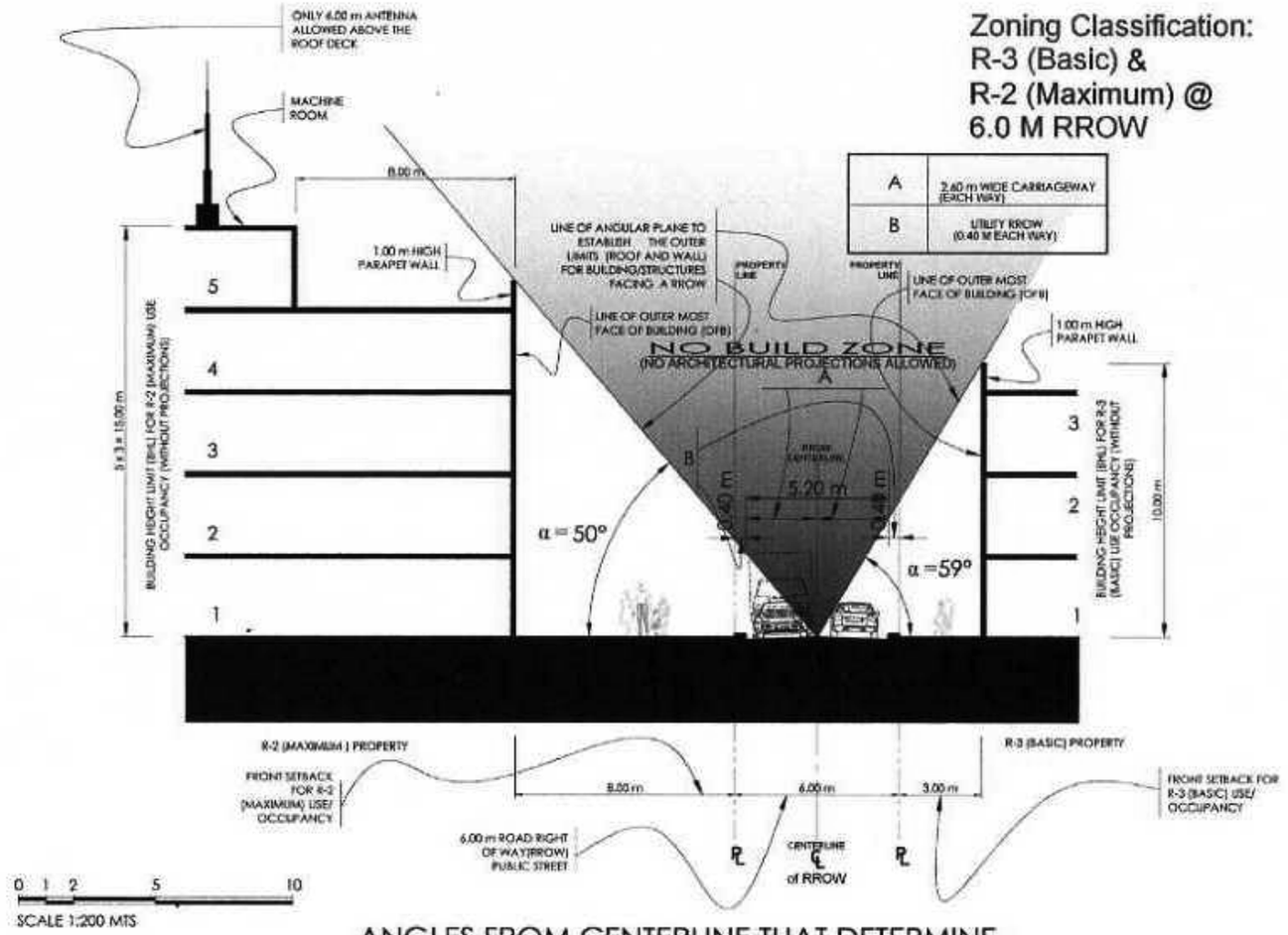
EXPANDED INTERPRETATIONS OF **FIGURE VII.G.1** OF THE GUIDELINES ON BUILDING BULK, DEVELOPMENT CONTROLS, BUILDINGS XXX OF **RULE VII** OF THE **2004** REVISED IMPLEMENTING RULES AND REGULATIONS (**R-IRR**) OF **P.D. NO. 1096** (THE **1977** NATIONAL BUILDING CODE OF THE PHILIPPINES/ **NBCP**)



ANGLES FROM CENTERLINE THAT DETERMINE THE OFB OF BUILDINGS/STRUCTURES ALONG A 6.00 m RROW

Issued 07 May 2007 by the **Chairman** of the Professional Regulatory Board of Architecture (**PRBoA**)
in his capacity as a resource person of the DPWH for the preparation of said 2004 Guidelines of the NBCP
*(This material is issued preparatory to the **PRBoA** publication of the **TRUE** version of **P.D. No. 1096/ 1977 NBCP** and its **2004 Revised IRR**)*

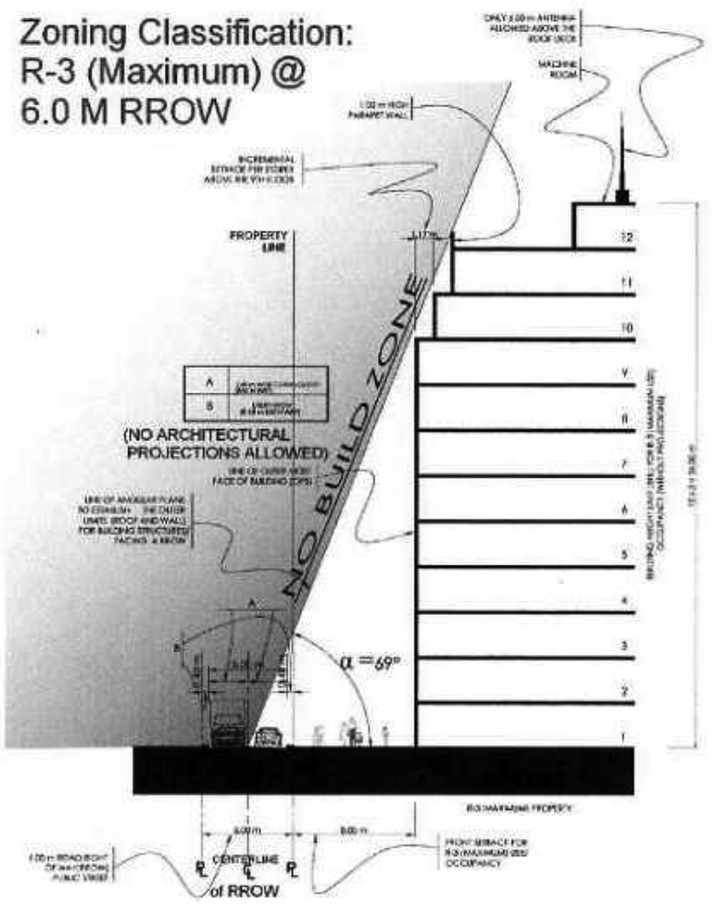
EXPANDED INTERPRETATIONS OF **FIGURE VII.G.1** OF THE GUIDELINES ON BUILDING BULK, DEVELOPMENT CONTROLS, BUILDINGS XXX OF **RULE VII** OF THE **2004** REVISED IMPLEMENTING RULES AND REGULATIONS (**R-IRR**) OF **P.D. NO. 1096** (THE **1977** NATIONAL BUILDING CODE OF THE PHILIPPINES/ **NBCP**)



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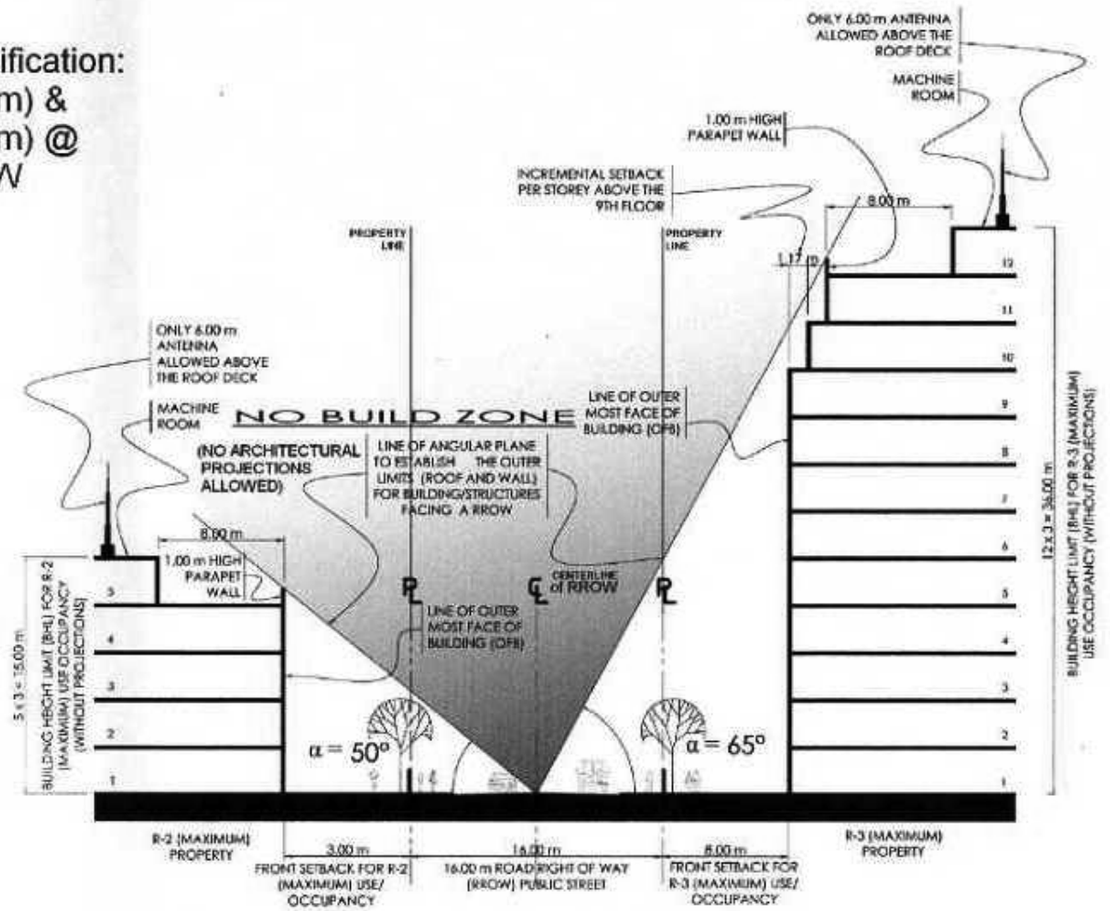
ANGLES FROM CENTERLINE THAT DETERMINE THE OFB OF BUILDINGS/STRUCTURES ALONG A 6.00 m RROW

0 1 2 5 10

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EXPANDED INTERPRETATIONS OF FIGURE VII.G.1 OF THE GUIDELINES ON BUILDING BULK, DEVELOPMENT CONTROLS, BUILDINGS XXX OF RULE VII OF THE 2004 REVISED IMPLEMENTING RULES AND REGULATIONS (R-IRR) OF P.D. NO. 1096 (THE 1977 NATIONAL BUILDING CODE OF THE PHILIPPINES/ NBCP)

Zoning Classification:
R-2 (Maximum) &
R-3 (Maximum) @
16.0 M RROW

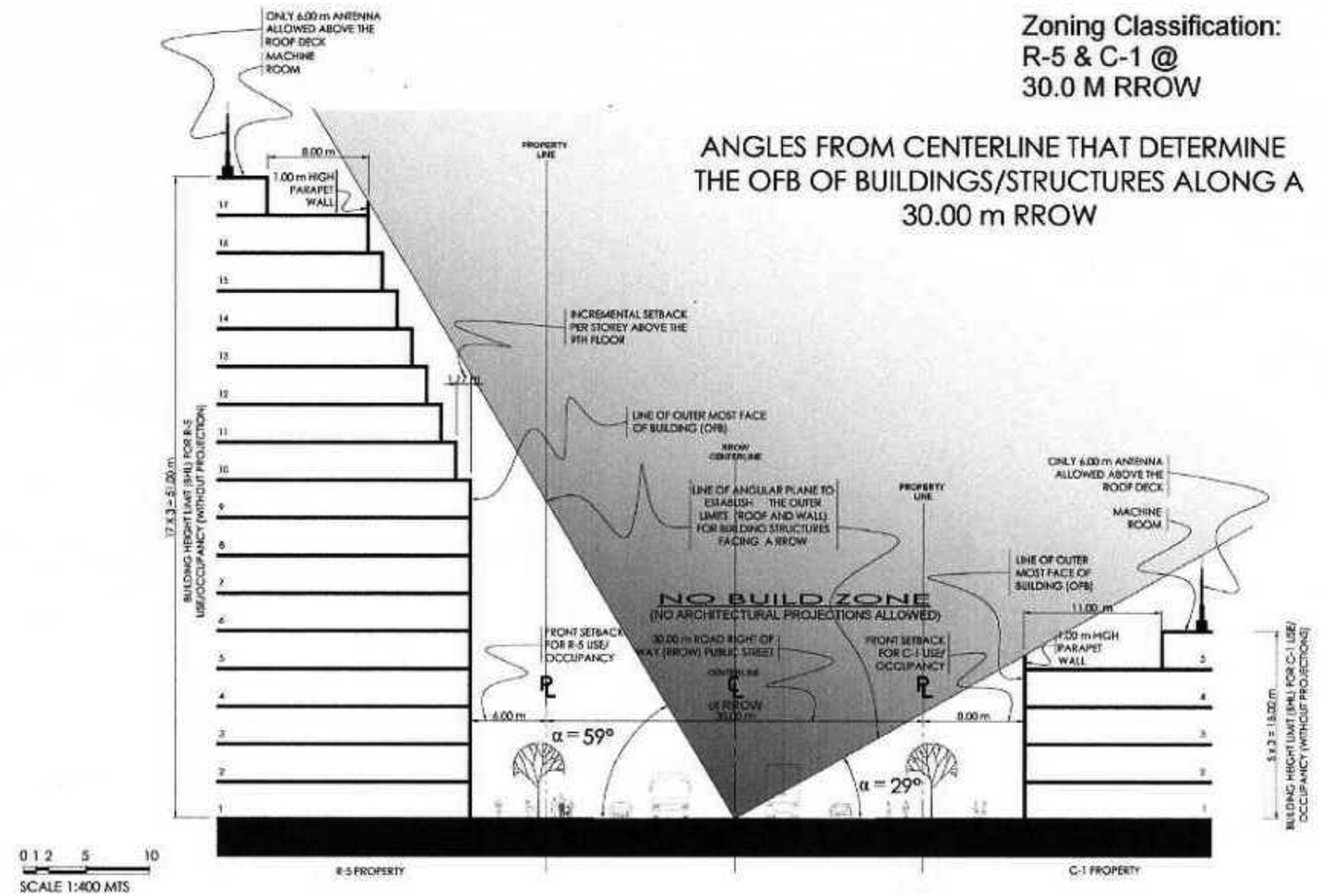


0 1 2 5 10
SCALE 1:400 MTS

ANGLES FROM CENTERLINE THAT DETERMINE THE OFB OF BUILDINGS/STRUCTURES ALONG A 16.00 m RROW

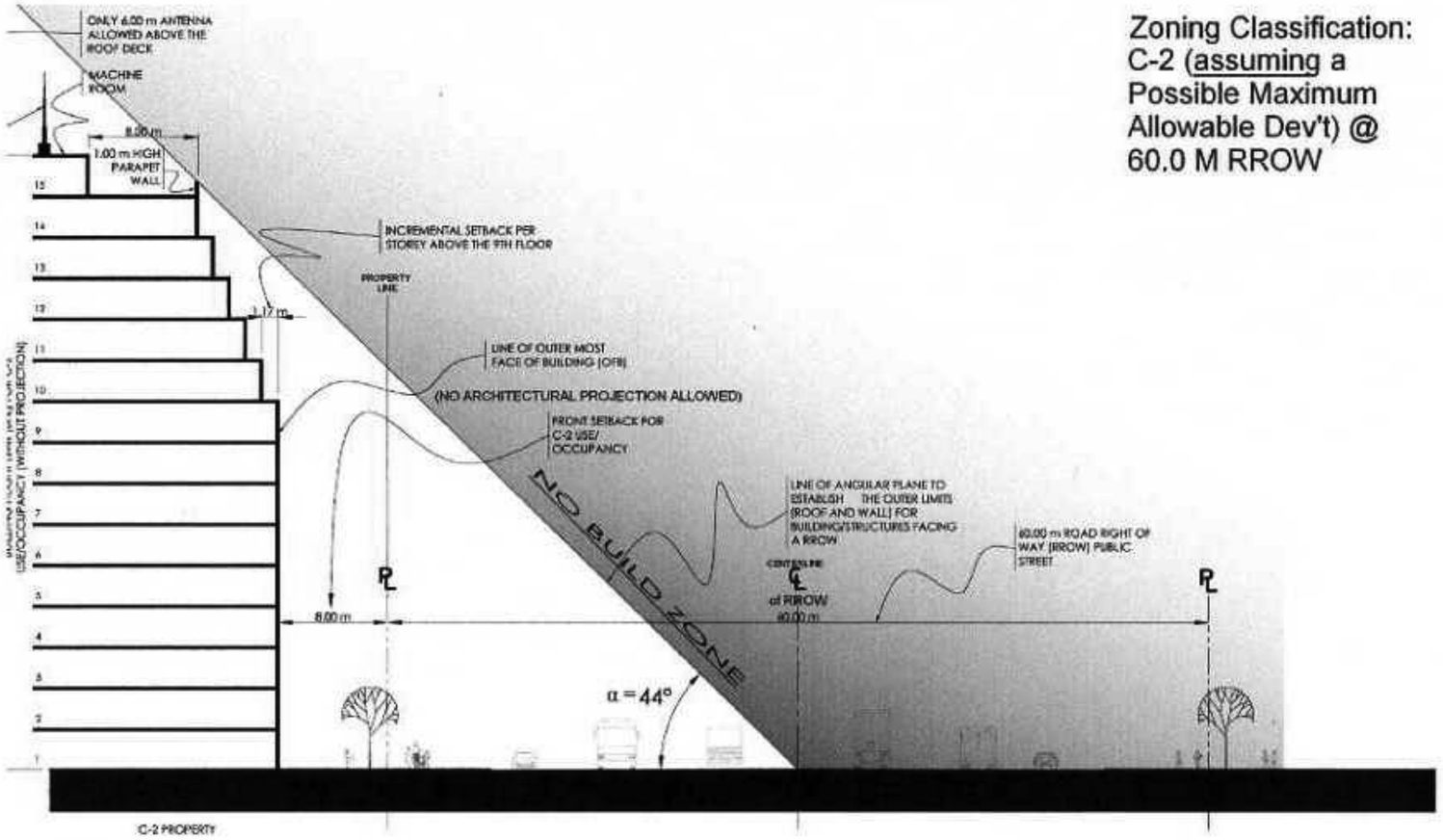
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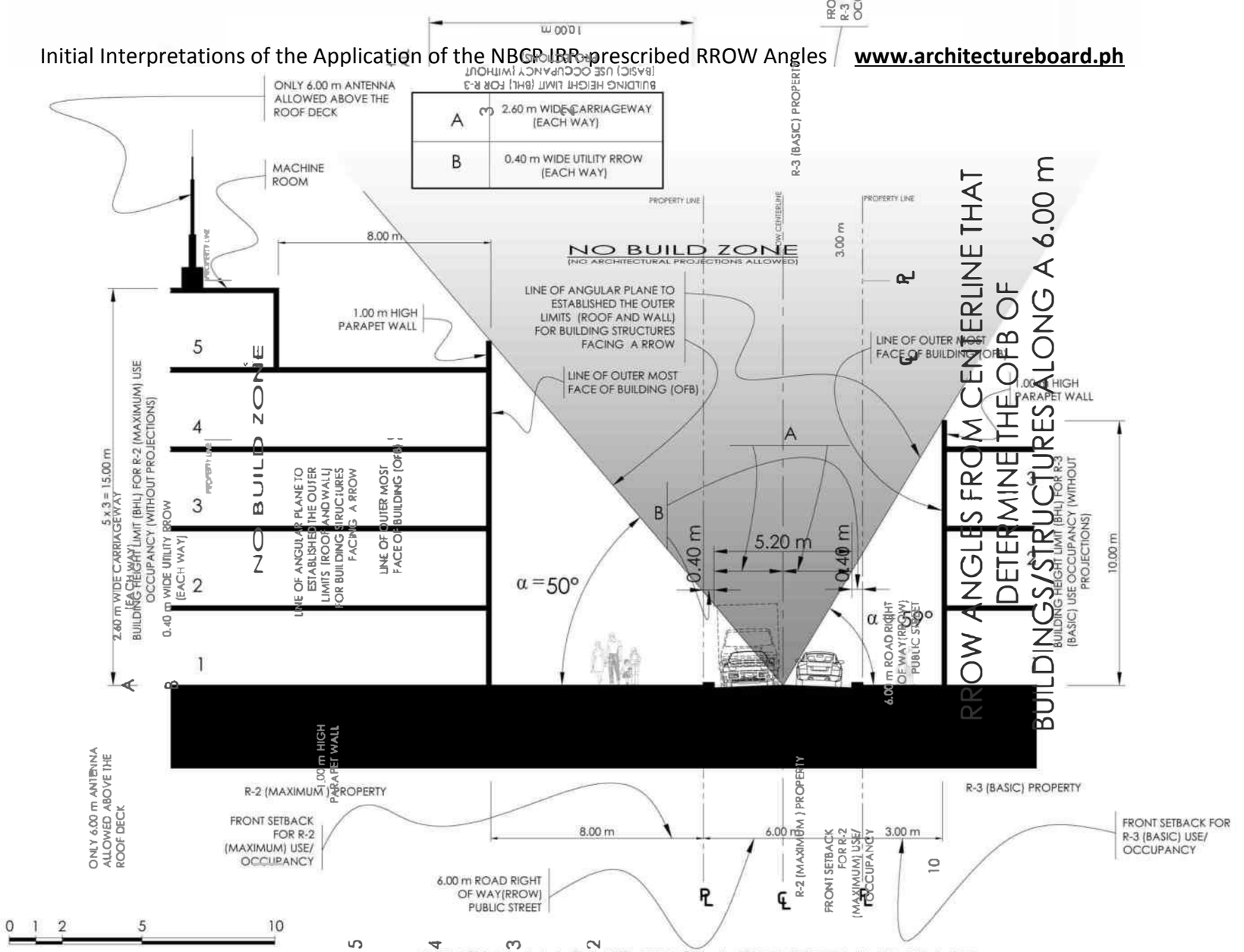


Zoning Classification:
C-2 (assuming a Possible Maximum Allowable Dev't) @ 60.0 M RROW

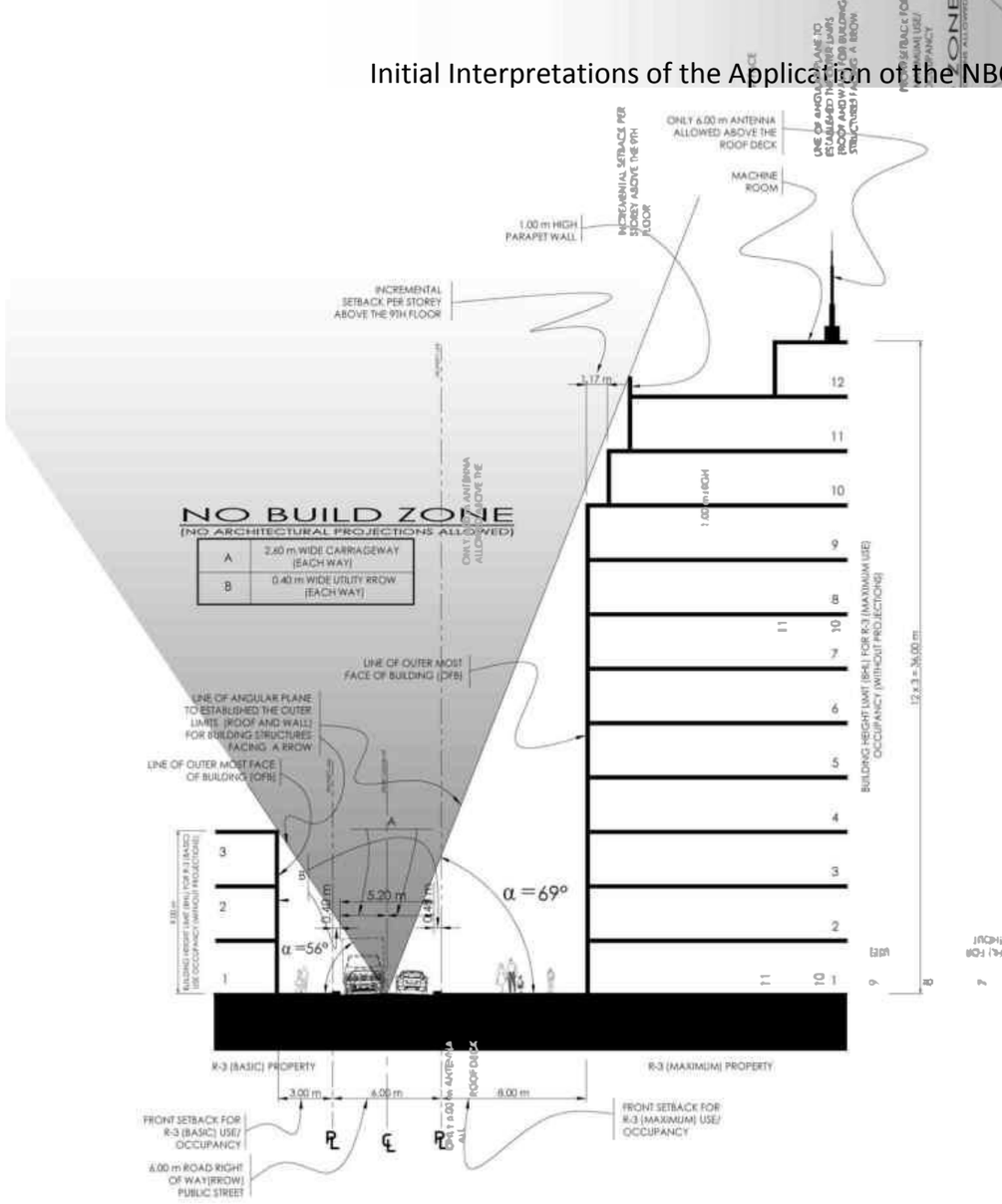
ANGLES FROM CENTERLINE THAT DETERMINES THE OFB OF BUILDINGS/STRUCTURES ALONG A 60.00 m RROW

0 1 2 5 10
SCALE 1:400 MTS

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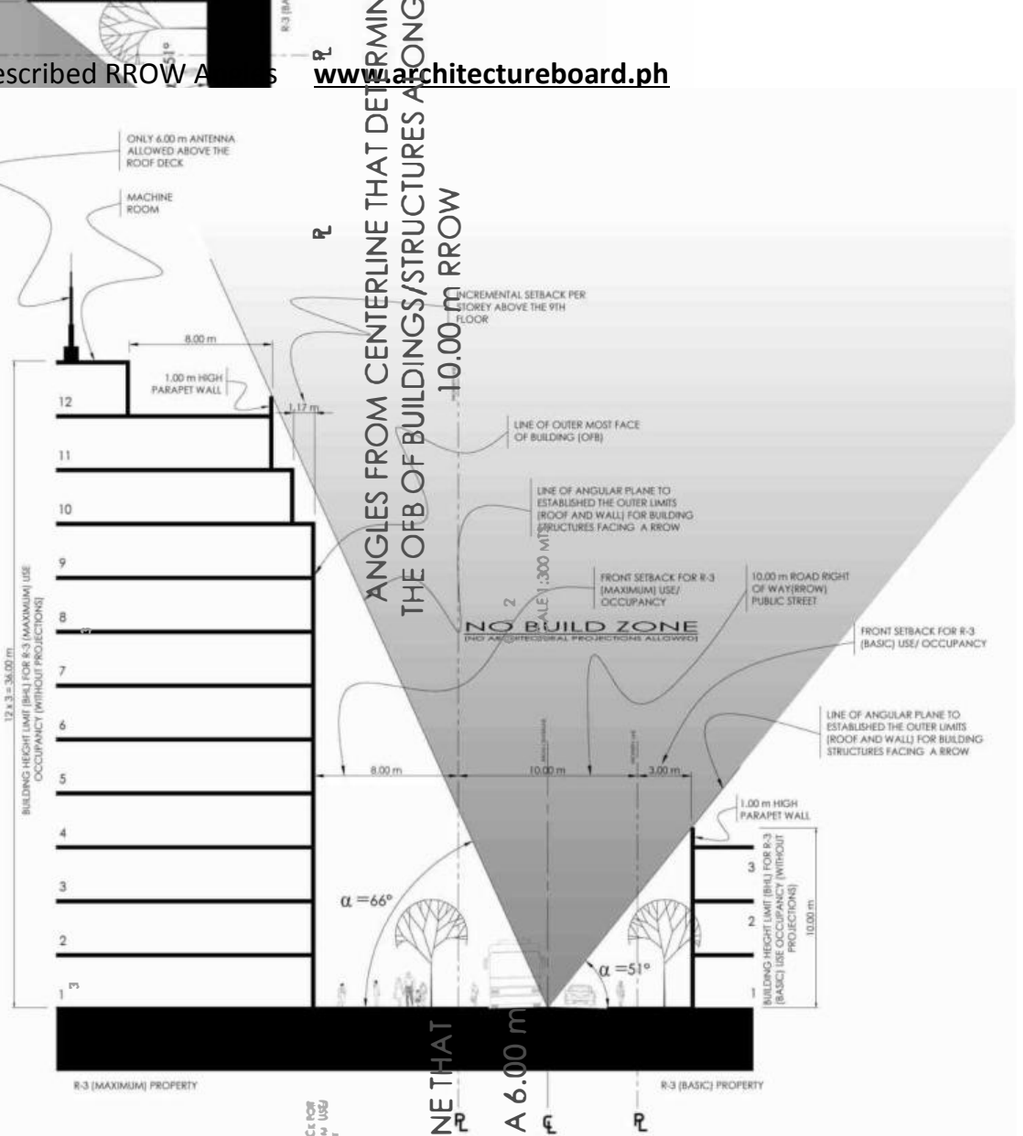


RROW ANGLES FROM CENTERLINE THAT DETERMINE THE OFB OF BUILDINGS/STRUCTURES ALONG A 6.00 m



RROW ANGLES FROM CENTERLINE THAT DETERMINE THE OFB OF BUILDINGS/STRUCTURES ALONG A 6.00 m RROW

0 1 2 5 10
SCALE 1:300 MTS



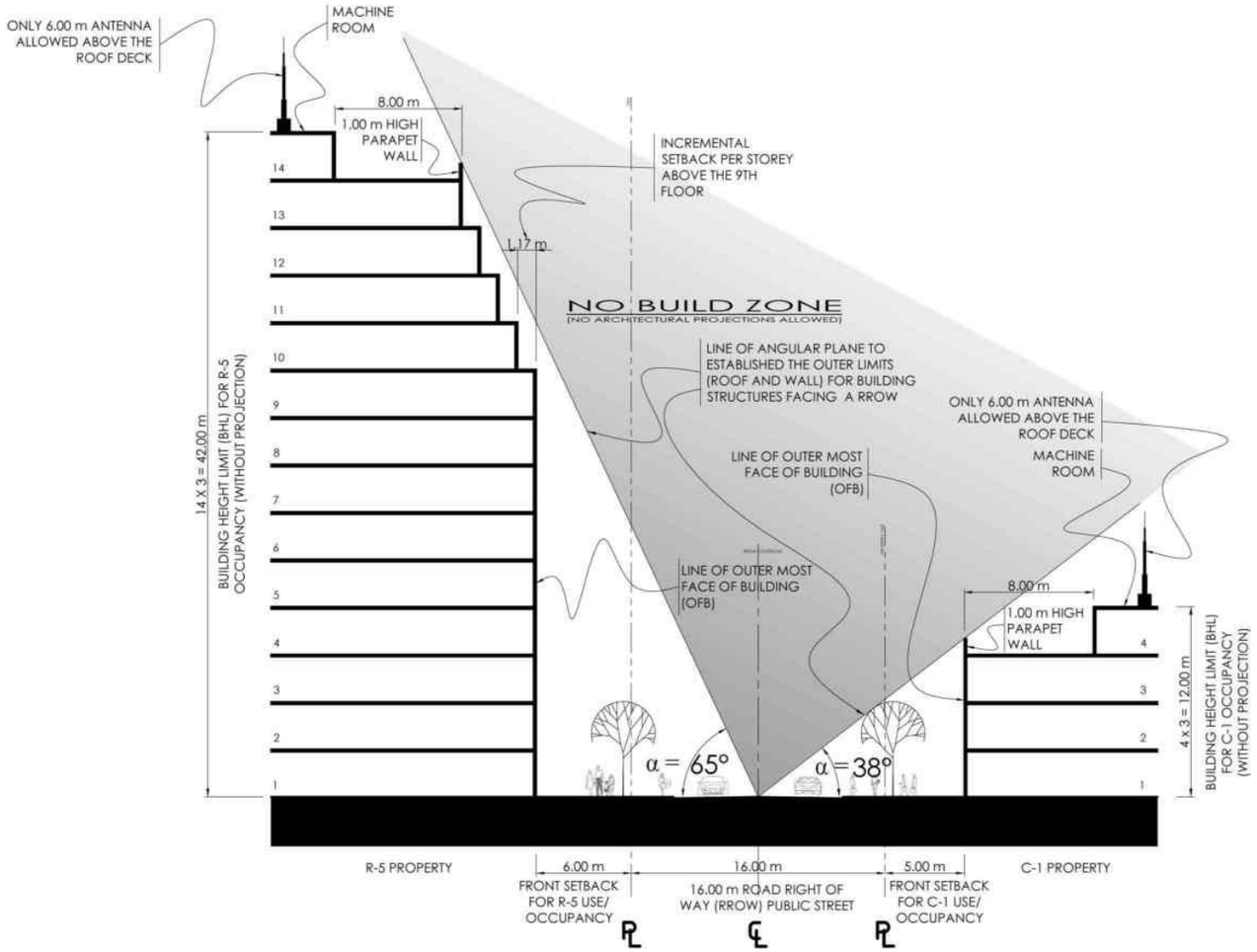
ANGLES FROM CENTERLINE THAT DETERMINE THE OFB OF BUILDINGS/STRUCTURES ALONG A 10.00 m RROW

α =69°

0 1 2 5 10
SCALE 1:300 MTS

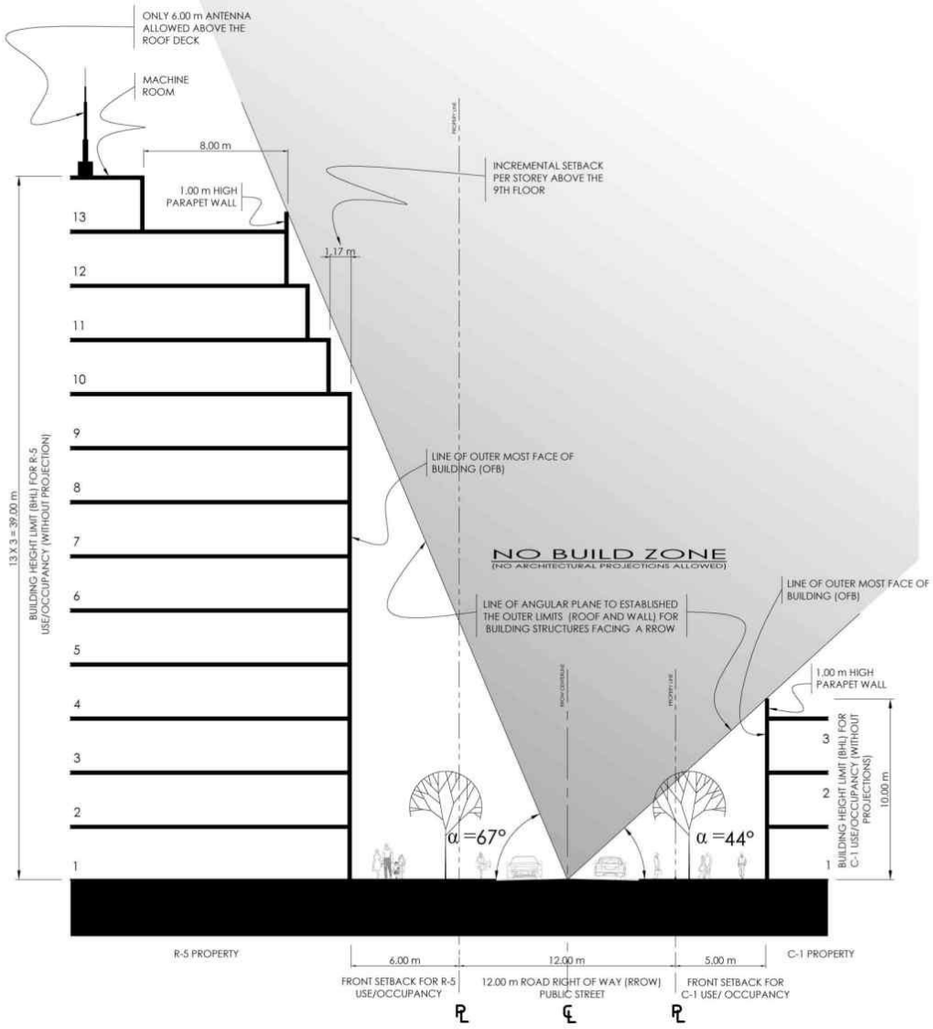
ANGLES FROM CENTERLINE THAT DETERMINE THE OFB OF BUILDINGS/STRUCTURES ALONG A 10.00 m RROW





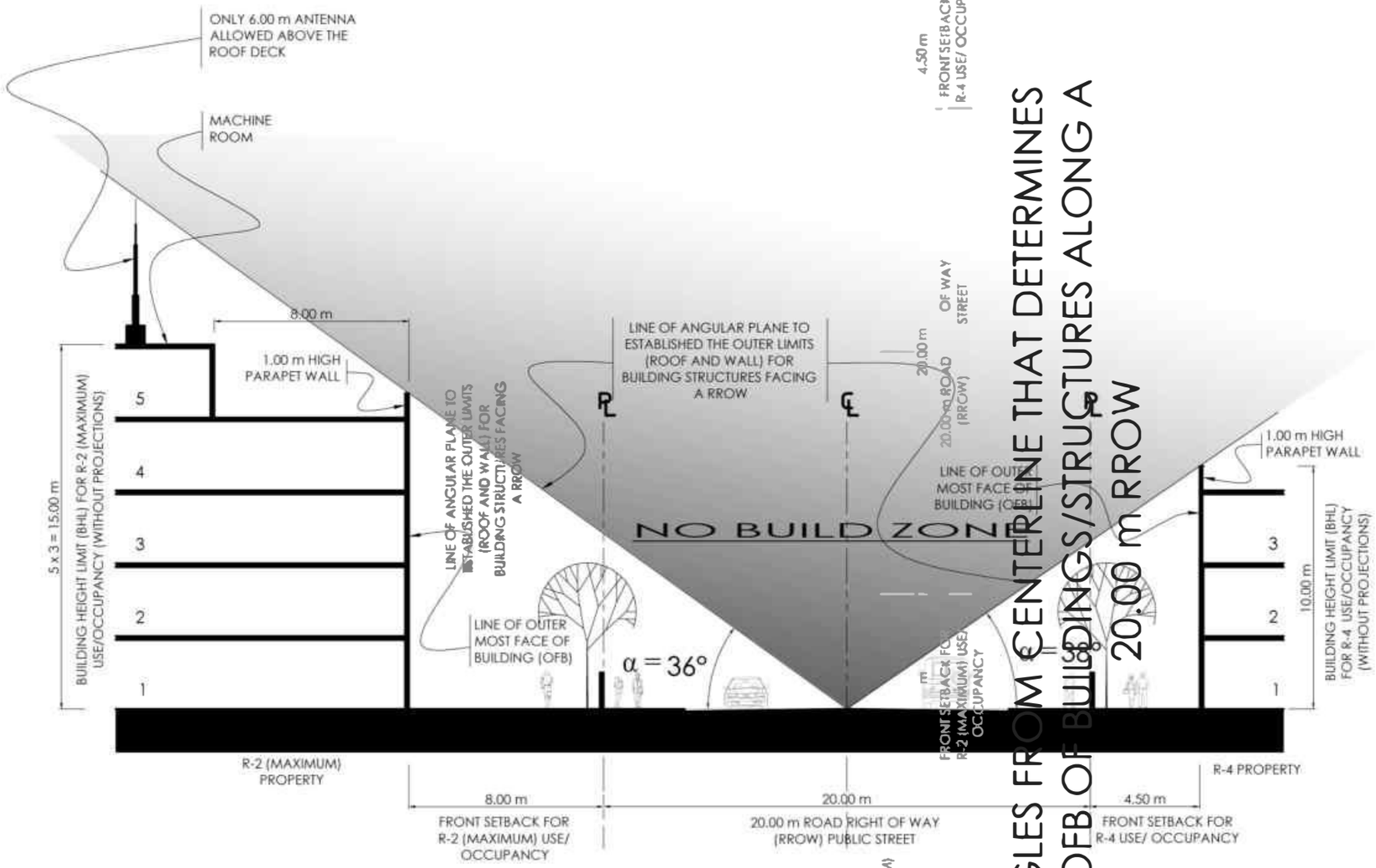
RROW ANGLES FROM CENTERLINE THAT DETERMINE THE OFB OF BUILDINGS/STRUCTURES ALONG A 16.00 m RROW

0 1 2 5 10
SCALE 1:400 MTS



RROW ANGLES FROM CENTERLINE THAT DETERMINE THE OFB OF BUILDINGS/STRUCTURES ALONG A 12.00 m RROW

0 1 2 5 10
SCALE 1:300 MTS

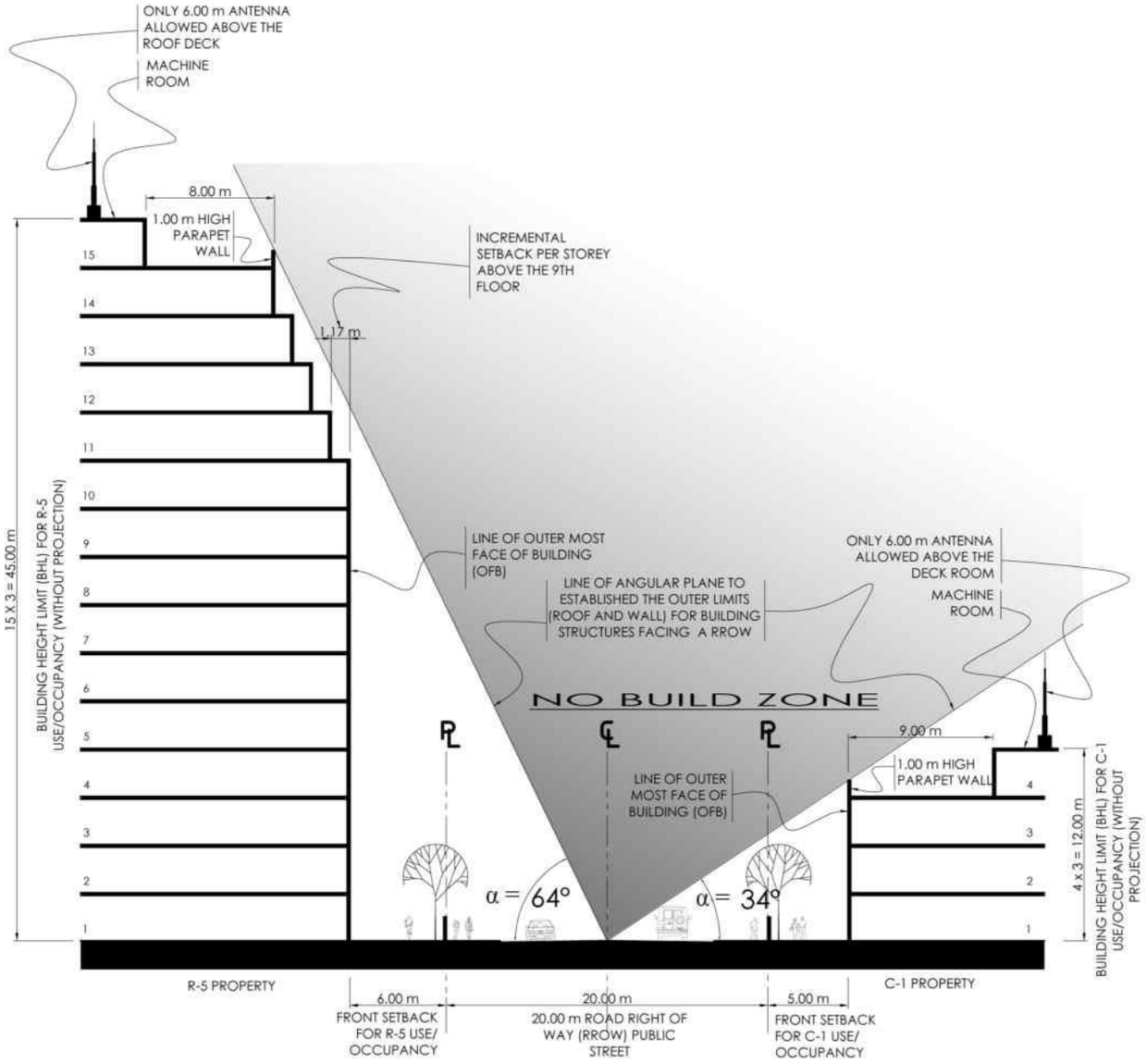


ANGLES FROM CENTERLINE THAT DETERMINES THE OFB OF BUILDINGS/STRUCTURES ALONG A 20.00 m RROW

ANGLES FROM CENTERLINE THAT DETERMINES THE OFB OF BUILDINGS/STRUCTURES ALONG A 20.00 m RROW

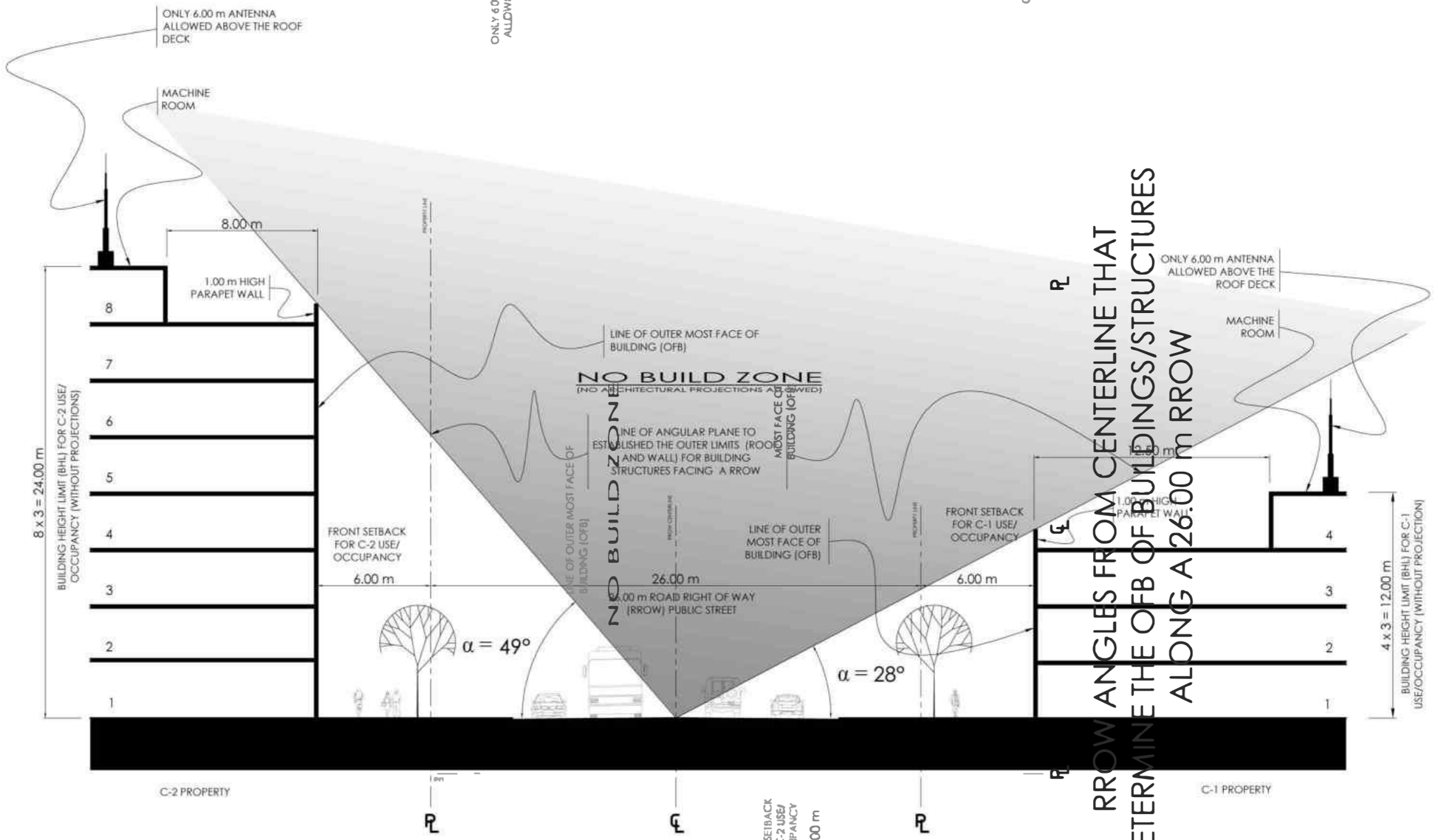
0 1 2 5 10

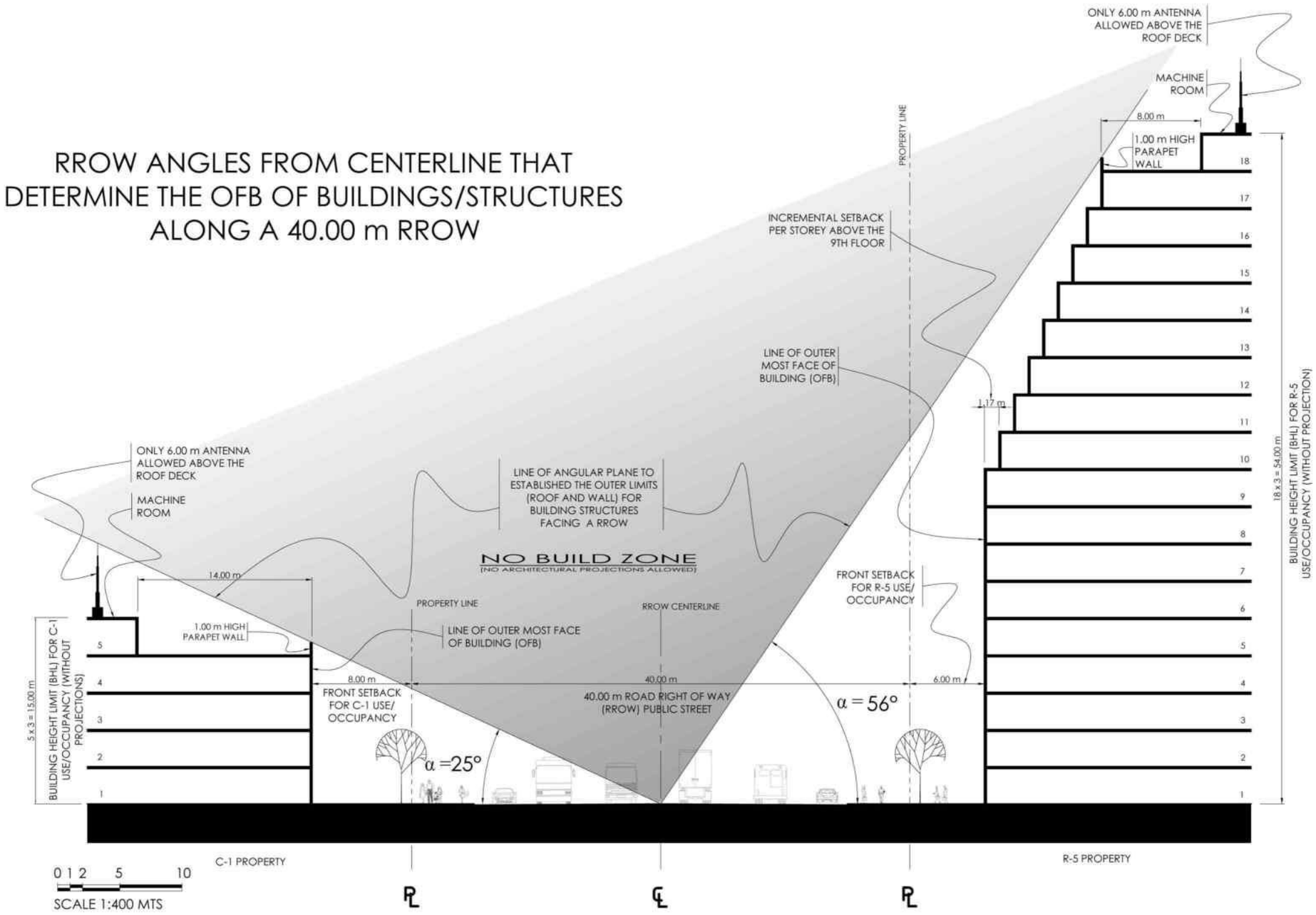
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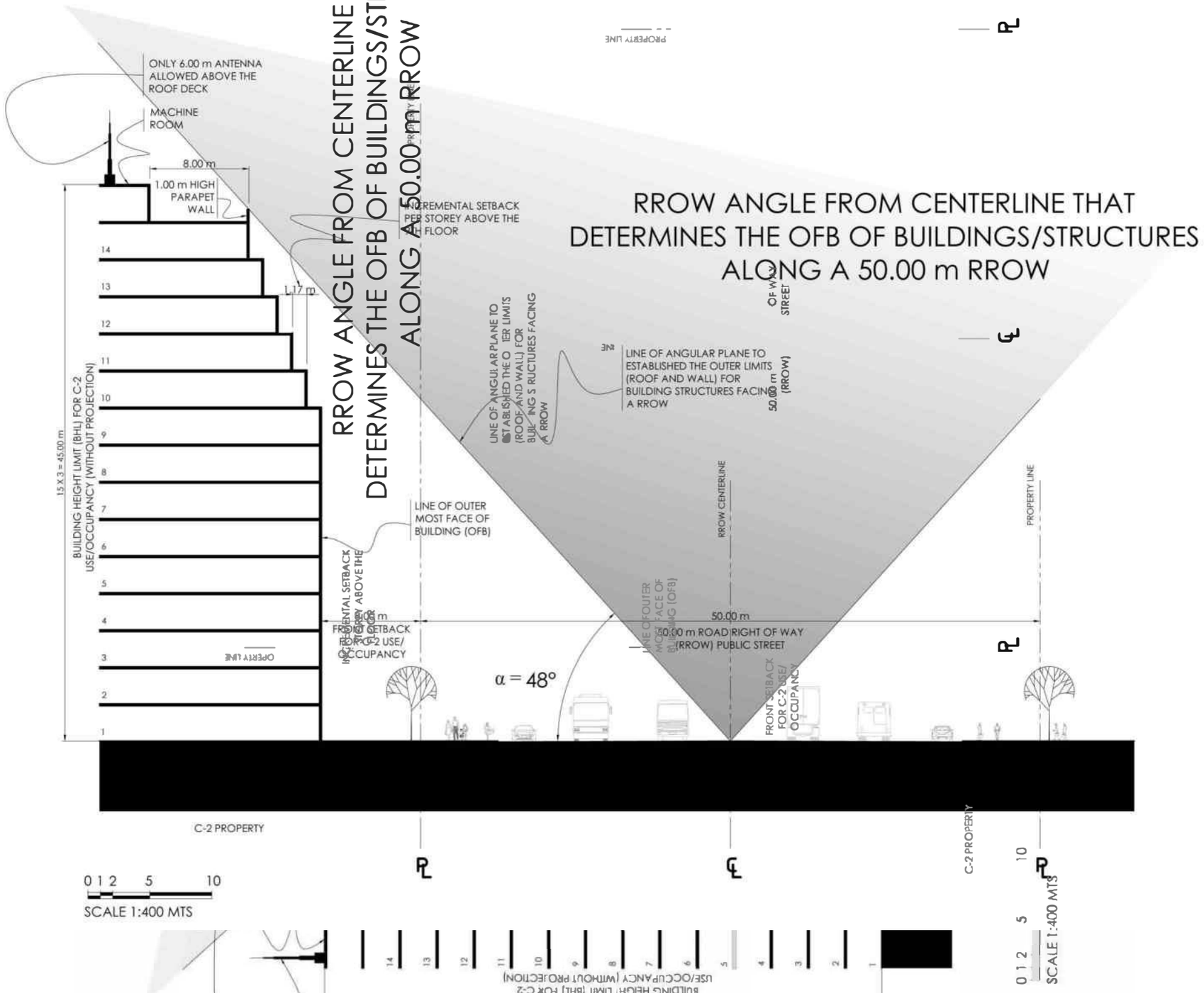


ANGLES FROM CENTERLINE THAT DETERMINES THE OFB OF BUILDINGS/STRUCTURES ALONG A 20.00 m RROW

0 1 2 5 10
SCALE 1:400 MTS


ONLY 6.00 m ANTENNA ALLOWED ABOVE THE ROOF DECK
MACHINE ROOM
8.00 m
1.00 m HIGH PARAPET WALL
LINE OF OUTER MOST FACE OF BUILDING (OFB)
NO BUILD ZONE
(NO ARCHITECTURAL PROJECTIONS ALLOWED)
LINE OF ANGULAR PLANE TO ESTABLISHED THE OUTER LIMITS (ROOF AND WALL) FOR BUILDING STRUCTURES FACING A RROW
8 x 3 = 24.00 m
BUILDING HEIGHT LIMIT (BHL) FOR C-2 USE/ OCCUPANCY (WITHOUT PROJECTIONS)
FRONT SETBACK FOR C-2 USE/ OCCUPANCY
6.00 m
26.00 m
26.00 m ROAD RIGHT OF WAY (RROW) PUBLIC STREET
α = 49°
α = 28°
LINE OF OUTER MOST FACE OF BUILDING (OFB)
FRONT SETBACK FOR C-1 USE/ OCCUPANCY
6.00 m
ONLY 6.00 m ANTENNA ALLOWED ABOVE THE ROOF DECK
MACHINE ROOM
4 x 3 = 12.00 m
BUILDING HEIGHT LIMIT (BHL) FOR C-1 USE/OCCUPANCY (WITHOUT PROJECTION)
C-2 PROPERTY
C-1 PROPERTY
RROW ANGLES FROM CENTERLINE THAT DETERMINE THE OFB OF BUILDINGS/STRUCTURES ALONG A 26.00 m RROW
0 1 2 5 10
SCALE 1:300 MTS


RROW ANGLES FROM CENTERLINE THAT DETERMINE THE OFB OF BUILDINGS/STRUCTURES ALONG A 40.00 m RROW
ONLY 6.00 m ANTENNA ALLOWED ABOVE THE ROOF DECK
MACHINE ROOM
8.00 m
1.00 m HIGH PARAPET WALL
PROPERTY LINE
INCREMENTAL SETBACK PER STOREY ABOVE THE 9TH FLOOR
LINE OF OUTER MOST FACE OF BUILDING (OFB)
1.17 m
LINE OF ANGULAR PLANE TO ESTABLISHED THE OUTER LIMITS (ROOF AND WALL) FOR BUILDING STRUCTURES FACING A RROW
NO BUILD ZONE
(NO ARCHITECTURAL PROJECTIONS ALLOWED)
14.00 m
PROPERTY LINE
RROW CENTERLINE
FRONT SETBACK FOR R-5 USE/ OCCUPANCY
1.00 m HIGH PARAPET WALL
LINE OF OUTER MOST FACE OF BUILDING (OFB)
5 x 3 = 15.00 m
BUILDING HEIGHT LIMIT (BHL) FOR C-1 USE/OCCUPANCY (WITHOUT PROJECTIONS)
8.00 m
40.00 m
6.00 m
FRONT SETBACK FOR C-1 USE/ OCCUPANCY
40.00 m ROAD RIGHT OF WAY (RROW) PUBLIC STREET
α = 25°
α = 56°
18 x 3 = 54.00 m
BUILDING HEIGHT LIMIT (BHL) FOR R-5 USE/OCCUPANCY (WITHOUT PROJECTION)
C-1 PROPERTY
R-5 PROPERTY
0 1 2 5 10
SCALE 1:400 MTS
PL
CL
PL


RROW ANGLE FROM CENTERLINE THAT DETERMINES THE OFB OF BUILDINGS/STRUCTURES ALONG A 50.00 m RROW
ONLY 6.00 m ANTENNA ALLOWED ABOVE THE ROOF DECK
MACHINE ROOM
8.00 m
1.00 m HIGH PARAPET WALL
INCREMENTAL SETBACK PER STOREY ABOVE THE 14TH FLOOR
1.17 m
BUILDING HEIGHT LIMIT (BHL) FOR C-2 USE/OCCUPANCY (WITHOUT PROJECTION)
15 X 3 = 45.00 m
LINE OF ANGULAR PLANE TO ESTABLISHED THE OUTER LIMITS (ROOF AND WALL) FOR BUILDING STRUCTURES FACING A RROW
LINE OF ANGULAR PLANE TO ESTABLISHED THE OUTER LIMITS (ROOF AND WALL) FOR BUILDING STRUCTURES FACING A RROW
50.00 m ROAD RIGHT OF WAY (RROW) PUBLIC STREET
LINE OF OUTER MOST FACE OF BUILDING (OFB)
RROW CENTERLINE
PROPERTY LINE
INCREMENTAL SETBACK PER STOREY ABOVE THE 14TH FLOOR
3.00 m FRONT SETBACK FOR C-2 USE/ OCCUPANCY
50.00 m
50.00 m ROAD RIGHT OF WAY (RROW) PUBLIC STREET
α = 48°
FRONT SETBACK FOR C-2 USE/ OCCUPANCY
C-2 PROPERTY
C-2 PROPERTY
0 1 2 5 10
SCALE 1:400 MTS
SCALE 1:400 MTS

RULE VII – CLASSIFICATION AND GENERAL REQUIREMENTS OF ALL BUILDINGS BY USE OR OCCUPANCY

GUIDELINES ON BUILDING BULK, DEVELOPMENT CONTROLS, BUILDINGS AND OTHER ACCESSORY STRUCTURES WITHIN CEMETERIES AND MEMORIAL PARKS

WITH THE CORRECT Table VII.G.1. AND Table VII.G.2.

A. DETERMINING BUILDING BULK

1. *General*. **Building bulk** (a volume quantity) shall be generally determined by the application of the **Floor-Lot Area Ratio** (FLAR), vertically projecting the Allowable Maximum Building Footprint (AMBF), establishing the Outermost Faces of Building (OFB) and quantifying the Allowable Maximum Volume of Building (AMVB). The building bulk may be ultimately governed by the width of the RROW and other applicable provisions for light and ventilation (including incremental setbacks as a result of satisfying natural light and ventilation requirements for RROW and front yards as partly shown in *Table VII.G.1.* hereafter).

2. Application of the FLAR. The FLAR (*Table VII.G.1.*) shall be the primary or initial determinant of the building bulk.

Table VII.G.1.
Reference Table of Floor to Lot Area Ratio (FLAR) Designations/ Rights

Type of Use or Occupancy	Type of Building/Structure	FLAR Designation/Rights
Residential	Residential 1 (R-1)	1.50 (at a 3-storey or 10.00 m BHL)
	Residential 2 (R-2)	
	a. Basic R-2	1.30 up to 1.50 (at a 3-storey or 10.00 m BHL)
	b. Maximum R-2	2.10 up to 3.00 (at a 5-storey or 15.00 m BHL)
	Residential 3 (R-3)	
	a. Basic R-3	1.80 up to 2.10 (at a 3-storey or 10.00 m BHL)
	b. Maximum R-3	7.10 up to 8.10 (at a 12-storey or 36.00 m BHL)
	Individual Lot for Residential 4 (R-4)/Townhouses	1.60 up to1.80 (at a 3-storey or 10.00 m BHL)
	Residential 5(R-5)/ Condominiums	6.00 up to 9.00 (at an 18-storey or 54.00 m BHL)
Commercial	Commercial 1 (Com-1)	1.70 up to 3.00 (at a 5-storey or 15.00 m BHL)
	Commercial 2 (Com-2)	3.60 up to 9.00 (at a 15-storey or 45.00 m BHL)

Note: Except for the minor changes on Tables VII.G.1 and Table VII.G.2, these Rule VII Guidelines (in portrait format) are essentially the same as pages 119 through 129 of 255 of the Rule VII download version (in landscape format)

	Commercial 3 (Com-3)	9.00 up to 34.00 (at a 60-storey or 180.00 m BHL)
Industrial	Industrial 1 (Ind-1)	1.50 up to 2.50
	Industrial 2 (Ind-2)	2.50 up to 3.00
	Industrial 3 (Ind-3)	3.00 up to 5.00
Institutional	-	2.50
Cultural	-	3.50
Utility/Transportation/Road Rights-of Way (RROW)/ Services	-	2.00 up to 3.00
Parks and Open Recreational Spaces	-	0.50 up to 1.00
Agricultural/Agro-Industrial/Tourism	-	1.80 up to 2.20
Planned Unit Development (PUD)	PUD at a reclamation area close to an operating airport	6.00
	PUD at a reclamation area	6.00 up to 12.00
	PUD at a coastal area	12.00 up to 18.00
	PUD at an inland area very close to an operating airport	6.00 up to 18.00
	PUD at an inland area	9.00 up to 34.00 (at a 60-storey or 180.00 m BHL)
Cemetery	-	0.80

Table VII.G.2.
Conversion Table of Gross Floor Area (GFA) to Total Gross Floor Area (TGFA)

Type of Building/ Structure based on Use/ Occupancy	**Excluded Floor Areas (non-GFA) as a Percentage (%) of the TGFA**	**Multiplier to Convert the GFA to TGFA**
Residential 1	33%	1.50
Residential 2 (Basic), Residential 3 (Basic) and Residential 4	20%	1.25
Residential 2 (Maximum), Residential 3 (Maximum) and Residential 5	16%	1.20
Commercial 1	20%	1.25
Commercial 2	25%	1.33
Commercial 3	33%	1.50
Industrial 1	25%	1.33
Industrial 2 and 3	33%	1.50
Transportation, Utility and Service Areas	33%	1.50
Agricultural and Agro-Industrial	2%-5%	1.03-1.06

3. Establishing the OFB. The OFB shall be primarily determined by the vertical projections of the outermost faces of the AMBF up to a height prescribed by the applicable BHL. *Figure VII.G.1*. shows the determination of the angular planes needed to establish the outer limits for walls and projections of the proposed building/structure facing RROW and for their corresponding

roof configurations. *Table VII.G.3.* also shows the recommended angles or slopes for the angular planes originating from the centerline of the RROW for R-1 and C-3 properties only. Angles or slopes for other permitted uses/occupancies can be extrapolated from the two (2) examples. (*Figs. VIII.G.1.* and *VIII.G.2.*)

Table VII.G.3. Reference Table of Angles/Slopes* To Satisfy Natural Light and Ventilation Requirements Along RROW and Front Yards

Type of Use or Occupancy	Width of Road Right-of-Way (RROW)	Angle or Slope of Angular Plane for Buildings/Structures Without Projections**		Angle or Slope of Angular Plane for Buildings/Structures With Projections*	
		Angle from Centerline of RROW (Degrees)	Ratio (Slope)	Angle from Centerline of RROW (Degree)	Ratio (Slope)
Residential 1 (R-1)	8.00 meters	46.5	9 m:8.5m (1.06)	50.0	7.5 m:6.25m (1.20)
	10.00 meters	43.0	9 m:9.5m (0.95)	46.0	7.5 m:7.25m (1.03)
	12.00 meters	40.0	9 m:10.5m (0.86)	43.0	7.5 m:8.25m (0.91)
	14.00 meters	38.0	9 m:11.5m (0.78)	39.0	7.5 m:9.25m (0.81)
	16.00 meters	35.0	9 m:12.5m (0.72)	36.0	7.5m:10.25m (0.73)
	18.00 meters	33.5	9 m:13.5m (0.67)	33.0	7.5m:11.25m (0.67)
	20.00 meters	31.0	9 m:14.5m (0.62)	32.0	7.5m:12.25m (0.61)
Commercial 3 (C-3)	8.00 meters	71.0	48 m:16.5m	- (2.90)	-
	10.00 meters	69.5	48 m:17.5m (2.74)	-	-
Commercial 3 (C-3)	12.00 meters	68.0	48 m:18.5m (2.59)	-	-
	14.00 meters	65.5	48 m:19.5m (2.46)	-	-
	16.00 meters	63.6	48 m:20.5m (2.34)	-	-
	18.00 meters	61.7	48 m:21.5m (2.23)	-	-
	20.00 meters	60.0	48 m:22.5m (2.13)	-	-

NOTE:

* *To be used for plotting the angular plane from the grade level centerline of the RROW. The angular plane can also help determine the Allowable Maximum Volume of Building (AMVB) as well as the alternative incremental setback lines. Only the uses/occupancies with the least and heaviest developments (R-1 and C-3 respectively are shown). The angles/slopes of angular planes for all other uses/occupancies in between can be extrapolated.*

** *Considered projections from the outermost face of the building/structure are eaves, medias aguas (canopy for windows), cantilevers, heavy sign supports (only for applications permitted or consistent with the Code) and the like.*

Note: Except for the minor changes on Tables VII.G.1 and Table VII.G.2, these Rule VII Guidelines (in portrait format) are essentially the same as pages 119 through 129 of 255 of the Rule VII download version (in landscape format)

4. Quantifying the AMVB. The AMVB shall be primarily determined by the following:
   a. Multiply the AMBF (in square meters) for the lot by the applicable BHL (in meters) for the lot to arrive at the initial AMVB (in cubic meters); the result of this step is the imaginary footprint prism;
   b. Superimpose the angular plane originating from the center of the RROW on the footprint prism; this shall result in the reduction of the initially computed building volume due to the application of incremental setbacks and of roof configuration dictated by the angular plane; the result of this step is the AMVB;
   c. To crosscheck the AMVB against the Allowable Maximum TGFA (separately determined), convert the AMVB into its approximate area equivalent (in sq. meters) by dividing it with the BHL. Before converting the AMVB to its area component, check for the effects of the incremental setbacks on the TGFA for each floor of the proposed building/structure.

B. Application of Development Controls (DC)
(To Determine the Maximum Development Potential of a Lot)

1. *Sizing the Building/Structure*. To determine the allowed/appropriate building bulk (volume), the following series of steps using the DC under this Guideline and other Rules in the Code shall be followed:
   a. Refer to Rule VIII for prescribed setbacks, yards, courts (at grade level), etc. applicable to the lot/project site; determine the extent of firewall construction if required and/or if permitted; refer to Rule VIII for the Percentage of Site Occupancy (PSO); compute for the Allowable Maximum Building Footprint (AMBF) under this Rule by using the formula:

$$\text{Allowable Maximum Building/ Footprint or AMBF (in sq. meters)} = \left[\text{Total Lot Area (TLA)}\right] - \left[\text{Land area required for yards/ courts (prescribed under Rule VIII)}\right] + \left[\text{Additional buildable lot area due to Firewall construction (if permitted under this Rule)}\right]$$

   b. Check resultant building footprint against applicable PSO under Reference *Table VIII.1.* of Rule VIII and consult existing/applicable and/or duly approved zoning ordinances; to check, use the formula:

$$\text{Percentage of Site Occupancy (PSO)} = \left[\text{Allowable Maximum Building Footprint or AMBF (in square meters)}\right] \div \left[\text{Total Lot Area (TLA)}\right]$$

   c. Compute for the resultant height of the building/structure by referring to Table VII.2. of this Rule and by using the formula:

$$\text{Resultant Height of the building/structure (in meters)} = \left[\text{Building Height Limit or the BHL (as expressed in number of floors/storeys)}\right] \text{X} \left[\text{Desired Floor to Floor Height (in meters)}\right]$$

   d. Check the resultant height against the BHL (refer to *Table VII.2.* of this Rule); if a greater building/structure height is desired, consult existing zoning ordinances or other applicable laws for possible relief; if relief cannot be sought, explore sub-grade (basement level) solutions or reduce the desired floor to floor heights in case it is greater than 3.00 meters;
   e. Establish the Outermost Faces of Building (OFB) to help determine the Allowable Maximum Volume of Building (AMVB) and to satisfy natural light and ventilation requirements for RROW and front yards abutting RROW; an imaginary prism within which the proposed

building/structure must fit shall result, unless specifically allowed under the Code; thereafter, establish the Outermost Limits of Building Projections (OLBP) to fully comply with other applicable light and ventilation provisions;

f. Initially determine building bulk by computing for the maximum allowable Gross Floor Area (GFA) for the building/structure using the formula:

Gross Floor Area (GFA) of the building/structure (in square meters)	=	[Total Lot Area (TLA)]	X	[Recommended Floor to Lot Area Ratio (FLAR)*]		

*NOTE: * Refer to Table VII.G.1. of this Guideline (Recommended FLAR Designations/Rights) and/or consult existing/applicable and duly-approved zoning ordinances.*

i. GROSS FLOOR AREA (GFA) - the total floor space within the perimeter of the permanent external building walls (inclusive of main and auxiliary buildings) such as office areas, residential areas, corridors, lobbies and mezzanine level/s. The GFA shall also include building projections which may serve as floors or platforms that are directly connected to/integrated with areas within the building/structure, e.g., balconies (Refer to Section 1004 of Rule X of this IRR) and the GFA excludes the following:
   (a) Covered areas used for parking and driveways, services and utilities;
   (b) Vertical penetrations in parking floors where no residential or office units are present; and
   (c) Uncovered areas for helipads, air-conditioning cooling towers or air-conditioning condensing unit (ACCU) balconies, overhead water tanks, roof decks, laundry areas and cages, wading or swimming pools, whirlpools or *jacuzzis*, terraces, gardens, courts or plazas, balconies exceeding 10.00 sq. meters, fire escape structures and the like.

g. Determine the Allowable Maximum Total Gross Floor Area (TGFA) to approximate building volume using the formula hereafter. In particular, determine the minimum required off-street cum on-site parking provisions, driveways and related access systems, particularly for new developments and/or re-developments whereby provisions of this Guideline shall apply.

Total Gross Floor Area (TGFA) of the building/ structure (in sq. meters)	=	Gross Floor Area (GFA) of the building/ structure (in square meters)	+	Non-GFA areas*	–	All requirements for courts at all floors (above grade) under Rule VIII (in square meters)		

*NOTE: * Compute for all other areas not covered by the FLAR or by the GFA using Table VII.G.2.*

i. TOTAL GROSS FLOOR AREA (TGFA) - the total floor space within the main and auxiliary buildings primarily consisting of the GFA and all other enclosed support areas together with all other usable horizontal areas/surfaces above and below established grade level that are all physically attached to the building/s which shall consists of the following:
   (a) Covered areas used for parking and driveways, services and utilities. The TGFA specifically excludes provisions for courts above grade level;
   (b) Vertical penetrations in parking floors where no residential or office units are present;
   (c) Uncovered areas for helipads, air-conditioning cooling towers or ACCU balconies, overhead water tanks, roof decks, laundry areas and cages, wading or swimming pools, whirlpool or jacuzzis, terraces, gardens, courts or plazas, balconies exceeding 10.00 sq. meters, fire escape structures and the like; and

(d) Other building projections which may additionally function as floors or platforms if properly reinforced, e.g., the top surfaces of roof extensions/eaves, sun-breakers, large roofed or cantilevered areas such as *porte cocheres*, canopies and the like.

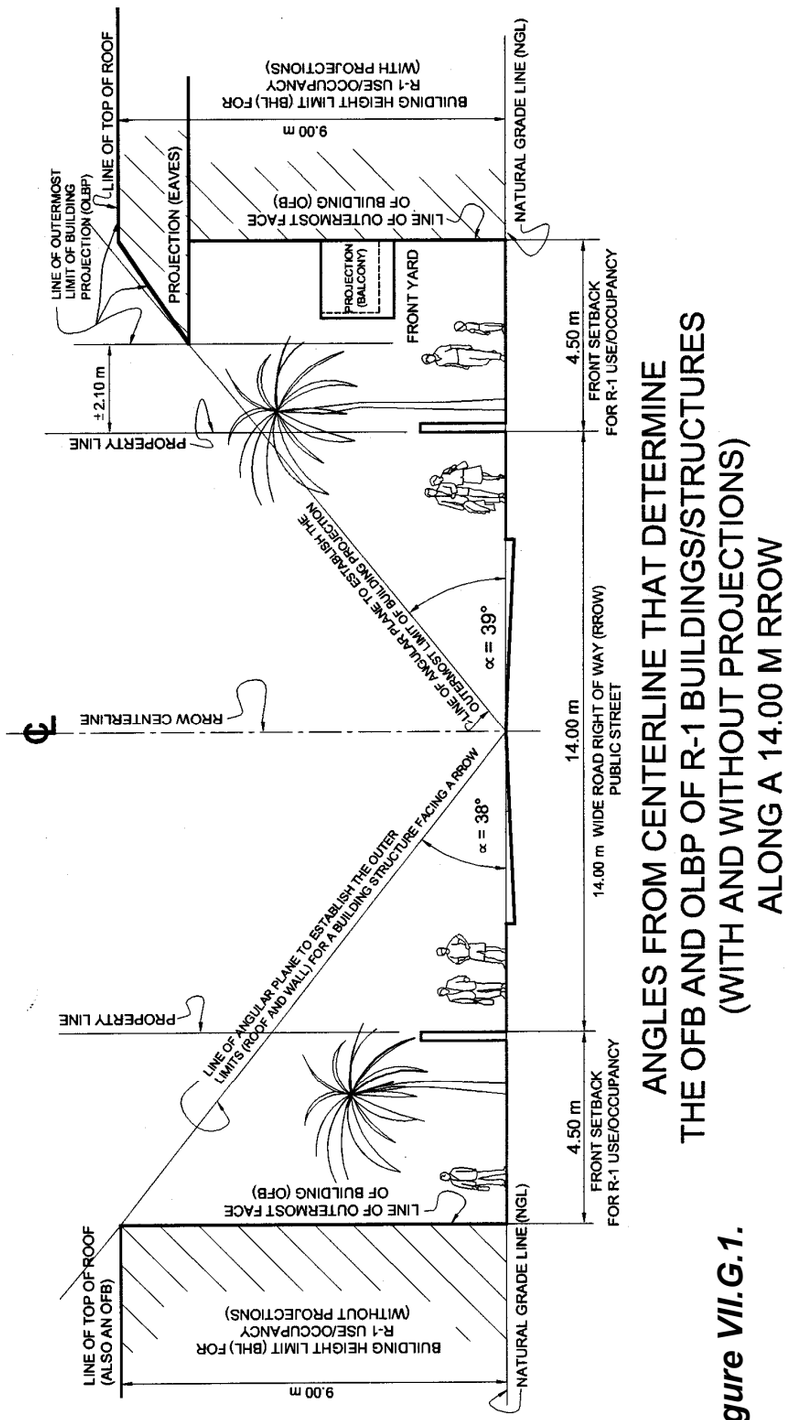
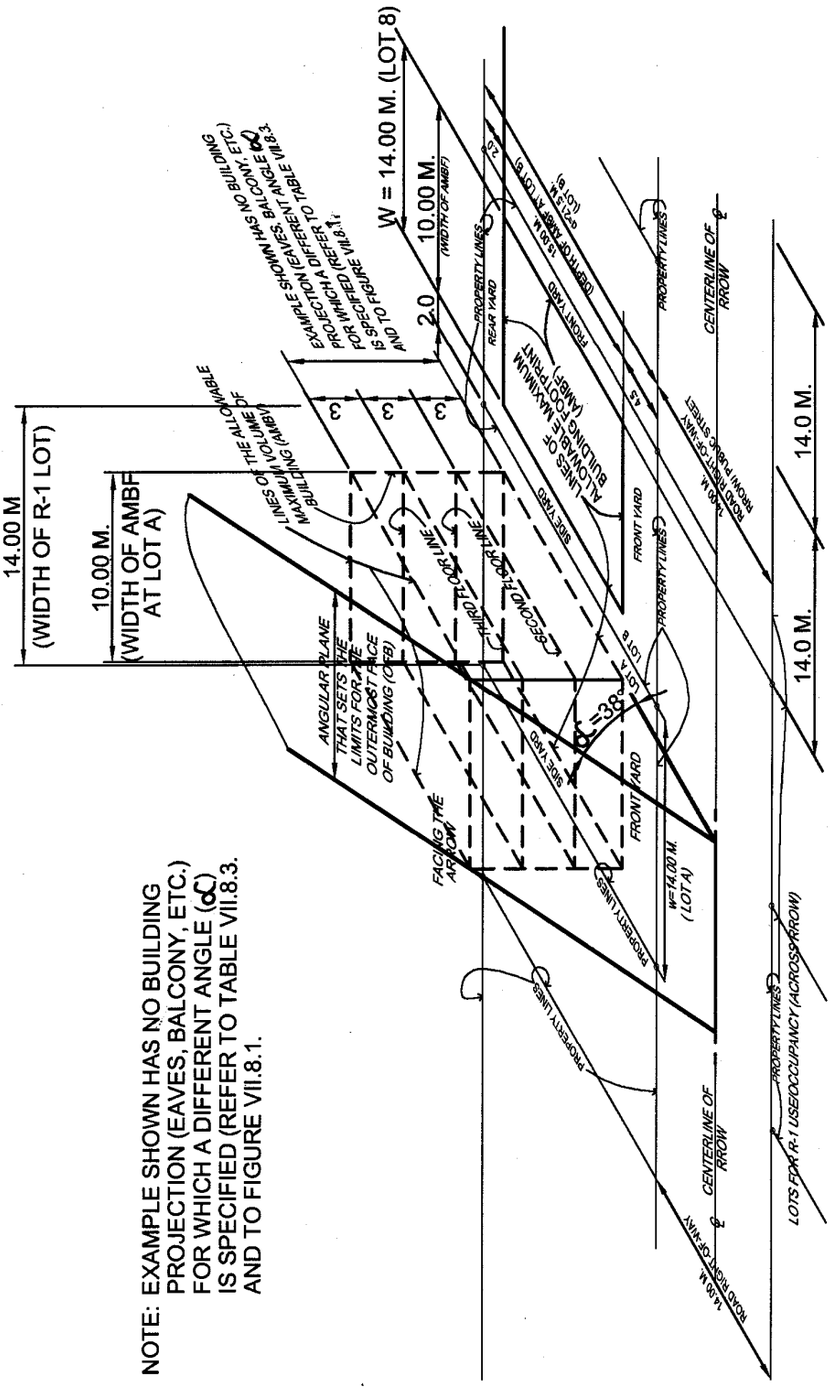


Figure VII.G.1.

Annotation. Steeper angles shall result if the RROW is narrower, particularly for higher density and higher intensity building uses/occupancies..

Note: Except for the minor changes on Tables VII.G.1 and Table VII.G.2, these Rule VII Guidelines (in portrait format) are essentially the same as pages 119 through 129 of 255 of the Rule VII download version (in landscape format)

Figure VII.G.2.



ESTABLISHING THE OUTMOST FACES OF BUILDING (OFB) FOR A TYPICAL R-1 USE / OCCUPANCY THROUGH THE USE OF THE AMBF, THE BHL, THE AMVB AND THE ANGULAR PLANE ALONG THE RROW (14.00 M WIDE RROW)

Annotation. Steeper angles shall result if the RROW is narrower, particularly for higher density and higher intensity building uses/occupancies..

C. BUILDINGS AND OTHER ACCESSORY STRUCTURES WITHIN CEMETERIES AND MEMORIAL PARKS

1. Location of Cemeteries/Memorial Parks

a. Cemeteries and Memorial Parks shall be located in accordance with the approved land use plan of the city/municipality concerned. Prior clearance shall be obtained from the Department of Health, the National Water Resources Council, the Department of Environment and Natural Resources and the Housing and Land Use Regulatory Board.

2. Protective Enclosures

a. The cemetery shall be totally enclosed by a perimeter fence/wall of strong material, and all gates shall be provided with a strong door and lock. Perimeter wall shall not exceed 3.00 meters in height.

b. Where a cemetery is enclosed by a solid reinforced concrete wall at least 2.00 meters high, it is allowed to construct tombs, vaults, mausoleums or other types of sepulchres for the dead up to the walls. Otherwise, a clearance of 5.00 meters shall be maintained between the perimeter fence and the nearest interment plot.

3. Interments, Burials and Entombments

a. For ground interments, there shall be a minimum depth of excavation of 1.50 meters from ground level to base of excavation. However, if concrete vaults are used, the minimum depth of excavation from base of vault to ground level shall be 1.00 meter, depending on the depth of ground water table.

b. Ground interments shall be allowed only in designated graveyard areas of the cemetery and may be provided with suitable markers, headstones or memorials.

c. Vaults for tombs and mausoleums for aboveground interments shall be of solid reinforced concrete. Concrete hollow blocks or any unit masonry construction of ceramics, adobe or the like shall not be allowed for the construction of above-ground vaults; tombs or mausoleums. Mausoleums may be provided with ossuaries and/or cineraria along the interior walls.

d. Multi-level interment niches shall only be of solid reinforced concrete construction, of not less than 150 millimeters thickness in which case they may be allowed to abut walls of the cemetery, *provided*, the walls are of solid reinforced concrete construction. Concrete hollow blocks, or any unit masonry construction of ceramics, adobe or the like shall not be allowed.

e. Before construction is started on any mausoleum, canopy over a tomb, or multi-level niches, a building permit shall be secured therefor from the OBO.

f. Horizontal divisions of columbaria shall be of reinforced concrete of at least 50 millimeters thickness. Vertical divisions may be of concrete hollow blocks of at least 100 millimeters thickness, in which case, cement mortar shall be applied evenly to present a non-porous surface. Minimum dimensions of individual cinerarium shall be 300 millimeters by 300 millimeters by 460 millimeters. Cinerary remains shall be placed inside tightly sealed urns.

4. Accessory Structures

   a. A chapel with a floor area of at least 50.00 sq. meters shall be constructed at a convenient location within the cemetery where funeral ceremonies may be held, and incidentally serve as haven for funeral participants against sun and rain.

   b. Wake chaplets with a minimum area of 50.00 sq. meters for thirty (30) persons and at least 1.60 sq. meters for each additional person may be provided.

   c. Administrative Office - a 64.00 sq. meters lot shall be allocated for an administration building office for memorial parks with an area of above one (1) hectare.

   d. Electrical Power Supply - Distances of lampposts for street lighting shall be placed at a maximum of 100.00 meters or as prescribed by the power firm servicing the area. Utility poles shall be installed along sides of streets and pathways.

   e. Parking Area - Parking area equivalent to a minimum of five 5% of the gross area of memorial park/cemetery shall be provided over and above the required parking area/facility for any structures to be constructed within the premises of the memorial park/cemetery.

   f. Comfort Rooms - Adequate and clean comfort rooms with facilities for disabled persons shall be provided in properly located areas.

NOTE: Refer also to the latest applicable HLURB Guidelines regarding Cemeteries and Memorial Parks.

(emphases, underscoring and annotations supplied)

Rule VIII follows

Note: Except for the minor changes on Tables VII.G.1 and Table VII.G.2, these Rule VII Guidelines (in portrait format) are essentially the same as pages 119 through 129 of 255 of the Rule VII download version (in landscape format)

RULE VIII - LIGHT AND VENTILATION

SECTION 801. General Requirements of Light and Ventilation

1. Subject to the provisions of the **Civil Code** of the Philippines on **Easements of Light and View**, and to the specific provisions of the **Code**, **every building** shall be designed, constructed, and equipped **to provide adequate light and ventilation**. *(Refer to **Guidelines** on Easements, View Corridors/Sight Lines and Basements at the end of this Rule)*

2. **All buildings** shall face a street or public alley or a private street which has been duly approved. *(Refer to **Guidelines** on Streets/RROW and Sidewalks at the end of this Rule)*

3. **No building** shall be altered nor arranged so as to reduce the size of any room or the relative area of windows to less than that provided for buildings under this Rule, or to create an additional room, unless such additional room conforms to the requirements of this Rule.

4. **No building** shall be enlarged so that the dimensions of the required court or yard would be less than what is prescribed for such building lot.

SECTION 802. Measurement of Site Occupancy

1. The measurement of **site occupancy** or **lot occupancy** shall be taken at the ground level and shall be **exclusive** of courts, yards, and light wells.

2. Courts, yards, and light wells shall be measured **clear of all projections** from the walls enclosing such wells or yards with the exception of roof leaders, wall copings, sills, or steel fire escapes not exceeding 1.20 meters in width.

SECTION 803. Percentage of Site Occupancy

1. The measurement of the percentage (%) of **site occupancy** (or lot occupancy) shall be taken at the ground level and shall be exclusive of courts, yards and light wells. Courts, yards, and light wells shall be measured **clear** of all projections from the walls enclosing such wells or yards with the exception of roof leaders, wall copings, sills, or steel fire escapes not exceeding 1.20 meters in width.

2. In case of proposed additional construction on a lot on which another building/structure already stands, the Percentage of Site Occupancy (**PSO**) arising out of such existing buildings/structures must be included in the computation of the **PSO** for the Total Lot Area (**TLA**). In case of discrepancy between the specified **Maximum Allowable PSO** and the other light and ventilation provisions under this Rule, the resulting **lesser building/structure footprint** or gross floor area at the ground floor (or at grade level) **must prevail**.

3. **Maximum site occupancy** shall be governed by use, type of construction, and height of the building and the use, area, nature and location of the site; and subject to the provisions of the local zoning requirements and in accordance with the following types of open spaces:

    a. Public open spaces - streets, alleys, easements of sea/lakeshores, rivers, creeks, *esteros*, railroad tracks, parks/plazas, playgrounds, and the like.

    b. Total Open Spaces within Lot (**TOSL**) - courts, yards, gardens, light wells, uncovered driveways, access roads and parking spaces consisting of two (2) types:

i. Paved or tiled (**hardscaped** areas); sub-classification of open space shall fall under Maximum Allowable Impervious Surface Areas (**ISA**) within the Total Lot Area (**TLA**); and

ii. Unpaved areas within the lot that are with exposed soil and planted (**softscaped**), i.e., the Unpaved Surface Areas (**USA**); this sub-classification is the **true open space**.

4. The following Table illustrates the manner in determining the **Maximum Allowable Percentage of Site Occupancy (PSO), Maximum Allowable Impervious Surface Area (ISA), Maximum Allowable Construction Area (MACA), Minimum Unpaved Surface Area (USA),** and the **Total Open Space within Lot (TOSL)** with reference to Type of Land Use Zoning per Lot.

Table VIII.1. **Reference Table of Maximum Allowable PSO, Maximum Allowable ISA, the MACA, the Minimum USA and the TOSL by Type of Land Use Zoning per Lot**

Building/ Structure Use or Occupancy (or Land Use)[a]	% of Total Lot Area (**TLA**)				
	Duly-Approved Zoning [b]	Maximum Allowable **PSO** [c,d]	Maximum Allowable **ISA**[c] (Paved Open Spaces)	Minimum **USA** (Unpaved Open Spaces)	**TOSL** [d] (**ISA + USA**)
Residential	Basic Residential 2 (**R-2**)/ Medium Density Housing [single family dwelling unit with a Building Height Limit (**BHL**) of 10.00 meters]	55 [e]	30	15	45
		60 [f]	30%	10	40
	Maximum **R-2** / Medium Density Housing (multiple family dwelling units within one building/ structure with a **BHL** of 15.00 meters)	60 [e]	30	10	40
		70 [f]	20	10	30
	Basic Residential 3 (**R-3**)/ High Density Housing (single family dwelling unit with a **BHL** of 10.00 meters)	65 [e]	20	15	35
		70 [f]	20	10	30
	Maximum **R-3**/ High Density Housing (multiple family dwelling units within one building/ structure with a **BHL** of 36.00 meters)	70 [e]	20	10	30
		80 [f]	10	10	20
	Residential 4 (**R-4**)/ Individual Townhouse Units	70 [e]	20	10	30
		80 [f]	10	10	20
	Residential 5 (**R-5**)/ Condominiums	70 [e]	20	10	30
		80 [f]	10	10	20
Commercial	Commercial 1	70 [e]	20	10	30

	(**Com-1**)	80 f	10	10	20

Building/ Structure Use or Occupancy (or Land Use)a	% of Total Lot Area (**TLA**)				
	Duly-Approved Zoning b	Maximum Allowable **PSO** c,d	Maximum Allowable **ISA**c (Paved Open Spaces)	Minimum **USA** (Unpaved Open Spaces)	**TOSL** d (**ISA + USA**)
	Commercial 2 (**Com-2**)	75 e	20	5	25
		85 f	10	5	15
	Commercial 3 (**Com-3**)	80 e	15	5	20
		90 f	5	5	10
Industrial	Industrial 1 (**Ind-1**)	70 e	20	10	30
		80 f	10	10	20
	Industrial 2 (**Ind-2**)	70 e	15	15	30
		80 f	5	15	20
	Industrial 3 (**Ind-3**)	70 e	15	15	30
		80 f	5	15	20
Institutional	-	50 e	20	30	50
		60 f	20	20	40
Cultural	-	60 e	20	20	40
		70 f	20	10	30
Utility/Trans-portation/ Services	-	50 e	40	10	50
		60 f	30	10	40
Sidewalks/ Arcades at RROW	-	-	22.22 (of total width of RROW as Paved portion of sidewalk)	11.11 (of total width of RROW as Unpaved portion of sidewalk)	33.33 (of total width of RROW)
Parks and Open Recreational Spaces	-	20	30	50	80
Planned Unit Development (PUD)	PUD at a reclamation area close to an operating airport	70	15	15	30
	PUD at a reclamation area	70	15	15	30
	PUD at a coastal area	70	15	15	30
	PUD at an inland area close to an operating airport	70	10	20	30
	PUD at an inland area	70	10	20	30
Cemetery	-	85	10	5	15

Notes:

a) per duly-approved City/ Municipal Comprehensive Land Use Plan (CLUP)
b) per duly-approved City/Municipal Zoning Ordinance (ZO) and its IRR
c) PSO + ISA = MACA (Maximum Allowable Construction Area)
d) PSO + TOSL = TLA (Total Lot Area).

e) without firewall
f) with firewall

4. Minimum Requirements for Total Open Spaces within Lot (TOSL)

a. Total Open Spaces within Lot (**TOSL**) are portions of the Total Lot Area (**TLA**) not occupied by the **Maximum Allowable PSO**. The **TOSL** may consist of either the **Maximum Allowable ISA** (**hardscaped** areas) or the **USA** (exposed and planted/**softscaped** soil) or may also be the combination of both types of open spaces. (***Figure VIII.1.***)

b. Group A buildings or Residential 1 (**R-1**) uses/occupancies shall follow the minimum yard standards in ***Table VIII.2.*** to comply with the **TOSL** requirement.

c. Abutments for Basic Uses/Occupancies forming part of new developments shall be basically similar to the restrictions prescribed for firewalls under ***Rule VII***, to wit:

i. Absolutely no abutments are allowed at any property line for any **R-1** lot type/location.

ii. Abutments shall be allowed on only one (1) side for any **R-2** lot type/location. There shall be no firewalls/abutments on the front and rear property lines for any **R-2** lot type/ location.

iii. Abutments shall be allowed on two (2) sides only or on one (1) side and the rear property line/ boundary for any **R-3** lot type/location. There shall be no abutments on the front property line for any **R-3** lot type/location.

iv. Abutments shall be allowed on two (2) sides only for any **R-4** lot type/location. There shall be no firewalls/abutments on the front and rear property line for any **R-4** lot type/location.

v. Abutments shall be allowed on two (2) sides only or on one (1) side and the rear property line/boundary for any **R-5** lot type/location. There shall be no abutments on the front property line for any **R-5** lot type/location.

vi. Abutments shall be allowed on two (2) sides only or on one (1) side and the rear property line/boundary for any **C-3** lot type/location. There shall be no abutments on the front property line for any **C-3** lot type/location.

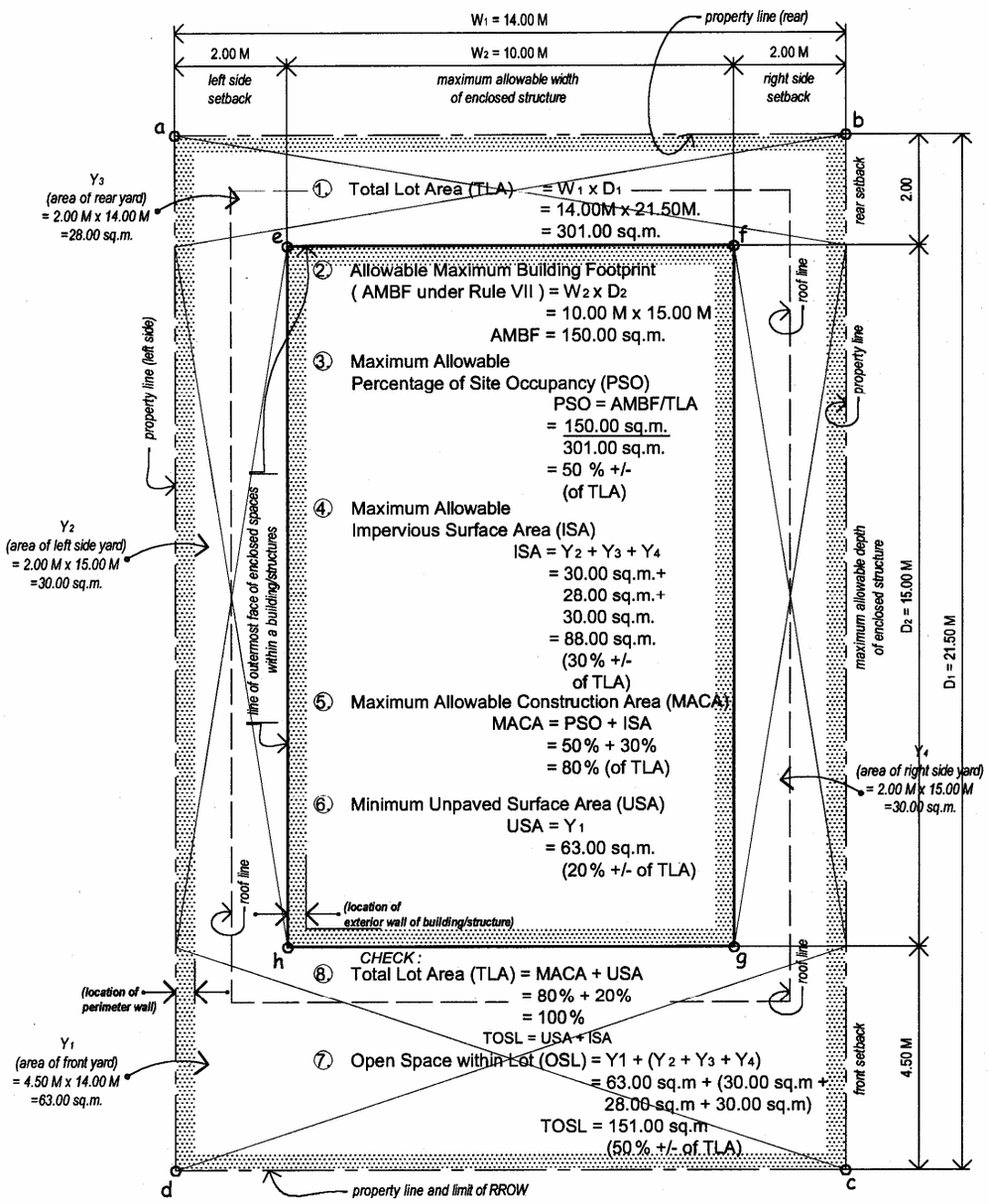
d. Lot Type/Location

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Only seven (7) types of lots and their respective locations are described under this Rule. (***Figures VIII.2.*** through ***VIII.8.***)

e. Variance

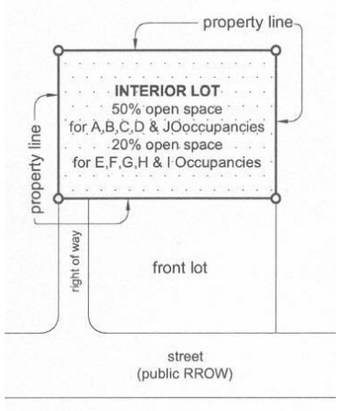
When the lots as described in ***Figures VIII.2.*** through ***VIII.8.*** are too narrow or too shallow such that the public open space, e.g., RROW, alley or the like on which they abut can adequately supply light and ventilation to every room therein subject to the requirements on window opening, the requirements on the minimum Total Open Space within Lot (**TOSL**) above may be waived (***Figures VIII.9.*** through ***VIII.11.***), provided however, that for lots abutting on only one (1) public open space, the depth of the open space to be provided shall not be more than 8.00 meters; and for those lots abutting two (2) or more public open spaces, the depth of the open space to be provided shall not be more than 12.00 meters.

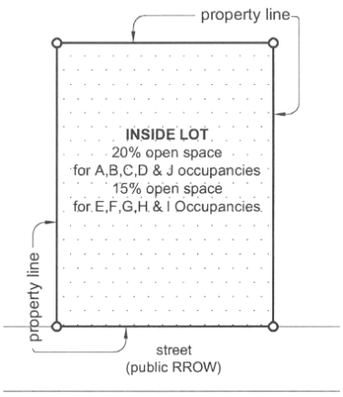


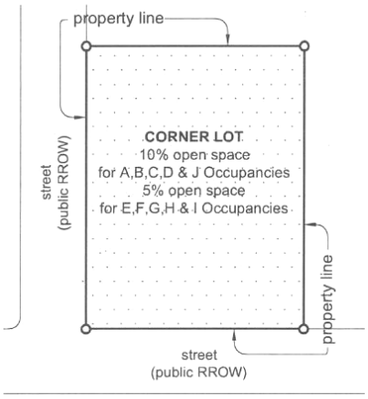
Maximum Allowable PSO/ISA, MACA, Minimum USA, OSL and AMBF for a Residential 1 (R-1) Lot (Single-Detached Dwelling Unit)

Figure VIII.1.

*Annotation. Spaces for carports have to be introduced **within** the building footprint. If no roof is introduced over the proposed carport (that may be partly situated at the front yard or any of the 2 side yards), the space may then serve as open car parking. To maintain the **single-detached** quality of the building, only a low fence or low wall (**not a all wall or a firewall**) should be allowed along the entire property perimeter. **Firewalls are absolutely prohibited for R-1 lots**.*







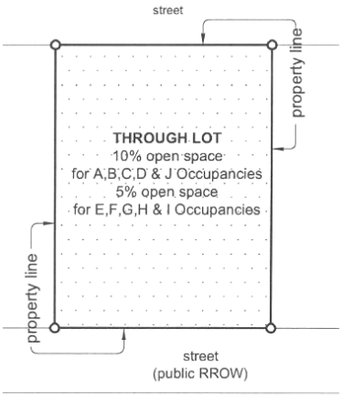
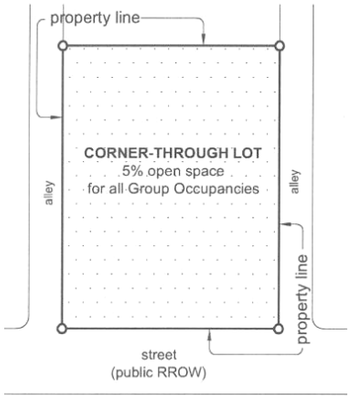


Figure VIII.2.

Figure VIII.3.

Figure VIII.4.

Figure VIII.5.



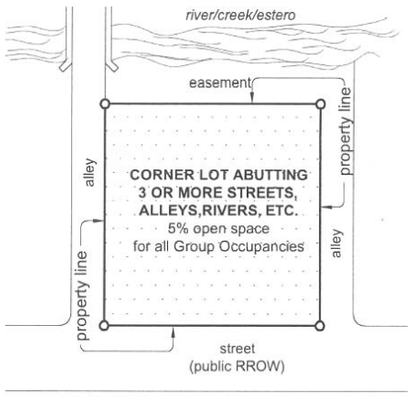
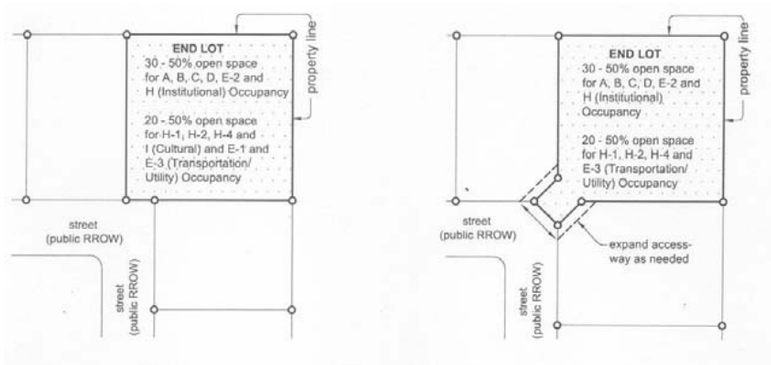


Figure VIII.6.

Figure VIII.7.

Figure VIII.8.
LOT TYPES



Annotation: The last 2 lot types are recommended for low density residential (R-1) developments.

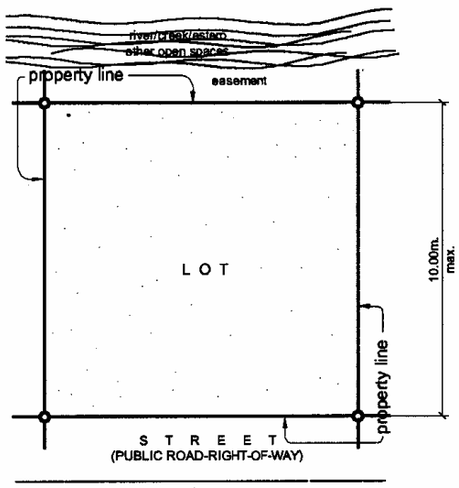


Figure VIII.9.

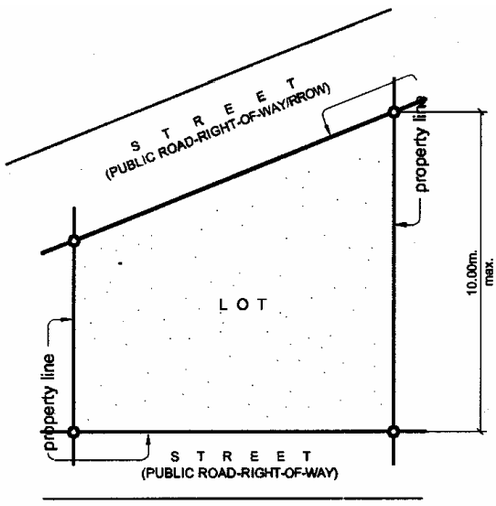


Figure VIII.10.

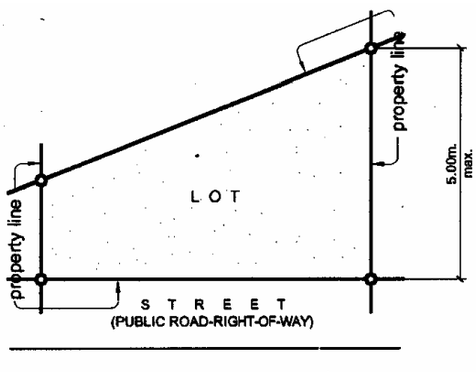


Figure VIII.11.

LOT TYPES

Annotation: The last 2 lot configurations may be better suited for non-residential developments.

SECTION 804. Sizes and Dimensions of Courts

1. **Minimum** sizes of courts and yards and their least dimensions shall be governed by the use, type of construction, and height of the building as provided hereunder, provided that the minimum horizontal dimension of said courts and yards shall be not less than 2.00 meters. All inner courts shall be connected to a street or yard, either by a passageway with a minimum width of 1.20 meters or by a door through a room or rooms.
2. The required open space shall be located totally or distributed anywhere within the lot in such a manner as to provide maximum light and ventilation into the building. (***Figures VIII.12.*** through ***VIII.15.***)
3. YARD - the required open space left between the **outermost face of the building**/structure and the property lines, e.g., front, rear, right and left side yards. **The width of the yard is the setback**. Yards prescribed for Commercial, Industrial, Institutional and Recreational Buildings are shown in ***Table VIII.3.*** hereafter.

Table VIII.2. **Minimum Setbacks for Residential Buildings/Structures**

YARD	Type of **Residential** Use/ Occupancy						
	R – 1 (meters)	**R - 2**		**R-3**		**R - 4** (individual lot/unit) (meters)	**R - 5****** (meters)
		Basic (meters)	Maximum (meters)	Basic (meters)	Maximum (meters)		
Front	4.50	3.00	8.00 *	3.00	8.00 *	4.50	6.00
Side	2.00	2.00 **	2.00 **	***	2.00 (optional)	2.00 (optional)	3.00
Rear	2.00	2.00	2.00	***	2.00	2.00	3.00

Notes:

*a) The setback requirements in **Table VIII.2.** above are for newly-developed subdivisions.*

*b) * Total setback only at grade (or natural ground) level, i.e., 3.00 meters + 5.00 meters = 8.00 meters (to accommodate part of the minimum parking requirement outside the designated area for the front yard). The second and upper floors and mezzanine level shall thereafter comply with the minimum 3.00 meters setback unless otherwise provided under the Code.*

*c) ** Setback required for only one (1) side. Setbacks on two sides shall be optional.*

*d) *** Abutments on two sides and rear property lines may be allowed with conditions as enumerated under Section 804, Subsection 10 of this Rule.*

*e) **** Mixed-Use Buildings/Structures in R-5 lots shall be considered a commercial use or occupancy if a substantial percentage, i.e., 55% of the Gross Floor Area (**GFA**) is commercial.*

f) In cases where yards/setbacks are impossible to attain or where frontage and depth of lots are similar to that of Open Market or Medium Cost Housing Projects, abutments on the sides and rear property lines may be allowed and 1.50 meters front yard is left open as transition area.

Table VIII.3. Setbacks for Commercial*, Industrial, Institutional and Recreational Buildings

Road Right-of-Way (**RROW**) Width (meters)	Front (meters)	Side (meters)	Rear (meters)

30.00 & above	8.00	5.00	5.00
25.00 to 29.00	6.00	3.00	3.00
20.00 to 24.00	5.00	3.00	3.00
10.00 to 19.00	5.00	2.00	2.00
Below 10.00	5.00	2.00	2.00

Note:

* *Mixed-Use Buildings/Structures in **R-5** lots may be considered a commercial development if a substantial percentage of the **GFA** is commercial.*

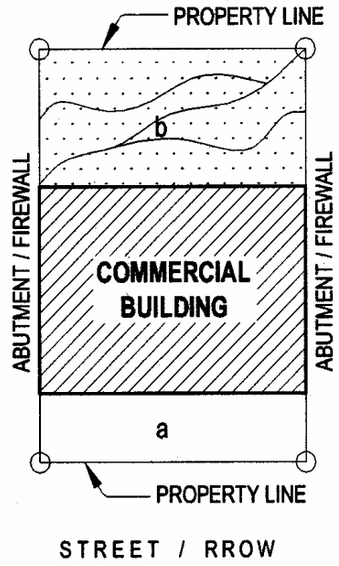


Figure VIII.12.

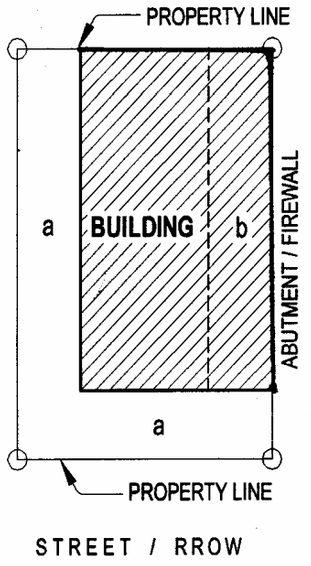


Figure VIII.13.

a - OPEN SPACE
b - ALTERNATE LOCATIONS

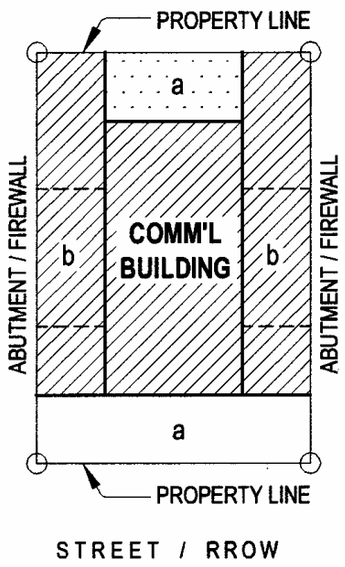


Figure VIII.14.

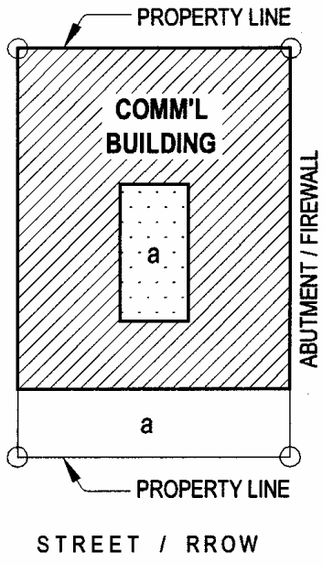


Figure VIII.15.

REQUIRED OPEN SPACE LOCATIONS

*Annotation: For all firewalls (particularly those above 3.0 m in height), great care should be taken **when** such firewalls face the south or southwest i.e. facing the southwest monsoon ("**habagat**") winds which are wet and destructive i.e. the firewalls may also be generally subjected to rain for up to six to eight (6-8) months annually. In such a situation, **firewall gutters** are strongly suggested to prevent the firewall water from flooding the adjoining properties. A better option is to set back the firewall by up to 0.60 m to create a drainage channel as well as a firewall maintenance space i.e. for painting and general repair work. When the latter solution is adopted, an **endwall** is created instead.*

4. The **setback** requirements in ***Table VIII.3.*** above are for newly-developed thoroughfares. For highly built-up urban areas with duly established lines and grades reflecting therein proposed road widening and elevation, the requirements in ***Table VIII.3.*** above may **not** be imposed and the face of the building may abut on the side and/or rear property lines provided that all the requirements on open space, window opening, artificial ventilation, if any, and firewalls (**Rule VII**) are first fully complied with.

5. Every court shall have a width of not less than 2.00 meters for one (1) or two (2) storey buildings. However, if the court is treated as a yard or vice versa, this may be reduced to not less than 1.50 meters in cluster living units such as quadruplexes, rowhouses and the like, with adjacent courts with an area of not less than 3.00 sq. meters. Provided further, that the separation walls or fences, if any, shall not be higher than 2.00 meters. Irregularly–shaped lots such as triangular lots and the like, whose courts may be also triangular in shape may be exempted from having a minimum width of not less than what is required in ***Table VIII.3.*** and as shown in ***Figures VIII.16., VIII.17., VIII.18. and VIII.19***.

6. For buildings of more than two (2) storeys in height, the minimum width of the rear or side court shall be increased at the rate of 300 millimeters for each additional storey up to the fourteenth (14th) storey (***Figure VIII.20.*** showing incremental setbacks). For buildings exceeding fourteen (14) storeys in height, the required width of the court shall be computed on the basis of fourteen (14) storeys.

7. Uncovered Driveways, Access Roads and Parking Spaces may be considered part of the open space provided that they are open and unobstructed from the ground upward as in courts and yards.

8. A carport shall not be considered part of the Total Open Space within Lot (**TOSL**) particularly if it is entirely roofed or roofed with overhangs. In such a case, it must be counted as an integral component of the Allowable Maximum Building Footprint (**AMBF**).

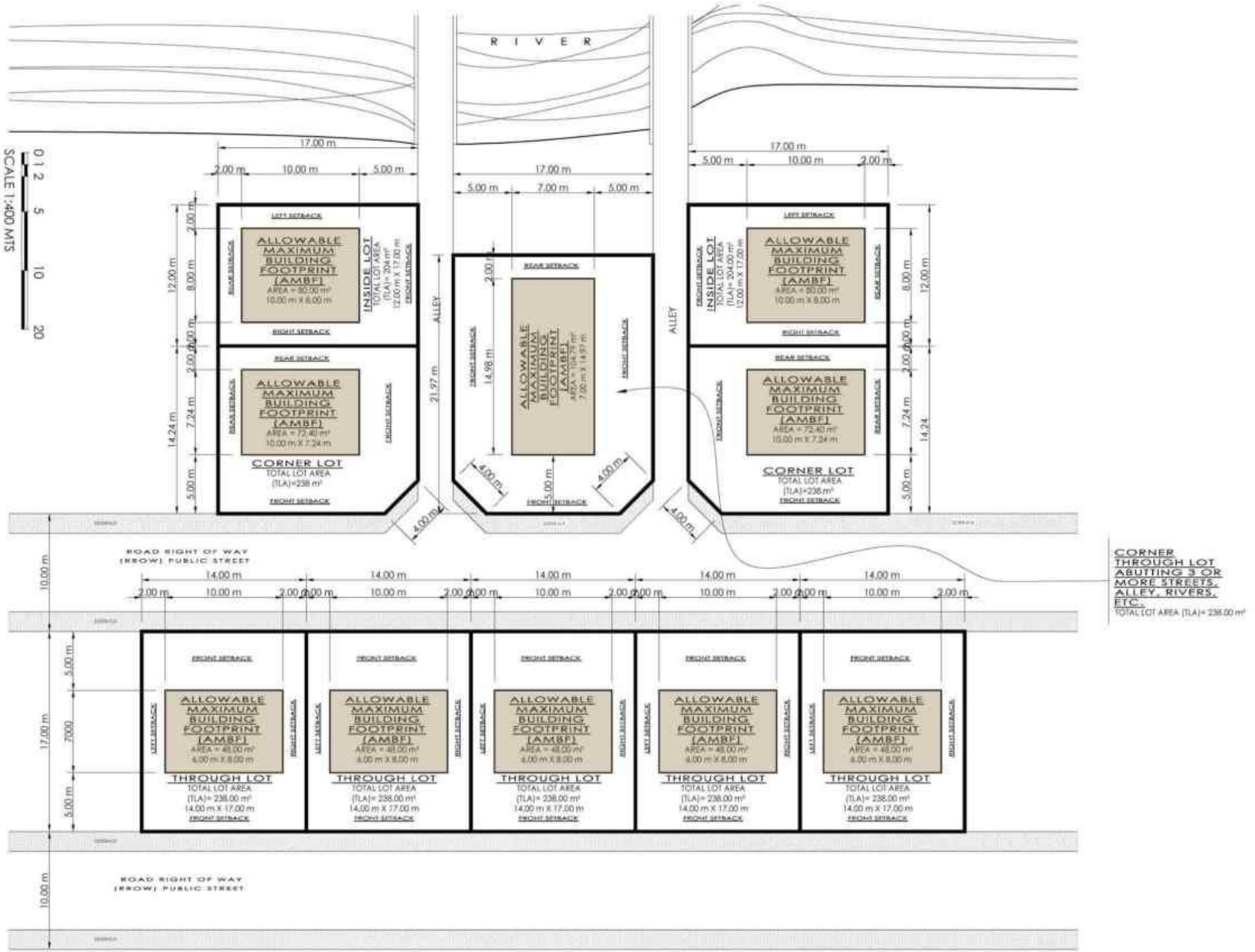
9. A front yard may be partly paved/hardscaped (converted into a courtyard) to serve as a carport but only for a basic **R-2 or basic R-3 or R-4** (individual lot) use or occupancy, i.e., all for single-family dwelling units only. All other uses/occupancies shall not be allowed to use the front yard for a carport nor for parking.

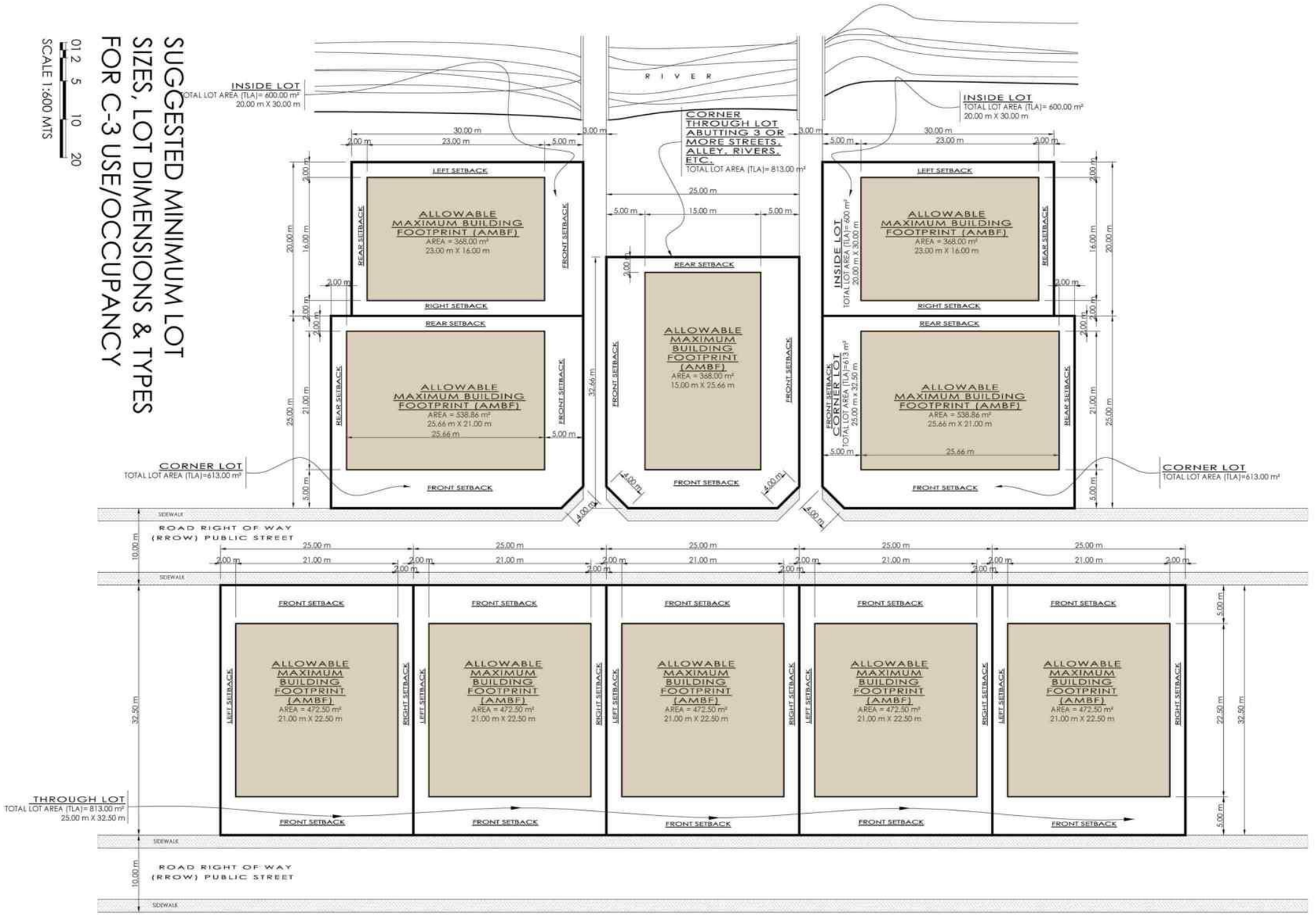
10. For **Basic R-3**, abutments on two sides and rear property lines may be allowed provided the following requirements are first complied with:

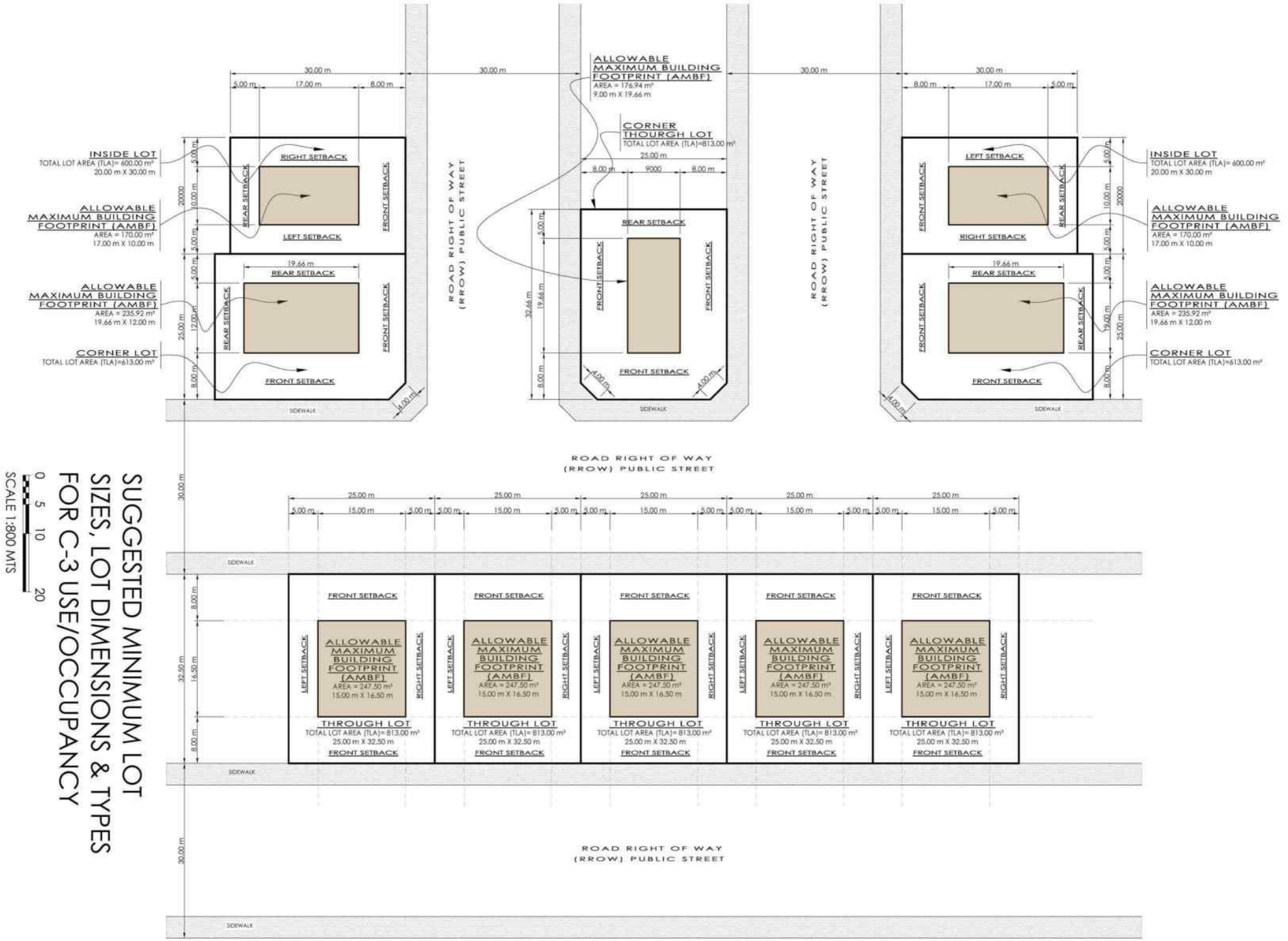
    a. Open space as prescribed in Reference Table for **Maximum PSO, TOSL**, and ***Table VIII.2.*** of this Rule are satisfied.

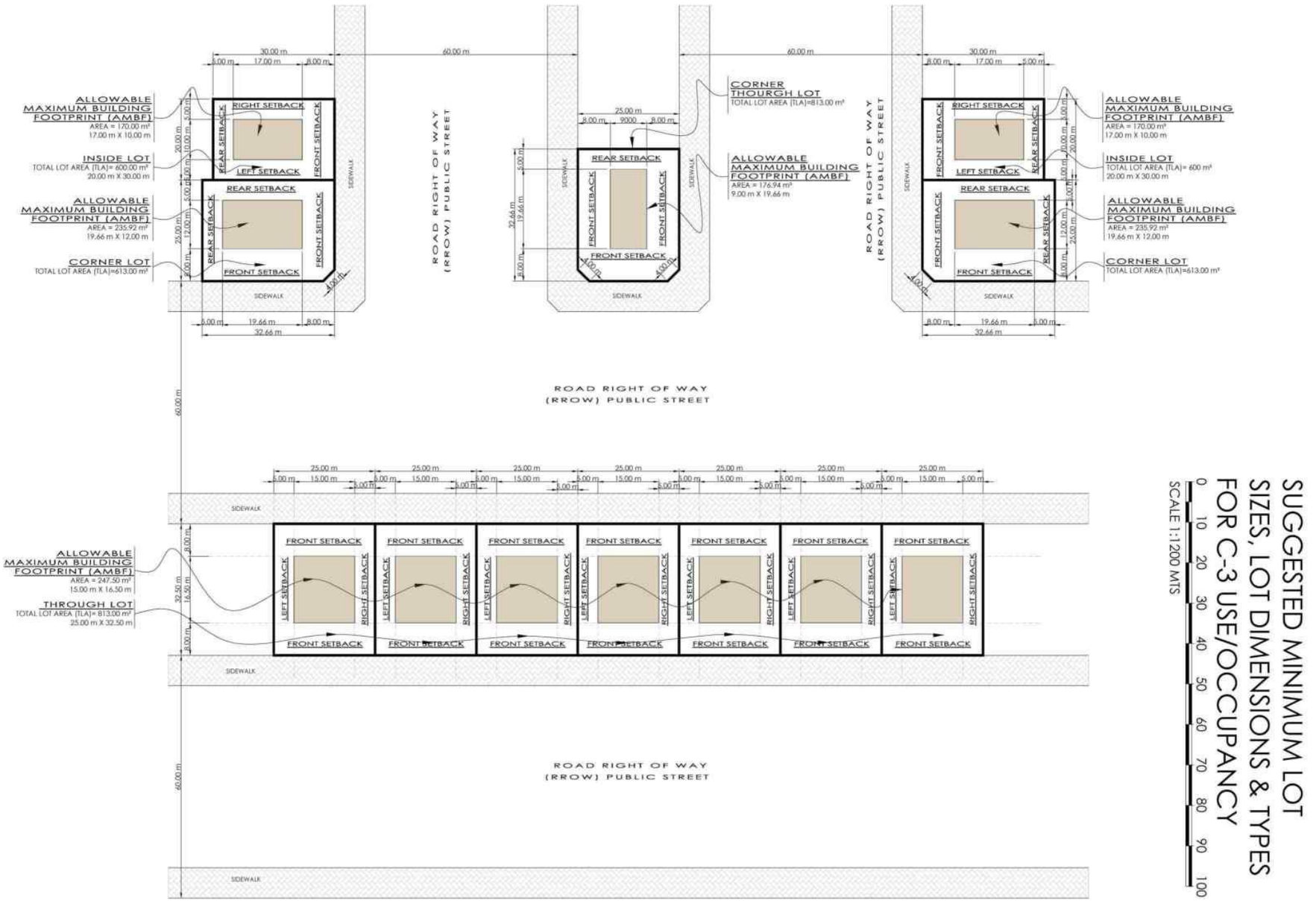
    b. Window opening as prescribed in **Section 808 of this Rule** are satisfied.

SUGGESTED MINIMUM LOT SIZES, LOT DIMENSIONS & TYPES FOR C-1 USE/OCCUPANCY




SUGGESTED MINIMUM LOT SIZES, LOT DIMENSIONS & TYPES FOR C-3 USE/OCCUPANCY
SCALE 1:600 MTS
0 1 2 5 10 20
INSIDE LOT
TOTAL LOT AREA (TLA)= 600.00 m²
20.00 m X 30.00 m
RIVER
CORNER THROUGH LOT ABUTTING 3 OR MORE STREETS, ALLEY, RIVERS, ETC.
TOTAL LOT AREA (TLA)= 813.00 m²
ALLOWABLE MAXIMUM BUILDING FOOTPRINT (AMBF)
AREA = 368.00 m²
23.00 m X 16.00 m
ALLOWABLE MAXIMUM BUILDING FOOTPRINT (AMBF)
AREA = 538.86 m²
25.66 m X 21.00 m
ALLOWABLE MAXIMUM BUILDING FOOTPRINT (AMBF)
AREA = 368.00 m²
15.00 m X 25.66 m
CORNER LOT
TOTAL LOT AREA (TLA)=613.00 m²
25.00 m x 32.50 m
ALLOWABLE MAXIMUM BUILDING FOOTPRINT (AMBF)
AREA = 472.50 m²
21.00 m X 22.50 m
THROUGH LOT
TOTAL LOT AREA (TLA)= 813.00 m²
25.00 m X 32.50 m
ROAD RIGHT OF WAY (RROW) PUBLIC STREET
SIDEWALK
FRONT SETBACK
REAR SETBACK
LEFT SETBACK
RIGHT SETBACK

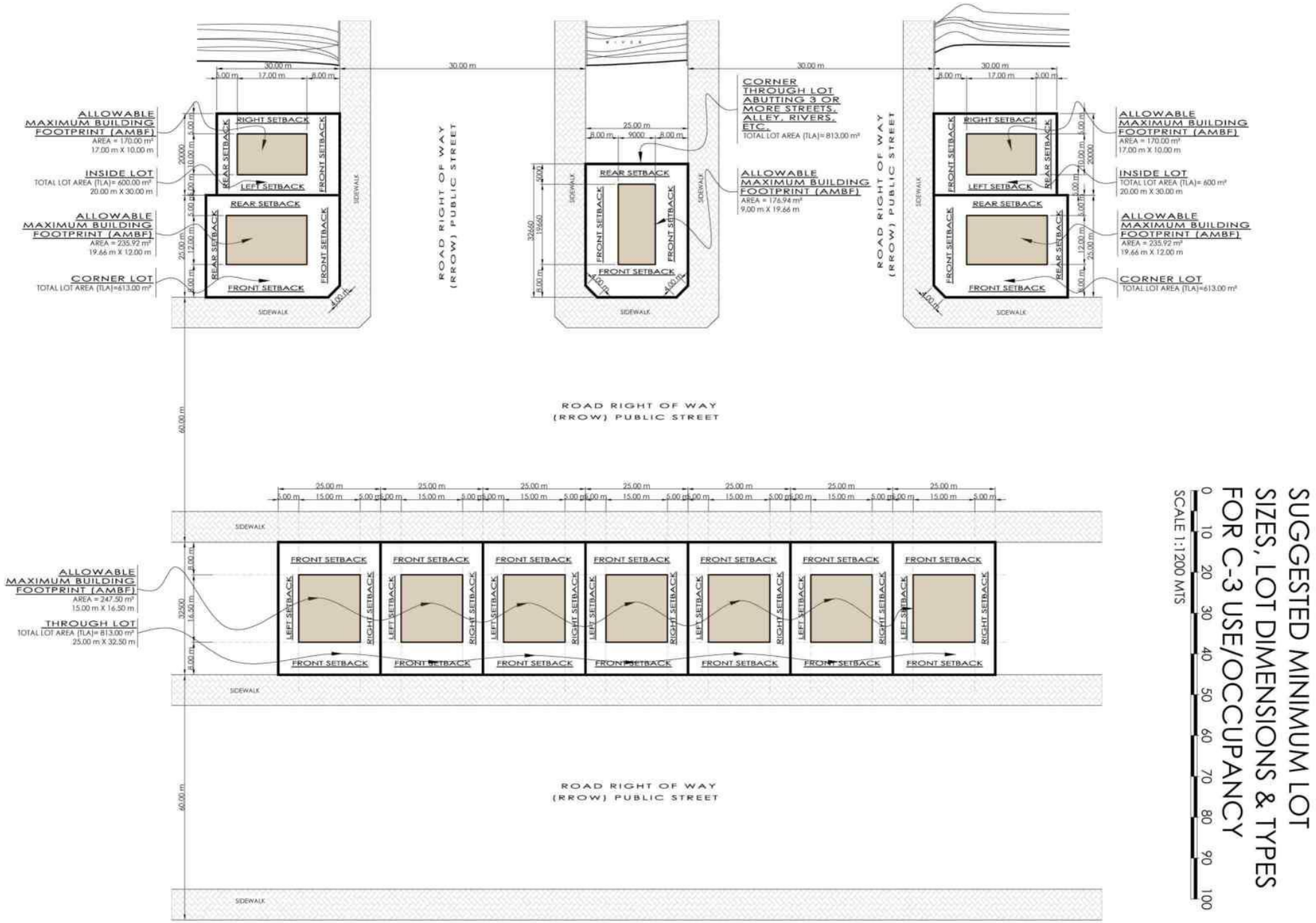

SUGGESTED MINIMUM LOT SIZES, LOT DIMENSIONS & TYPES FOR C-3 USE/OCCUPANCY
SCALE 1:800 MTS
0 5 10 20
INSIDE LOT
TOTAL LOT AREA (TLA)= 600.00 m²
20.00 m X 30.00 m
ALLOWABLE MAXIMUM BUILDING FOOTPRINT (AMBF)
AREA = 170.00 m²
17.00 m X 10.00 m
ALLOWABLE MAXIMUM BUILDING FOOTPRINT (AMBF)
AREA = 235.92 m²
19.66 m X 12.00 m
CORNER LOT
TOTAL LOT AREA (TLA)=613.00 m²
CORNER THOURGH LOT
TOTAL LOT AREA (TLA)=813.00 m²
ALLOWABLE MAXIMUM BUILDING FOOTPRINT (AMBF)
AREA = 176.94 m²
9.00 m X 19.66 m
ROAD RIGHT OF WAY (RROW) PUBLIC STREET
SIDEWALK
RIGHT SETBACK
LEFT SETBACK
FRONT SETBACK
REAR SETBACK
THROUGH LOT
TOTAL LOT AREA (TLA)= 813.00 m²
25.00 m X 32.50 m
AREA = 247.50 m²
15.00 m X 16.50 m

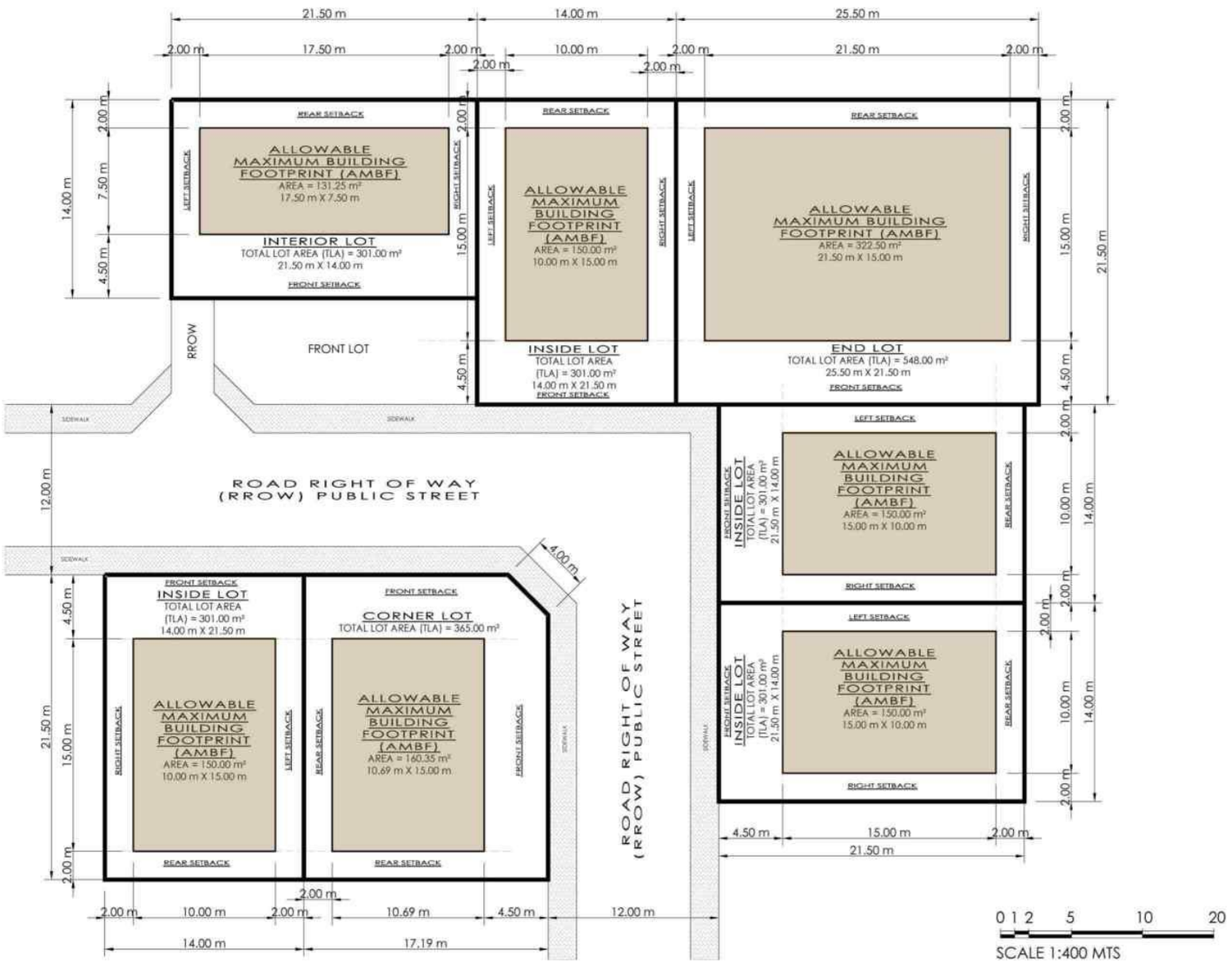


SUGGESTED MINIMUM LOT SIZES, LOT DIMENSIONS & TYPES FOR C-3 USE/OCCUPANCY

SCALE 1:1200 MTS

0 10 20 30 40 50 60 70 80 90 100

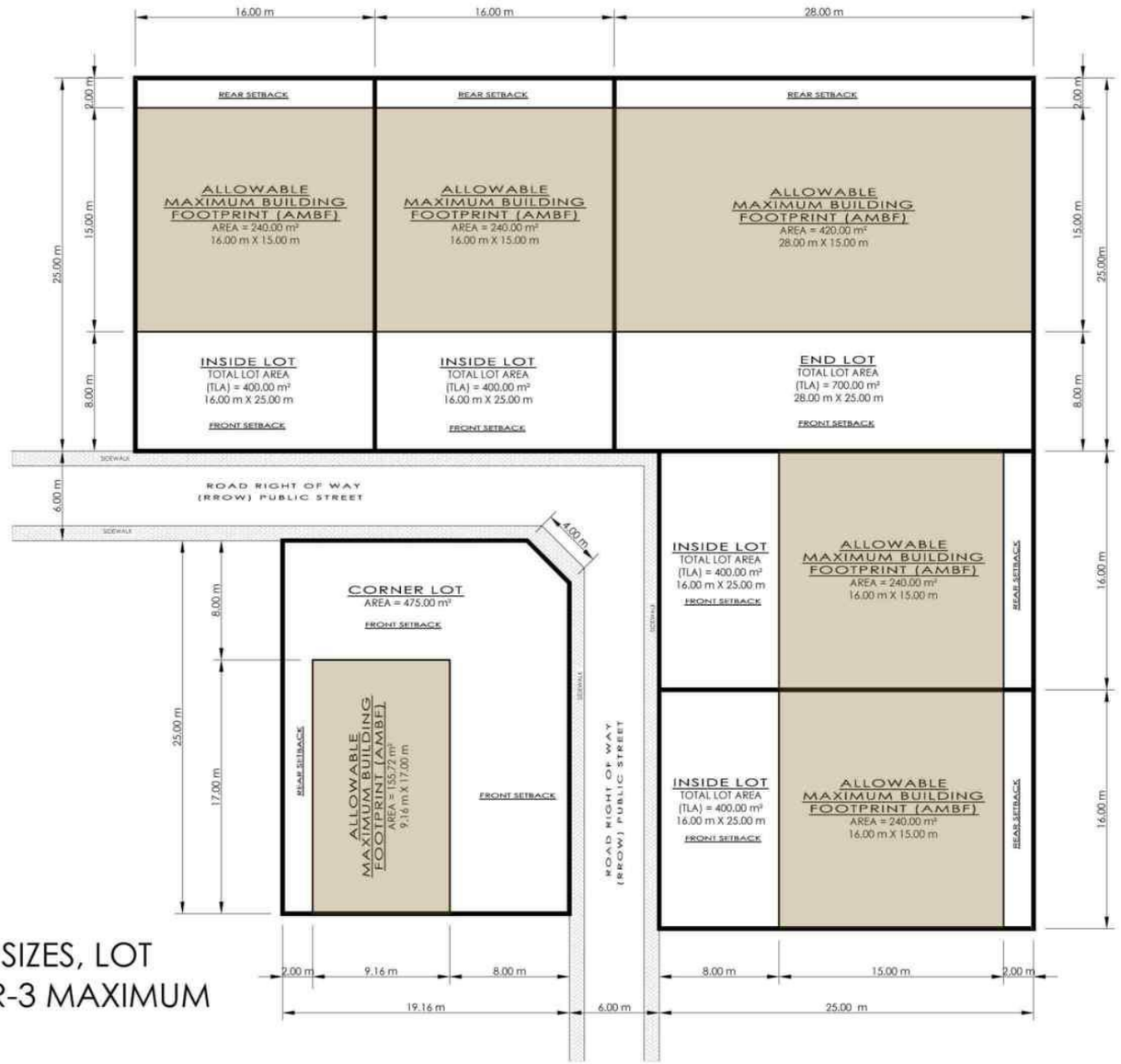

ALLOWABLE MAXIMUM BUILDING FOOTPRINT (AMBF)
AREA = 170.00 m²
17.00 m X 10.00 m
INSIDE LOT
TOTAL LOT AREA (TLA)= 600.00 m²
20.00 m X 30.00 m
ALLOWABLE MAXIMUM BUILDING FOOTPRINT (AMBF)
AREA = 235.92 m²
19.66 m X 12.00 m
CORNER LOT
TOTAL LOT AREA (TLA)=613.00 m²
CORNER THROUGH LOT ABUTTING 3 OR MORE STREETS, ALLEY, RIVERS, ETC.
TOTAL LOT AREA (TLA)= 813.00 m²
ALLOWABLE MAXIMUM BUILDING FOOTPRINT (AMBF)
AREA = 176.94 m²
9.00 m X 19.66 m
ROAD RIGHT OF WAY (RROW) PUBLIC STREET
SIDEWALK
RIGHT SETBACK
LEFT SETBACK
FRONT SETBACK
REAR SETBACK
30.00 m
60.00 m
25.00 m
ALLOWABLE MAXIMUM BUILDING FOOTPRINT (AMBF)
AREA = 247.50 m²
15.00 m X 16.50 m
THROUGH LOT
TOTAL LOT AREA (TLA)= 813.00 m²
25.00 m X 32.50 m
SUGGESTED MINIMUM LOT SIZES, LOT DIMENSIONS & TYPES FOR C-3 USE/OCCUPANCY
SCALE 1:1200 MTS
0 10 20 30 40 50 60 70 80 90 100



0 1 2 5 10 20

SCALE 1:400 MTS

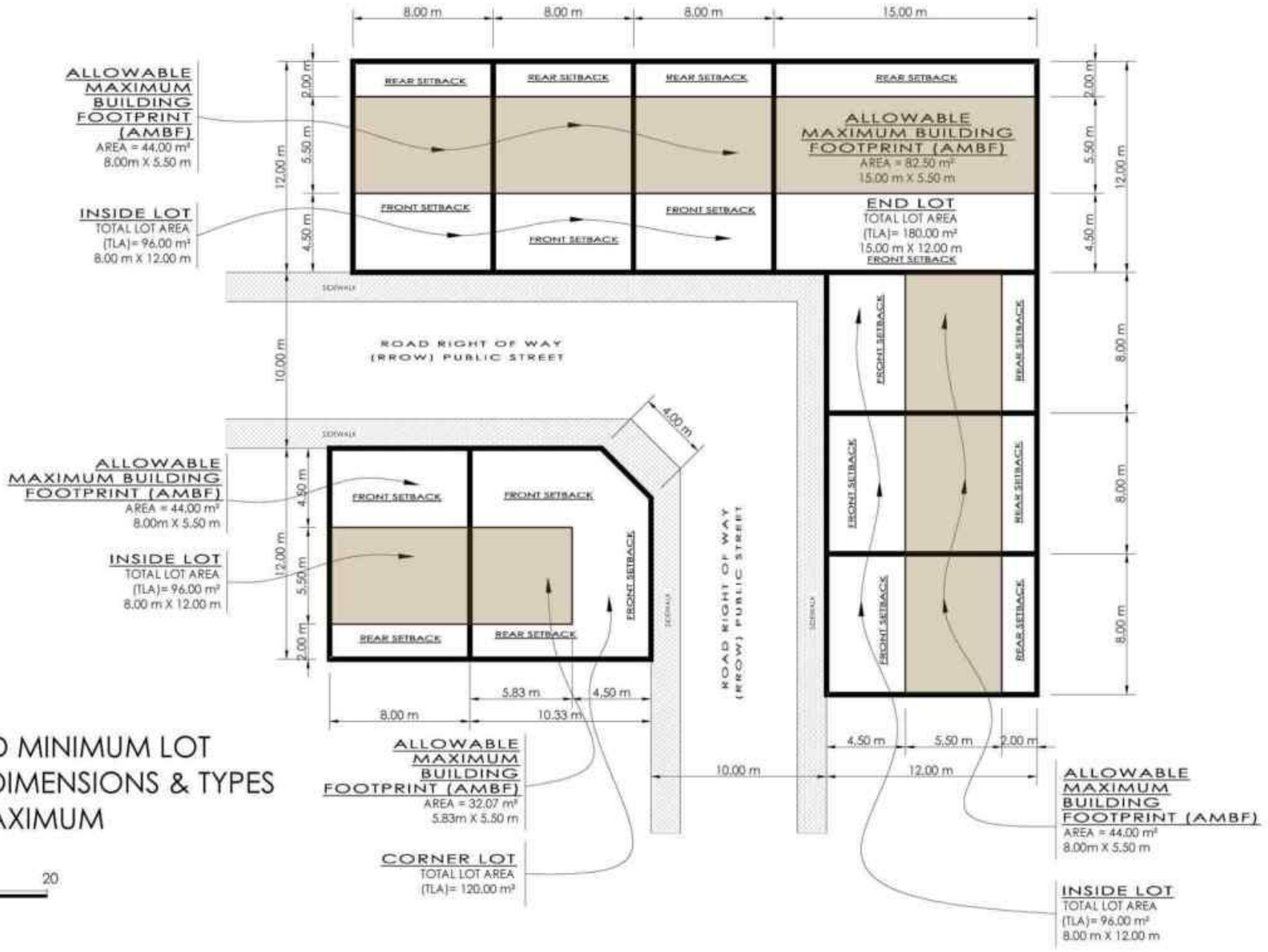
SUGGESTED MINIMUM LOT SIZES, LOT DIMENSIONS & TYPES FOR R-1



SUGGESTED MINIMUM LOT SIZES, LOT DIMENSIONS & TYPES FOR R-3 MAXIMUM

0 1 2 5 10 20

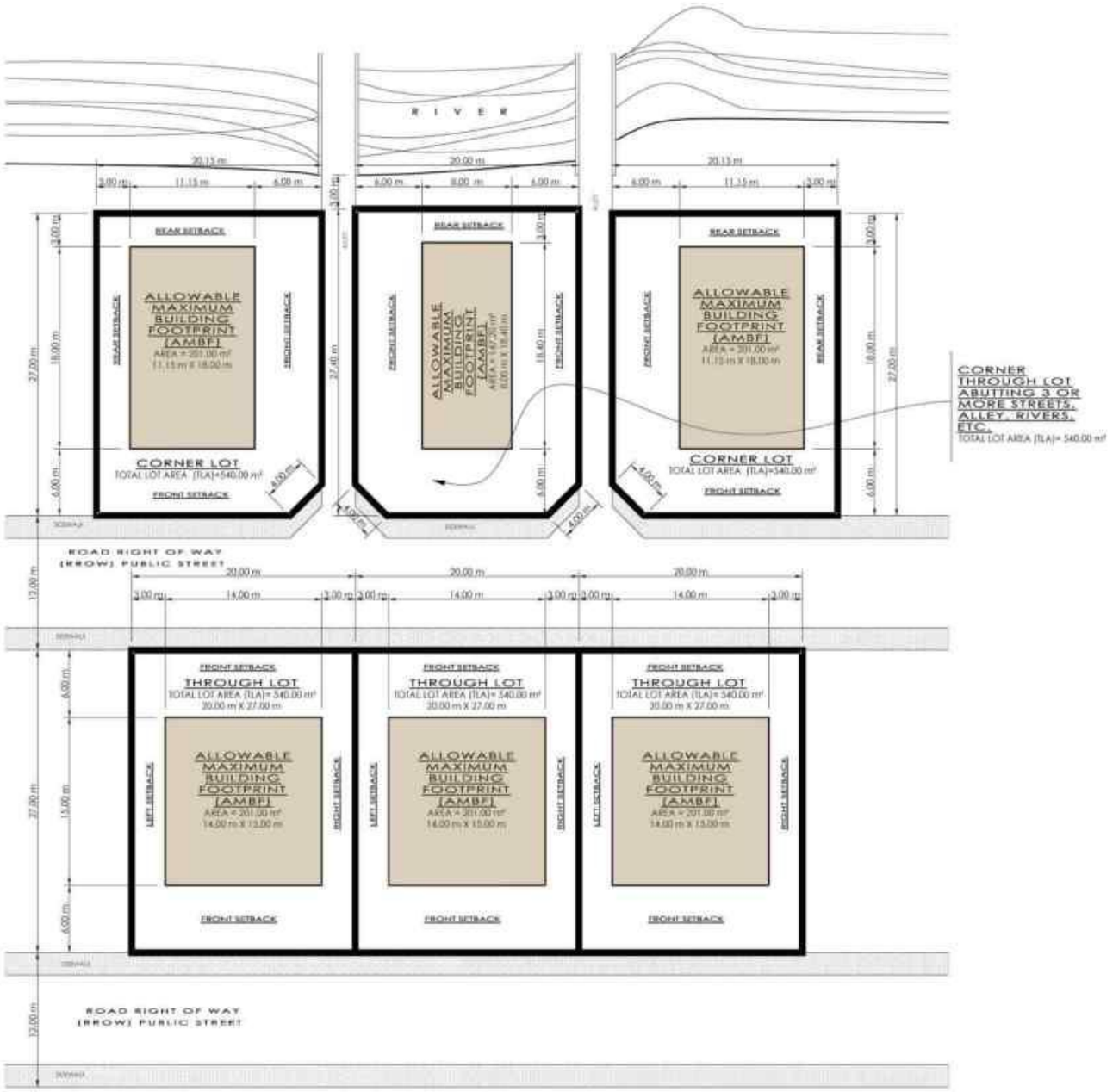
SCALE 1:400 MTS


8.00 m
8.00 m
8.00 m
15.00 m
ALLOWABLE MAXIMUM BUILDING FOOTPRINT (AMBF)
AREA = 44.00 m²
8.00m X 5.50 m
INSIDE LOT
TOTAL LOT AREA
(TLA)= 96.00 m²
8.00 m X 12.00 m
REAR SETBACK
FRONT SETBACK
ALLOWABLE MAXIMUM BUILDING FOOTPRINT (AMBF)
AREA = 82.50 m²
15.00 m X 5.50 m
END LOT
TOTAL LOT AREA
(TLA)= 180.00 m²
15.00 m X 12.00 m
2.00 m
5.50 m
4.50 m
12.00 m
10.00 m
ROAD RIGHT OF WAY
(RROW) PUBLIC STREET
SIDEWALK
4.00 m
8.00 m
5.83 m
4.50 m
10.33 m
ALLOWABLE MAXIMUM BUILDING FOOTPRINT (AMBF)
AREA = 32.07 m²
5.83m X 5.50 m
CORNER LOT
TOTAL LOT AREA
(TLA)= 120.00 m²
SIDE SETBACK
SUGGESTED MINIMUM LOT SIZES, LOT DIMENSIONS & TYPES FOR R-4 MAXIMUM
0 1 2 5 10 20
SCALE 1:400 MTS

SUGGESTED MINIMUM LOT SIZES, LOT DIMENSIONS & TYPES FOR R-5 USE/OCCUPANCY

SCALE 1:500 MTS

0 1 2 5 10 20



c. Firewall with a minimum of two-hour fire-resistive rating constructed with a minimum height clearance of 400 millimeters above the roof. (***Figure VIII.21***)

11. In case of conflict in the provisions on lighting and ventilation under this Rule or under the **Code**, **the more stringent restrictions must prevail**.

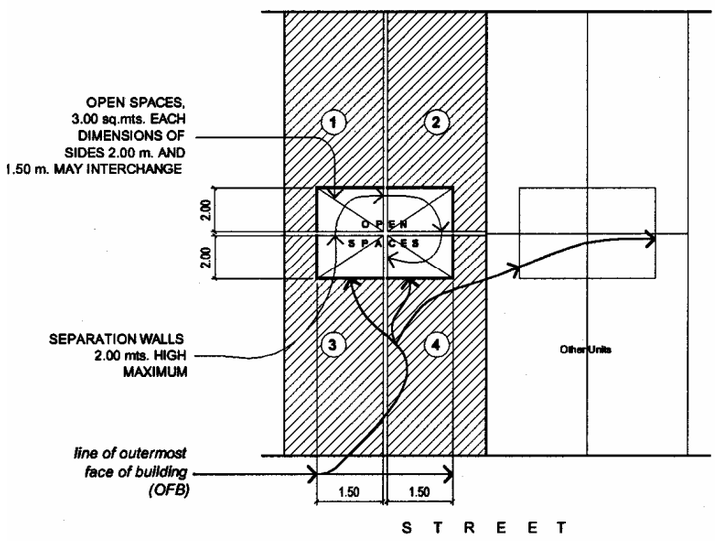


Figure VIII.16.

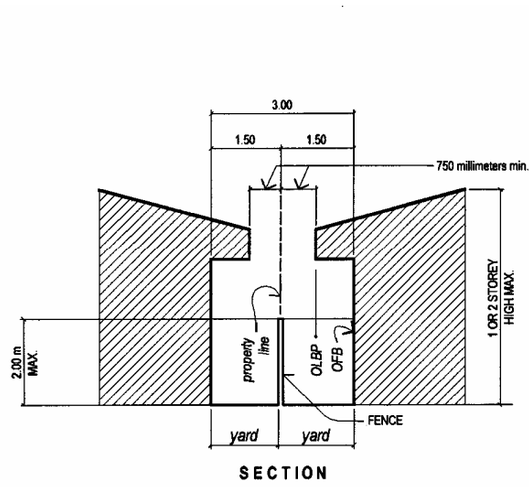


Figure VIII.17.

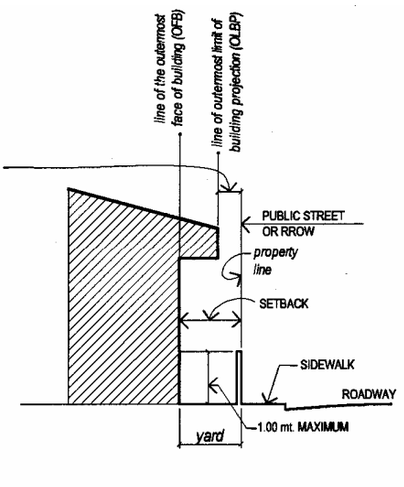


Figure VIII.18.

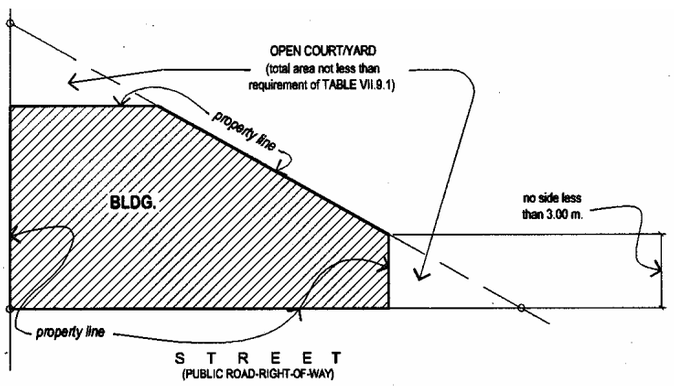
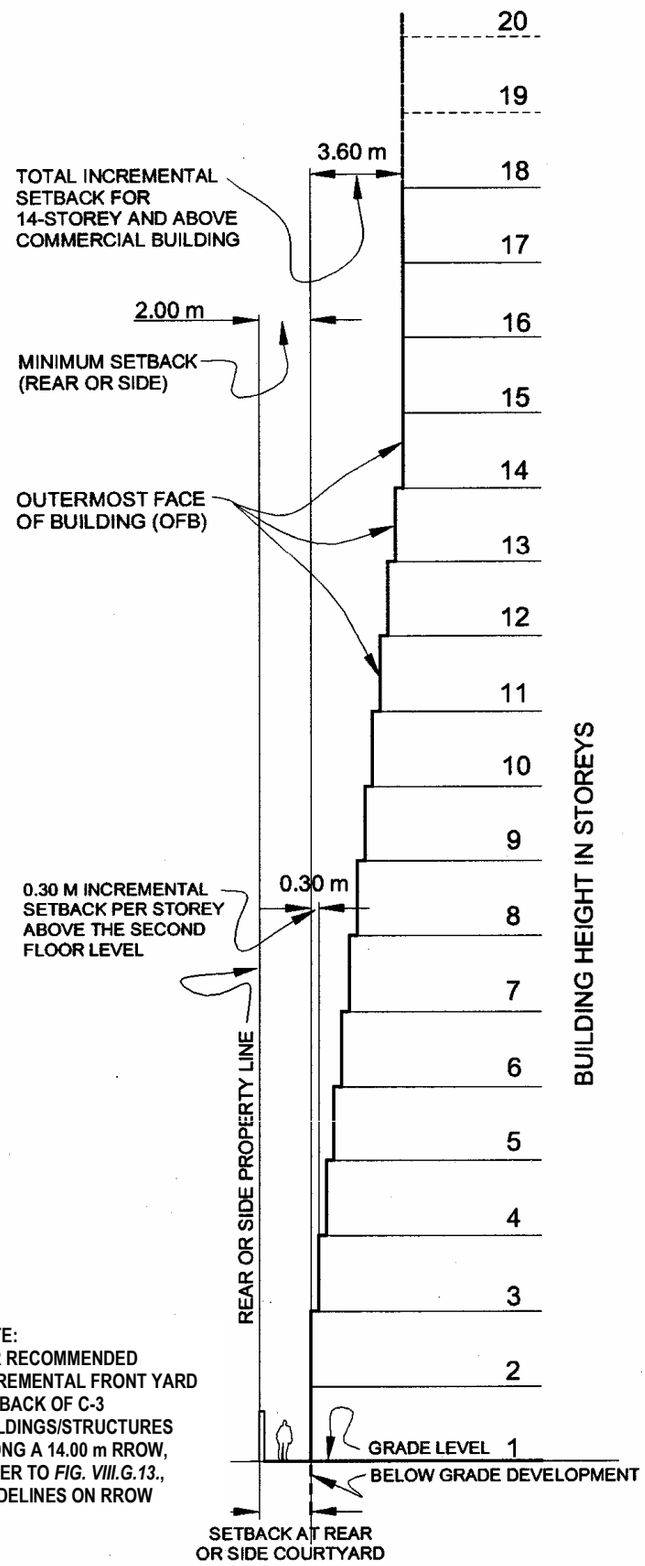


Figure VIII.19.
OPEN COURT / YARD

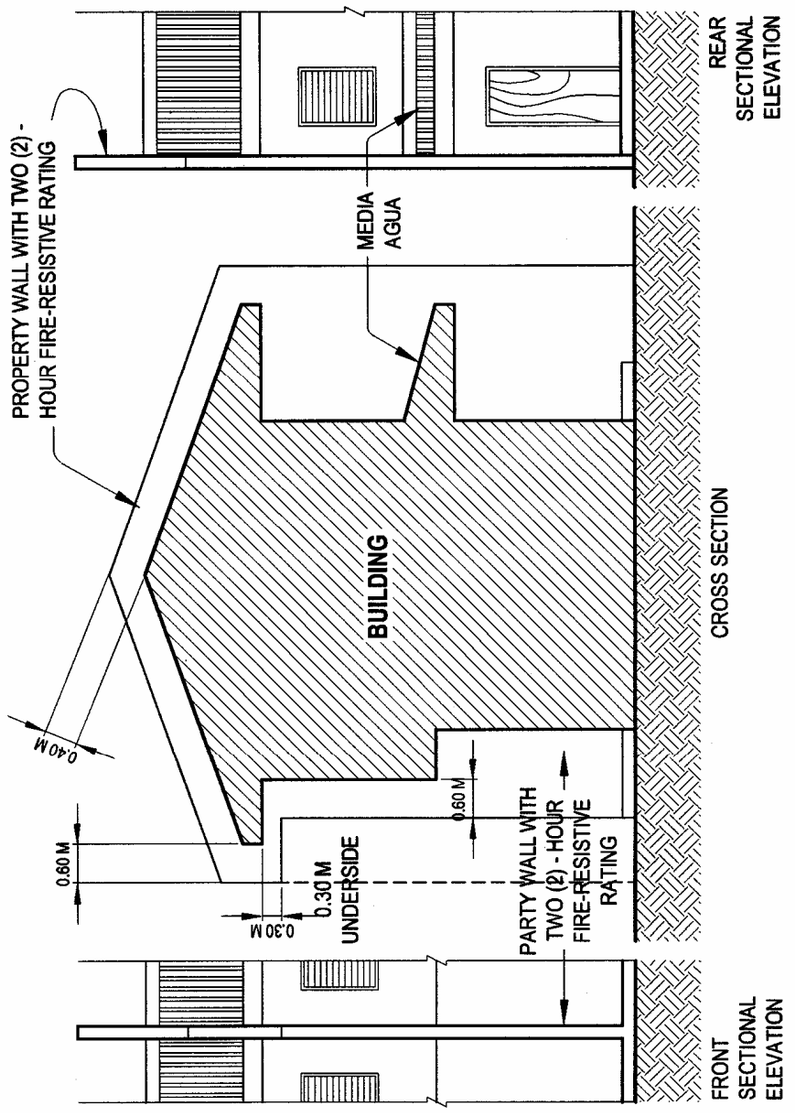
Annotation: The separation walls are actually ***firewalls*** *(particularly if these are above 3.0 m in height or above the roof lines of the buildings). A better option is to set back the firewall by up to 0.60 m to create a drainage channel as well as a firewall maintenance space i.e. for painting and general repair work. When the said solution is adopted,* ***endwalls*** *are created instead.*



REAR OR SIDE INCREMENTAL SETBACK AND OFB OF C-3 BUILDINGS/STRUCTURES

Figure VIII.20.

*Annotation: The **incremental setbacks** are not intended for adoption as architectural design standards. These are only tools to **limit** floor area generation using climatic conditions as bases. The actual design solution may actually have a different configuration that must however match the limit prescribed by the incremental setbacks.*



ABUTMENTS (FIREWALLS) ON THE SIDE & REAR PROPERTY LINES

Figure VIII.21.

*Annotation: The 0.40 m height of the **firewall** above the roof lines of the buildings is an absolute minimum. Only the flashing may be allowed to cross over to the other side of the firewall for anchorage purposes.*

SECTION 805. Ceiling Heights

1. **Habitable rooms provided with artificial ventilation shall have ceiling heights not less than 2.40 meters measured from the floor to the ceiling**; provided that **for buildings of more than one (1) storey, the minimum ceiling height of the first storey shall be 2.70 meters and that for the second story 2.40 meters and the succeeding stories shall have an unobstructed typical head-room clearance of not less than 2.10 meters above the finished floor. Above-stated rooms with natural ventilation shall have ceiling heights of not less than 2.70 meters.**

2. **Mezzanine floors shall have a clear ceiling height not less than 1.80 meters above and below it.**

SECTION 806. Sizes and Dimensions of Rooms

1. Minimum sizes of rooms and their least horizontal dimensions shall be as follows:

   a. Rooms for Human Habitations - 6.00 sq. meters with a least dimension of 2.00 meters;

   b. Kitchen - 3.00 sq. meters with a least dimension of 1.50 meters; and

   c. Bath and toilet - 1.20 sq. meters with a least dimension of 900 millimeters.

SECTION 807. Air Space Requirements in Determining the Size of Rooms

1. Minimum air space shall be provided as follows:

   a. School Rooms - 3.00 cu. meters with 1.00 sq. meter of floor area per person;

   b. Workshop, Factories, and Offices - 12.00 cu. meters of air space per person; and

   c. Habitable Rooms - 14.00 cu. meters of air space per person.

SECTION 808. Window Openings

1. **Rooms intended for any use, not provided with artificial ventilation system, shall be provided with a window or windows with a total free area of openings equal to at least 10% of the floor area of the room**, provided that such opening shall be **not less than 1.00 sq. meter**. However, **toilet and bath rooms, laundry rooms** and similar rooms **shall be provided with** window or **windows with an area not less than 1/20 of the floor area of such rooms, provided that such opening shall not be less than 240 sq. millimeters**. Such window or windows shall open directly to a court, yard, public street or alley, or open watercourse.

2. Required windows may open into a roofed porch where the porch:

    a. Abuts a court, yard, public street or alley, or open watercourse and other public open spaces;

    b. Has a ceiling height of not less than 2.70 meters;

    c. Has one of the longer sides at least 65% open and unobstructed.

3. Eaves, canopies, awnings (or *media agua*) over required windows shall not be less than 750 millimeters from the side and rear property lines.

4. **There shall absolutely be no openings on/at/within/through all types of abutments (such as firewalls) erected along property lines except for permitted vent wells. This Rule strictly applies to all new and existing developments**.

5. In locating window openings it should be borne in mind that in cases of extreme emergencies windows must serve as emergency egress to vacate the premises or access for rescue operations. Such windows shall meet the following requirements:

    a. They can be opened from the inside without the use of any tools;

    b. The minimum clear opening shall have a width not less than 820 millimeters and a height of 1 meter;

    c. The bottom of the opening should not be more than 820 millimeters from the floor;

    d. Where storm shutters, screens or iron grilles are used, these shall be provided with quick opening mechanism so that they can be readily opened from the inside for emergency egress and shall be so designed that when opened they will not drop to the ground;

    e. All areas immediately outside a fire exit window/grille must be free of obstacles and must lead to a direct access down into the ground or street level.

SECTION 809. Vent Shafts

1. Ventilation or vent shafts shall have a horizontal cross-sectional area of not less than 1.00 sq. meter for every meter of height of shaft but in no case shall the area be less than 1.00 sq. meter. No vent shaft shall have its least dimension less than 600 millimeters.

2. Unless open to the outer air at the top for its full area, vent shafts shall be covered by a skylight having a net free area or fixed louver openings equal to the maximum required shaft area.

3. Air ducts shall open to a street or court by a horizontal duct or intake. Such duct or intake shall have a minimum unobstructed cross-sectional area of not less than 0.30 sq. meter with a minimum dimension of 300 millimeters. The openings to the duct or intake shall be not less than 300 millimeters above the street surface or level of court.

SECTION 810. Ventilation Skylights

1. Ventilation skylights shall have a glass area not less than that required for the windows that are replaced. They shall be equipped with movable sashes or louvers with an aggregate net free area not less than the parts in the replaced window that can be opened, or else provide artificial ventilation of equivalent effectiveness.

SECTION 811. Artificial Ventilation

1. Rooms or spaces housing industrial or heating equipment shall be provided with artificial means of ventilation to prevent excessive accumulation of hot and/or polluted air.

2. Whenever artificial ventilation is required, the equipment shall be designed to meet the following minimum requirements in air changes as shown in ***Table VIII.4.*** hereafter.

Table VIII.4. **Minimum Requirements for Air Changes**

	Cubic Meter Per Minute Per Person		Air Changes Per Hour				
			Ceiling Height (meters)				
	Min.	Max.	2.40	3.00	3.70	4.90	6.10
Apartment	0.29	0.43	3	2	1-½	1	¾
Banking Space	0.22	0.29	3	2	1-½	1	¾
Barber Shop	0.22	0.29	3	2	1-½	1	¾
Beauty Parlor	0.22	0.29	3	2	1-½	1	¾
Broker's Board Room	0.57	0.85	8	6	4-½	3	2-½
Cafeteria	0.43	0.57	6	4-½	3-½	2-½	1-¾
Cocktail Bar	0.57	0.85	8	6	4-½	3	2-¼
Churches	0.14	0.22	3	2	1-½	1	¾
Department Stores	0.22	0.43	3	2	1-½	1	¾
Director's Room	0.85	0.14	8	6	4-½	3	2-¼
Drugstore (no counter)	0.22	0.29	3	2	1-½	1	¾
Drugstore (w/counter)	0.29	0.43	5	3-¾	3	2	1-½
Funeral Parlor	0.14	0.22	3	2	1-½	1	¾
Gambling Rooms	0.57	0.85	6	6	4-½	3	2-¼
Hospital Room	0.29	0.43	3	2	1-½	1	¾
Hotel Room	0.29	0.43	3	2	1-½	1	¾
Laboratories	0.43	0.57	6	4-½	3-½	2-½	1-¾
Office	0.29	0.43	4	3	2-¼	1-½	1
Restaurant Kitchen	0.34	0.43	5	3-¾	3	2	1-½
Shop, Retail	0.22	0.29	3	2	1-½	1	¾
Theaters	0.14	0.22	-	-	-	-	-

3. For other rooms or spaces not specifically covered under this Section, see applicable provisions of the pertinent referral code/s.

EXCEPTION:

1. Variances, exception or deviations from the provision of light and ventilation **may be allowed** only when the following term and conditions are fully complied with:

   a. In case of variances

      When the property is unique and different from other properties and because of its uniqueness such the owner cannot comply with the open space requirements, variances shall be applied to relax the application of the following provisions:

i. setback;
ii. ventilation and window opening requirements;
iii. percentage of site occupancy;
iv. floor area ratio; and
v. building height limit (**BHL**).

At least two (2) conditions must be satisfied for exception to be granted.

b. In case of exceptions
   i. The exception must not adversely affect public health, safety and welfare and must be in keeping with the general pattern of development in the community.
   ii. The exception must not alter the essential character of the district where the exception sought is located, and will be in harmony with the general purpose of this **IRR**.

GUIDELINES ON EASEMENTS, VIEW CORRIDORS/SIGHT LINES, STREETS/ROAD RIGHT-OF-WAY (RROW), SIDEWALKS, ARCADES, BASEMENTS, LOTS, AND PUBLIC BUILDINGS/STRUCTURES

A. EASEMENTS

1. As it is situated outside of private property limits, the **easement is public land**, i.e., **public domain**, **that should be equally enjoyed by all members of the community**. The easement is **not to be used for any form of building**/structure that may go against its **public recreational character** and as such, the following uses and others similar thereto are absolutely prohibited:

    a. **Residential** and like uses whether temporary or permanent;
    b. Long-term or **overnight vehicle parking**, i.e., unless duly designated as day and/or night pay-parking zones;
    c. As a depository of stalled, wrecked or **abandoned vehicles**, mechanical devices and the like;
    d. The conduct of specific commercial, institutional and/or industrial activities **not** compatible with its stated character;
    e. Unauthorized recreational or entertainment usage and the like which will only benefit certain entities and which will ultimately result in **inconvenience/ nuisance/safety problems** to the general public; nor
    f. Any other form of **private use, gain, enjoyment or profit** at the expense of the motoring or walking public.

2. **Allowed or Encouraged** Structures/Developments **Within Easements**

    a. If wider than 9.00 meters, the easement may include a roadway/carriageway component on which vehicles can pass or on which the same may temporarily park, e.g., an **esplanade** and the like. (***Fig. VIII.G.1.***)
    b. Pedestrian access-ways and the like and to be located at/ above/below the easement may also be developed for public use, e.g., a **promenade** and the like. (***Fig. VIII.G.2.***)

Table VIII.G.1. **Easement* Along Water Bodies/Way by Location**

Location of Water Body/Way	Easement
Urban Areas	3.00 meters per side of waterway *(**Fig.VIII.G.3.**)*
Agricultural Areas	20.00 meters per side of waterway
Forest Areas	40.00 meters per side of waterway

* *Source:* ***Water Code*** *of the Philippines*

    c. The allowed structures/developments include:

        i. **Hardscaped** (**paved**) pedestrian access-ways such as walks, footpaths or arcades (covered or roofed sidewalks without any habitable structures above or below it); temporary or movable **hardscape elements** such as gazebos, sheds, fountains and like structures with large footprints must **not** encroach on the easement;

        ii. **Softscaped** (**paved**) developments such as park strips, linear parks and the like as well as small tree farms are encouraged for recreational, livelihood and soil stabilization/protection purposes;

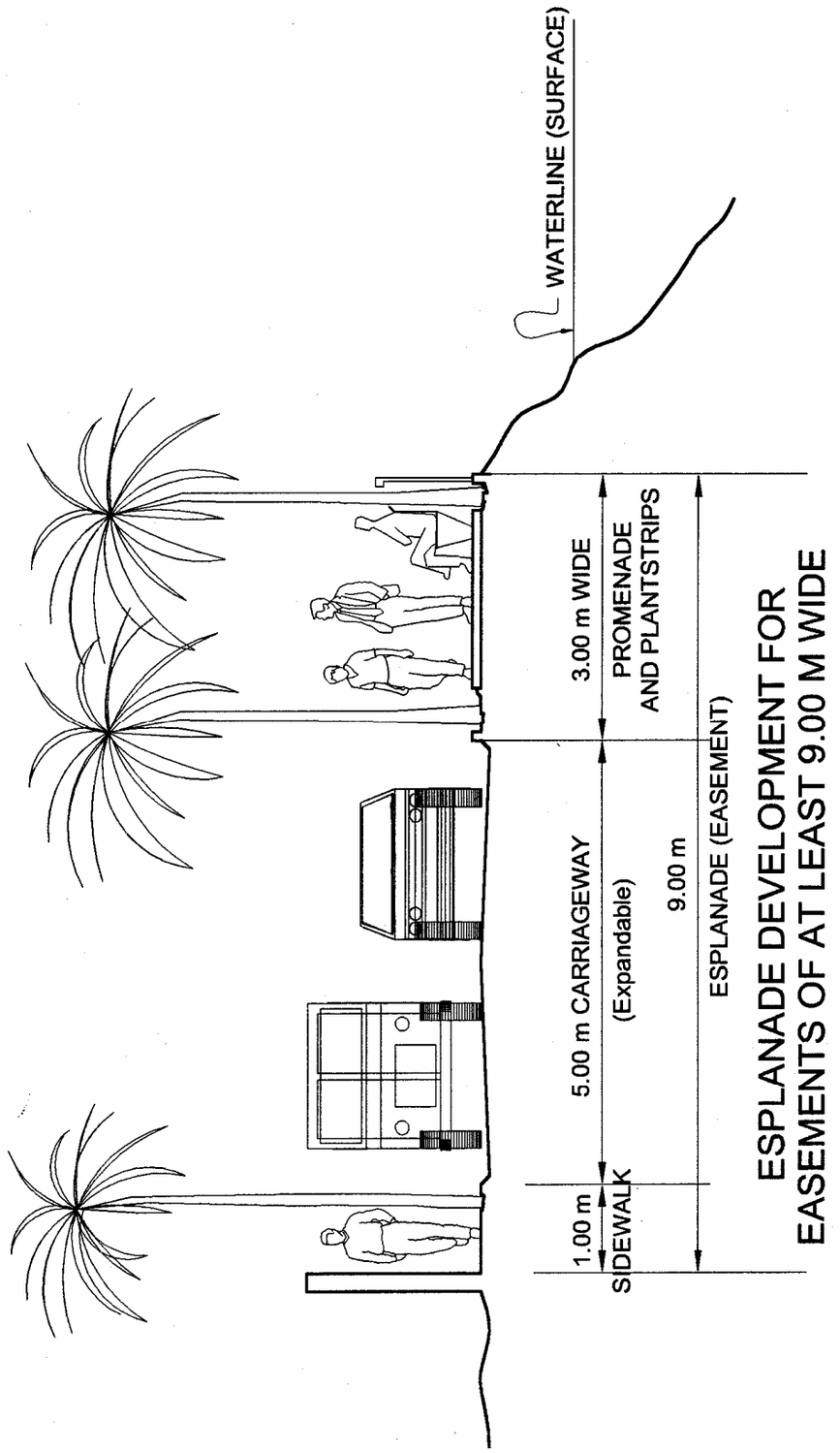
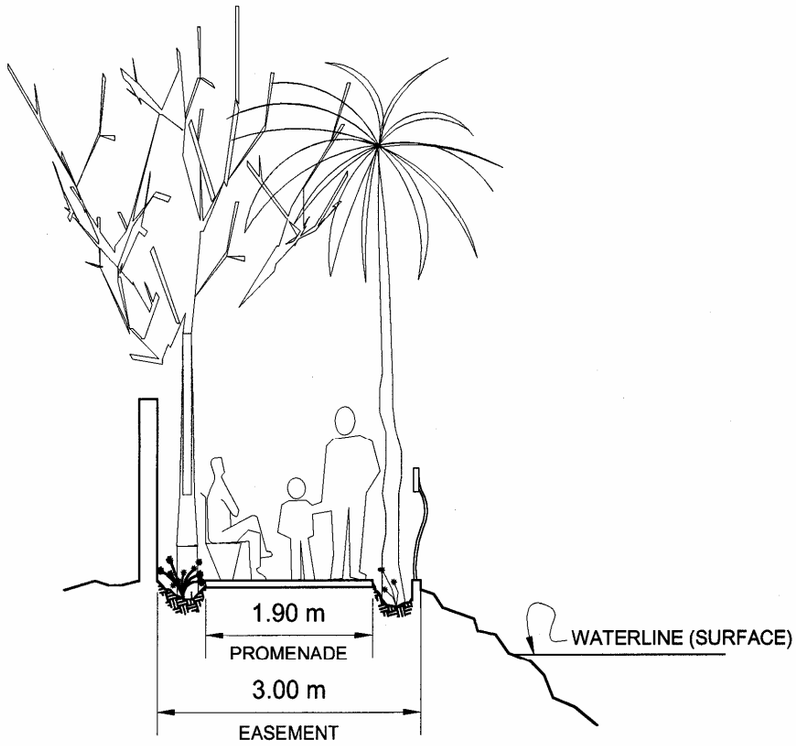


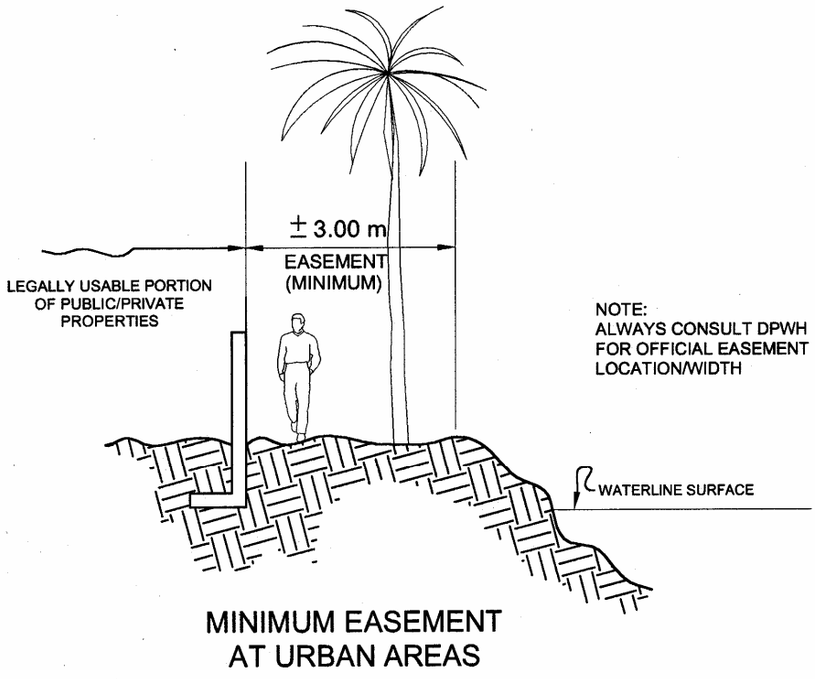
Figure VIII.G.1.

*Annotation: The level of the waterline surface must be established by the DPWH Regional or District Office, **not** by the Office of the Municipal/ City Engineer nor by the Office of the Building Official (OBO). Note also that the trees along the promenade are staggered i.e. the trees do **not** face each other but are suggested to be positioned in a zigzag pattern. In case the width for the esplanade is insufficient, the left sidewalk could also be dispensed with.*



PROMENADE DEVELOPMENT
WITHIN A MINIMUM EASEMENT
FOR URBAN AREAS

Figure VIII.G.2.



MINIMUM EASEMENT
AT URBAN AREAS

Figure VIII.G.3.

*Annotation: The level of the waterline surface must be established by the DPWH Regional or District Office, **not** by the Office of the Municipal/ City Engineer nor by the Office of the Building Official (OBO). Note also that the trees along the promenade are staggered i.e. the trees do **not** face each other but are suggested to be positioned in a zigzag pattern.*

iii. Concrete steps leading down to the water or wooden boardwalks are allowed, provided that all necessary safety precautions are taken, e.g., non-slip finishing for surfaces, handrails and railings;

iv. Other forms of soil stabilization/protection including anti-erosion/scouring measures/structures within the easement are allowed, e.g., rip-rapping, embankment protection, etc., provided that no enclosed/semi-enclosed habitable structures are built on, above or below such structures; and

v. Permanent utility/service lines (power, water, telecommunications, gas, etc.) are allowed within the easement provided that these are either below grade (underground) or above grade (overhead).

3. **Disallowed and Prohibited** Structures/Developments **Within Easements**

a. **No portion** of the easement whether at grade (on the ground), below grade or above grade may be leased or developed by the government or by private entities for purposes inconsistent with its character and intended function. In particular, any form of semi-permanent/permanent or semi-enclosed/enclosed residential, commercial, industrial, institutional or government structure/use and like, structures/uses at any portion of the public easement is prohibited;
b. **All** semi-enclosed or enclosed, semi-permanent or permanent habitable building **projections** (particularly **arcade** structures) or any other building projection or structural element (eaves, roof, cantilevered beams, foundations and the like) located above or below the easement are absolutely prohibited; and
c. **All forms of enclosures** such as fences, perimeter walls and the like, intended to limit the use of the easement for private enjoyment/benefit or to restrict full access to the public easement are absolutely prohibited unless the same are erected for reason of public safety.

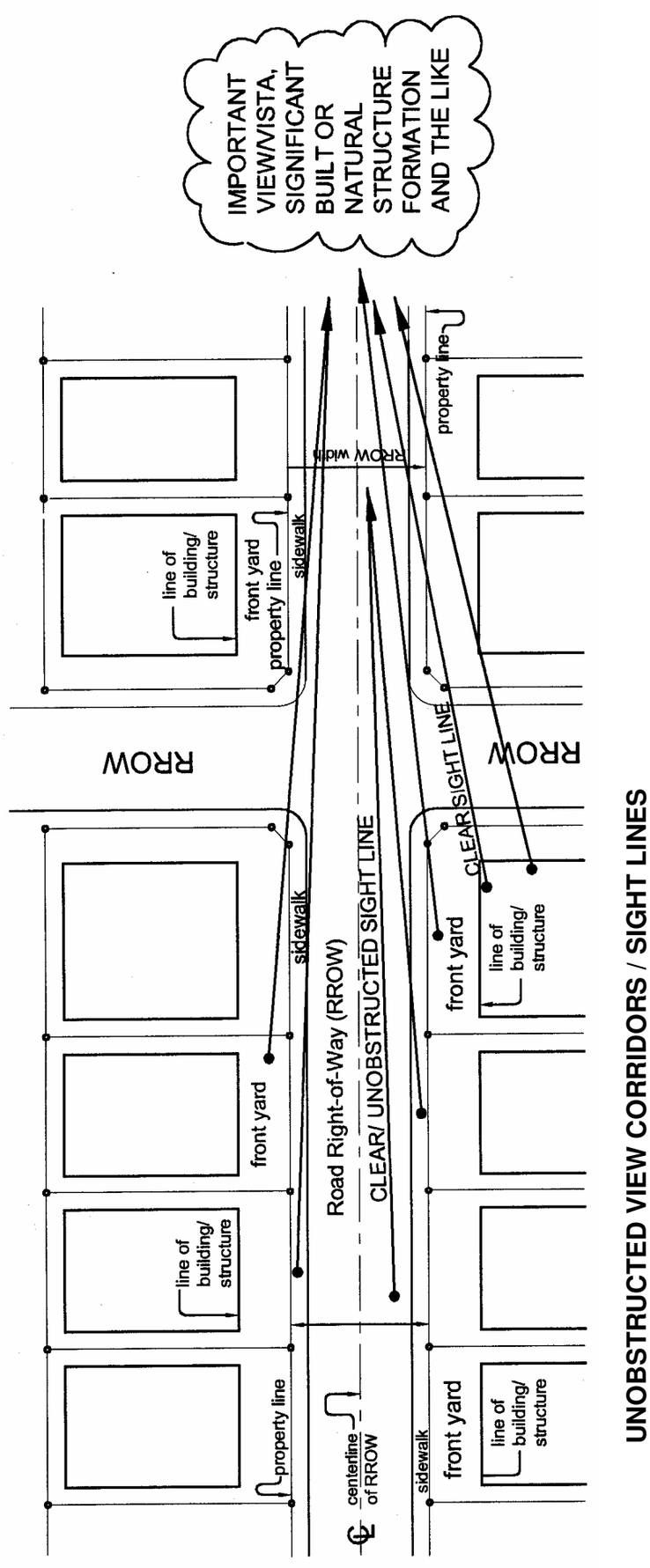
B. VIEW CORRIDORS AND/OR SIGHT LINES

1. Preservation of View Corridors and/or Sight Lines

a. The carriageway/roadway portion of the RROW shall be free of structures, particularly commercial signs that will impede the view corridor and sight lines within the RROW. (See ***Fig. VIII.G.4***)
b. To dignify very important public or historical/culture buildings/structures, all forms of commercial signs intruding into RROW leading to or away from such buildings/structures shall not be allowed. Specifically disallowed from such RROW are commercial signs supported from any building projection (such as arcades).
c. View corridors or sight lines from buildings/structures on a higher or lower lot shall not be entirely blocked by the intervening property to allow some sight lines to exist.
d. In case of allowed structures within the RROW for transportation, e.g., elevated ramps, flyovers, tracks, stations, terminals and the like, the appropriate designs shall be adopted to maximize light, ventilation and view.

C. STREETS/ROAD RIGHT-OF-WAY (RROW)

1. *General*. No building shall be constructed unless it adjoins or has direct access to public space, yard or street/road on at least one (1) of its sides. All buildings shall face a public street, alley or a road, which has been duly approved by the proper authorities for residential, institutional, commercial and industrial groups.



UNOBSTRUCTED VIEW CORRIDORS / SIGHT LINES

Fiaure VIII.G.4.

*Annotation: Billboard structures that block the view are particularly **prohibited** under this guideline.*

a. **Allowed or Encouraged** Structures/Developments **Within the RROW**

i. The RROW at all its physical levels may only be used for the following types of structures/uses or others similar to them, to wit:

(a) Transportation structures and like uses whether temporary or permanent, e.g., mass transit alignments (particularly light and heavy rail) at grade, mass transit stations and terminal facilities above grade (RROW air rights utilization) or below grade and the like; these also include waiting sheds, traffic outposts and the like;

(b) Limited commercial structures/uses above grade (RROW air rights utilization) or below grade provided that these are ancillary or supplementary/complementary to the transportation structures/uses allowed in the previous paragraph, and the like; commercial signages on the exterior of the commercial structure are disallowed and prohibited;

(c) Improvements on the RROW and on all its components/elements found at all its physical levels, e.g., sidewalks, arcades, roadway/carriageway, medians, planting strips, street furniture, elevated or underground crossings or access-ways, non-commercial traffic and directional signages and the like; and

(d) Public utility/service structures/uses (power, water, drainage, sewerage, telecommunications, gas, etc.) at all physical levels of the RROW provided that these do not restrict nor impede the movement of people and vehicles and provided further that the rights to utilize the RROW are properly secured and permitted.

b. **Disallowed and Prohibited** Structures/Developments **at RROW**

i. If situated outside of private property limits, the RROW is public land, i.e., public domain, which should be equally enjoyed by all members of the community. The RROW is not to be used for the following types of buildings/structures/ occupancies or others similar to them:

(a) Any form of semi-permanent/permanent or semi-enclosed/enclosed commercial structure/use and like structures/uses;

(b) Any form of temporary, semi-permanent/permanent or semi-enclosed/ enclosed residential structure/use and like structures/uses;

(c) Government structures/use unless the same are located below or above grade; in such cases, the proposed structure must be properly planned/designed and constructed;

(d) Long-term or overnight vehicle parking, i.e., unless duly designated as day and/or night pay-parking zones;

(e) As a depository of stalled, wrecked or abandoned vehicles, mechanical devices and the like;

(f) The conduct of other commercial/business/industrial activities incompatible with the character of the RROW;

(g) Unauthorized recreational or entertainment usage and the like which will only benefit certain entities and which will ultimately result in inconvenience/ nuisance/safety problems to the general public; nor

(h) Any other form of private use, gain, enjoyment or profit at the expense of the motoring or walking public.

Table VIII.G.2. **Suggested Median and Lane Widths Within Alleys/Roadways/Carriageways by Minimum RROW Width and by Suggested Vehicle Speeds**

Range of Total Alley or RROW Width (meters)	Suggested Minimum Required Width of Alley or Roadway/ Carriageway (meters)	Range of Suggested Minimum to Maximum Vehicle Speeds Along Alley or Roadway (kilometers/hour)	Suggested Minimum to Maximum Median Widths (meters)	Suggested Minimum to Maximum Lane Widths (meters)
3.00 to 6.00	2.00 (for 3.00 meters Alley ROW)	1.00 to 15.00	None	2.00 one way car passage
	4.00 (for 6.00 meters RROW)		None	2.10 each way
6.10 to 20.00	4.81 (for 6.01 meters RROW)	16.00 to 30.00	None	2.40 Each way
	13.40 (for 20.00 meters RROW)		1.20 to 2.00	2.80 to 3.00
20.10 to 40.00	13.50 (for 20.10 meters RROW)	31.00 to 60.00	1.20 to 4.50	1. 20 to 4. 80
	26.80 (for 40.00 meters RROW)		3. 00 to 3. 30	3.3 to 3.50
40.10 to 60.00 and above	26.90 (for 40.10 meters RROW)	61.00 and above	1.50 to 5.00	1.50 to 5.50
	40.00 (for 60.00 meters RROW)		3.50 to 3.80	3.80 to 4.00

c. Minimum Access Requirements

i. RROW/access streets or alleys shall have the following widths:

(a) Interior or rear lots shall have a RROW/access street with a minimum width depending upon the number of buildings or units which it serves provided, however, that said RROW/access street shall not be less than 3.00 meters in width and provided further that such RROW shall be provided with a minimum 4.00 meters wide chaflan at its intersect with the main RROW and provided, finally, that such **RROW shall not be used for any form of parking**.

(b) Multiple living units on same lot on which apartments, rowhouses or *accessorias* or a group of single-detached buildings are built be provided with a RROW/access street directly connecting said buildings or units to a public street/road or alley following the schedule as shown in ***Table VIII.G.3***.

(c) For commercial or industrial areas, sufficient lane widths, shoulders and maneuvering spaces for long-bodied/articulated vehicles should be considered within the RROW.

(d) Privately-owned RROW/access streets shall be duly registered and annotated in the lot title as such for as long as the apartments, rowhouses, etc., using said RROW/access streets, still exist.

(e) Alignment of RROW/access streets shall be integrated into the existing street/ road network, particularly with the provision of chaflans of the appropriate width.

(f) No obstruction should exist within the RROW/access streets servicing multiple housing of more than 75 units.

(g) All kinds of subdivisions and residential condominiums may generally refer to this Guideline concerning access streets/roadways. (***Figs. VIII.G.5.*** through ***VIII.G.10.***)

Table VIII.G.3. **Minimum Road Right-of-Way (RROW) Provisions for Developments with Multiple Dwelling Units**

Number of Dwelling Units	Minimum Width of Carriageway/ Roadway (meters)	Minimum Width of Sidewalk on each side (meters)	Minimum Total Width of the RROW (meters)
Up to six (6) units	3.00	0.60	4.20
Seven (7) up to fifteen (15) units	4.00	1.00	6.00
Sixteen (16) up to Twenty-five (25) units	5.00	1.00	7.00
Twenty-six (26) up to Thirty-five (35) units	6.00	1.00	8.00
More than thirty-five (35) units	6.70	1.00	8.70

d. The RROW consists of three (3) different physical levels as follows:

i. RROW ABOVE GRADE - refers to the portion of the RROW reckoned from the finished surface of the roadway/carriageway and/or the sidewalk/arcade all the way up to the air. If this level of the RROW is utilized for whatever purpose, the **Air Rights or the right to develop, benefit and profit from the use of the RROW above grade is given up by the government/general public and should therefore be compensated**, i.e., leased and paid for by the proponent/end-user/beneficiary of the proposed building/structure (***Figs. VIII.G.11.*** and ***VIII.G.12.***). **The minimum clear height for the utilization of air rights above RROW shall be 4.27 meters from the finished crown elevation of the roadway/carriageway**.

ii. RROW AT GRADE - refers to the portion of the RROW reckoned from the natural grade line up to the finished surface of the roadway/carriageway and/ or the sidewalk/arcade. This portion of the RROW is generally utilized for the movement of the general public (motorists and pedestrians). If this level of the RROW is utilized for whatever purpose, the right to develop, benefit and profit from the use of the RROW at grade is given up by the government/general public and should therefore be compensated, i.e., leased and paid for by the development proponent/end-user/ beneficiary. (***Figs. VIII.G.11.*** and ***VIII.G.12.***)

iii. RROW BELOW GRADE - refers to the portion of the RROW reckoned from the finished surface of the roadway and/or the sidewalk all the way down into the ground. If this level of the RROW is utilized for whatever purpose, the right to develop, benefit and profit from the use of the RROW below grade is given up by the government/general public and should therefore be compensated, i.e., leased and paid for by the development proponent/end-user/beneficiary. (***Figs. VIII.G.11.*** and ***VIII.G.12.***)

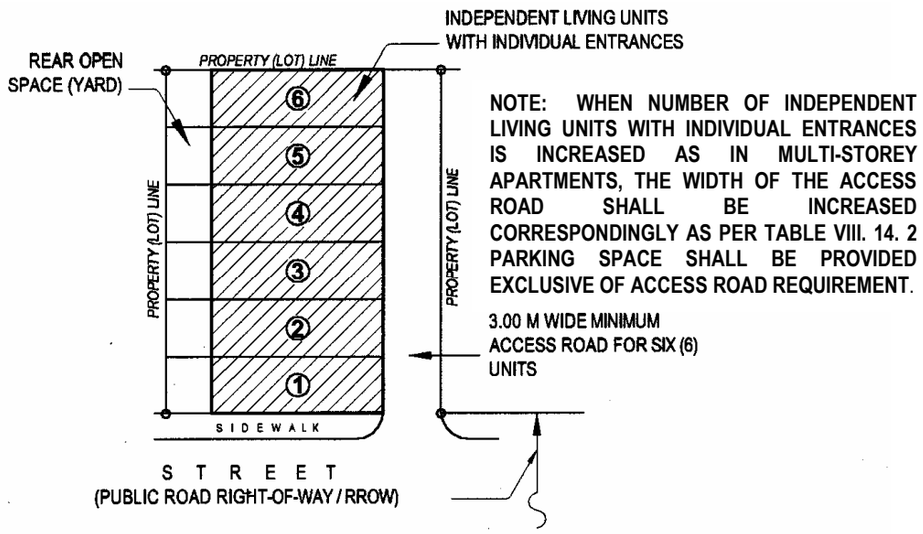


Figure VIII.G.5.

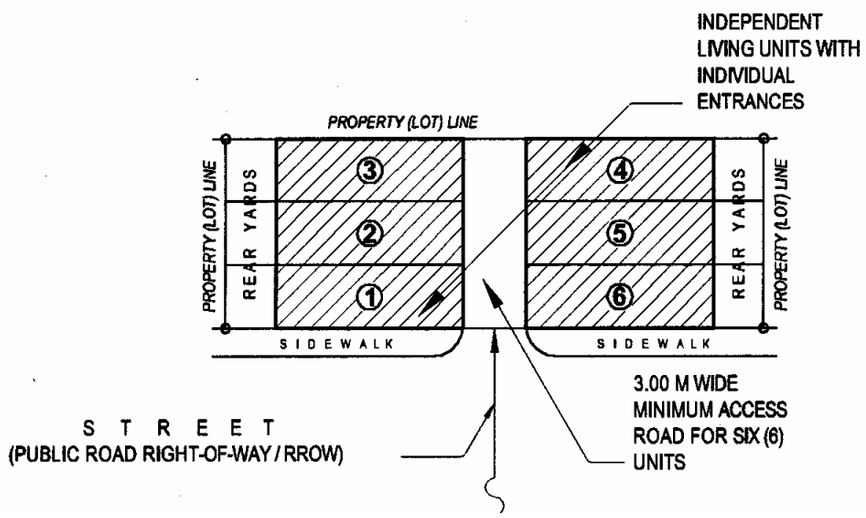
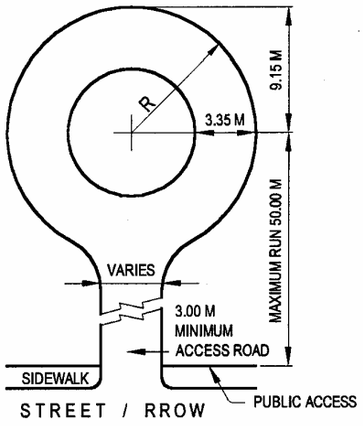


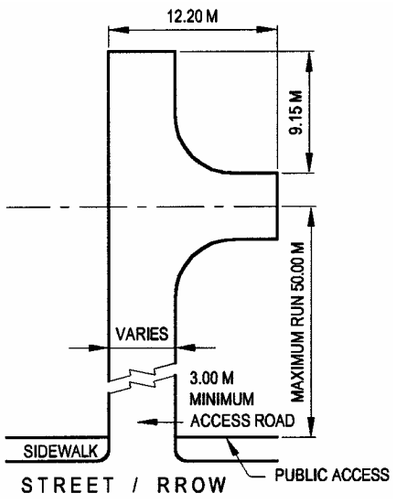
Figure VIII.G.6.

*Annotation: The **minimum** 3.0 m wide access road necessarily includes all provisions for drainage and for utility lines. It must be maintained free of all forms of obstructions at all times, particularly parked or abandoned vehicles that may impede rescue/emergency response. Trees or plants should **not** be sited within any part of the **minimum** 3.0m wide access road i.e. suggested for planting within the property limits instead.*



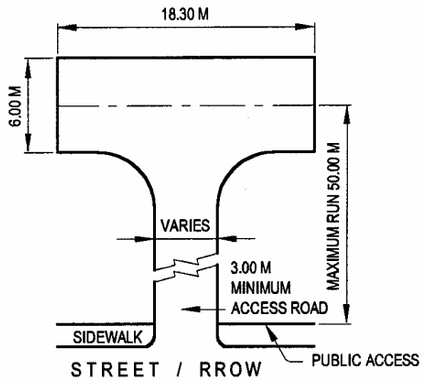
CUL-DE-SAC

Figure VIII.G.7.



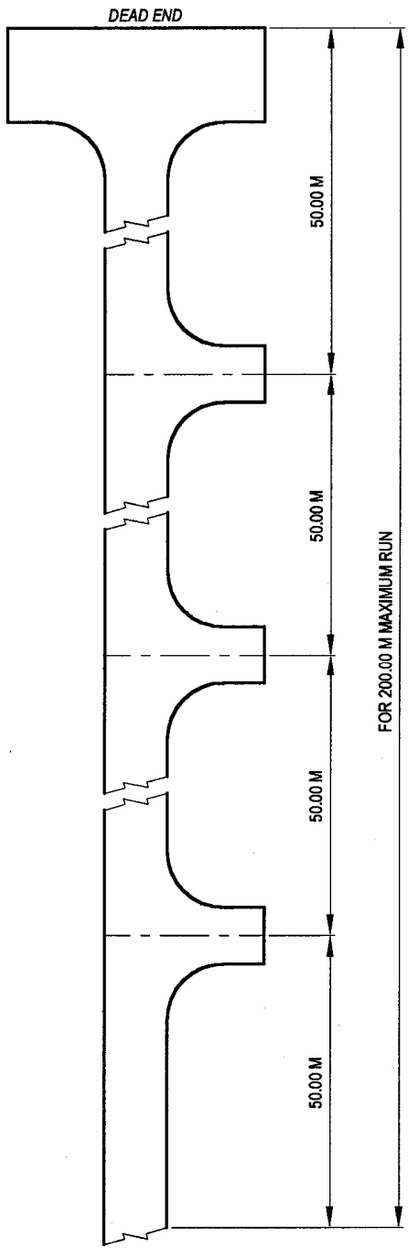
TURN COURT

Figure VIII.G.8.



TURN COURT

Figure VIII.G.9.



NOTE: WHERE LENGTH OF RUN IS 200.00 M, A CUL-DE-SAC OR TURN COURT SHALL BE PROVIDED FOR EACH MAXIMUM RUN.

Figure VIII.G.10.

ALL PRIVATE ROADS OR ACCESS TO INTERIOR LOTS SHALL BE ACCESSIBLE TO STREET OR PUBLIC SPACE OR YARD AND SUCH SHALL CONFORM TO SUCH PROVISIONS AS TO YARDS AND *TABLE VIII.G.3.*

*Annotation: The **minimum** 3.0 m wide access road necessarily includes all provisions for drainage and for utility lines. It must be maintained free of all forms of obstructions at all times, particularly parked or abandoned vehicles that may impede rescue/emergency response. Trees or plants should **not** be sited within any part of the **minimum** 3.0m wide access road i.e. suggested for planting within the property limits instead.*

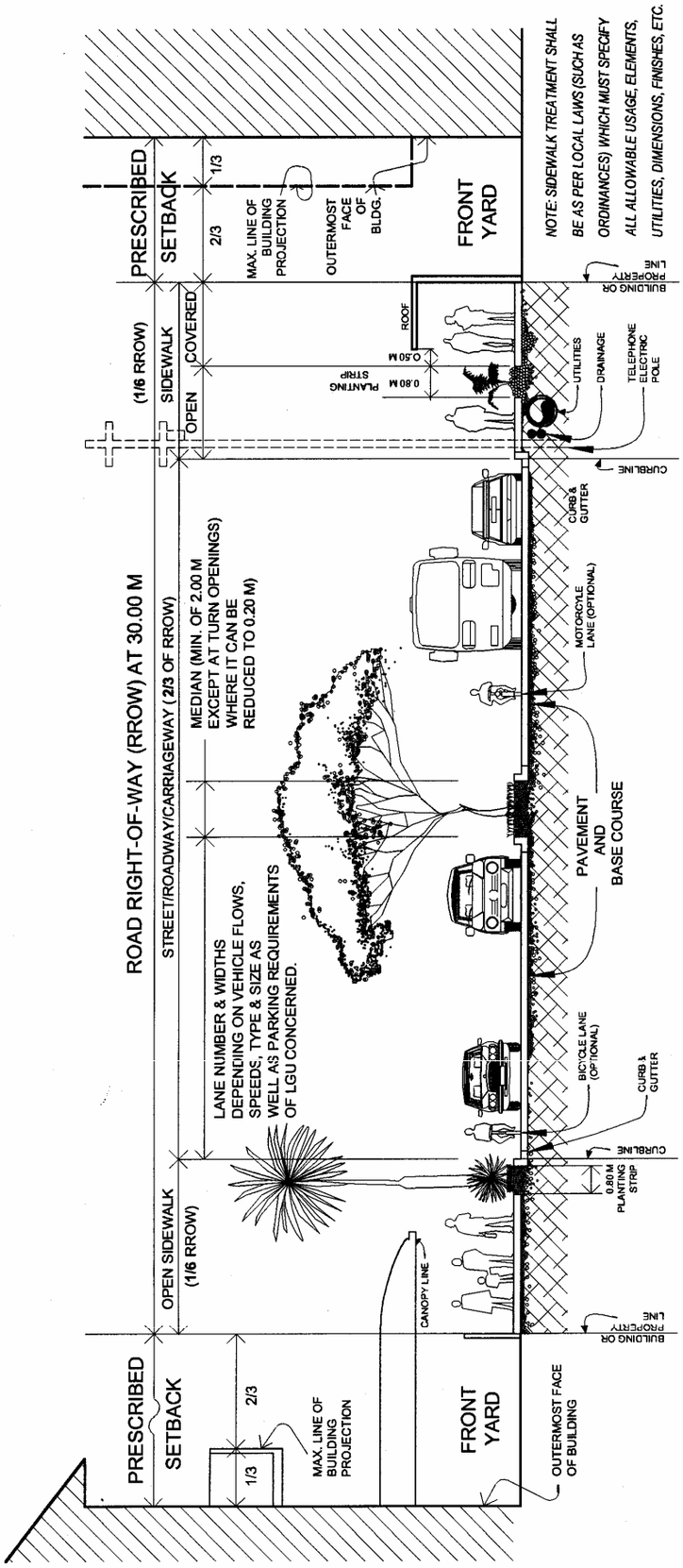
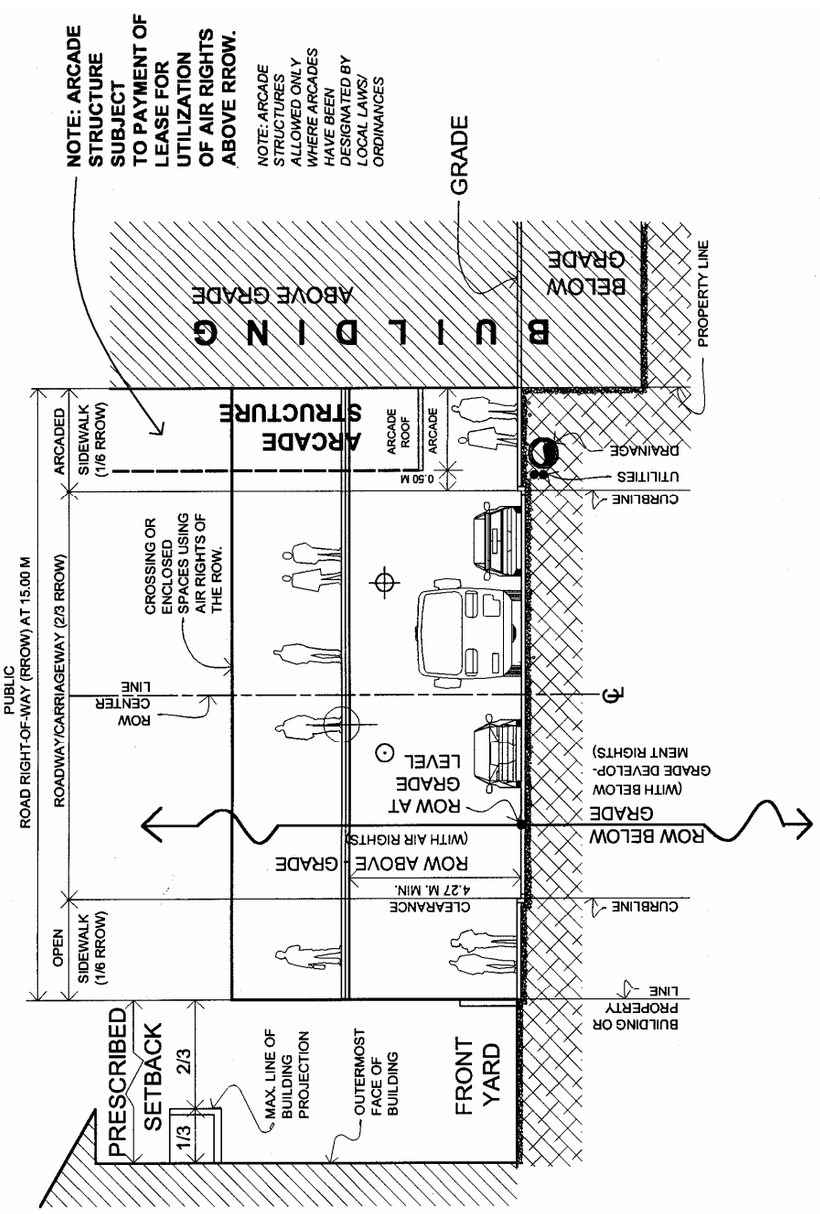


Figure VIII.G.11.

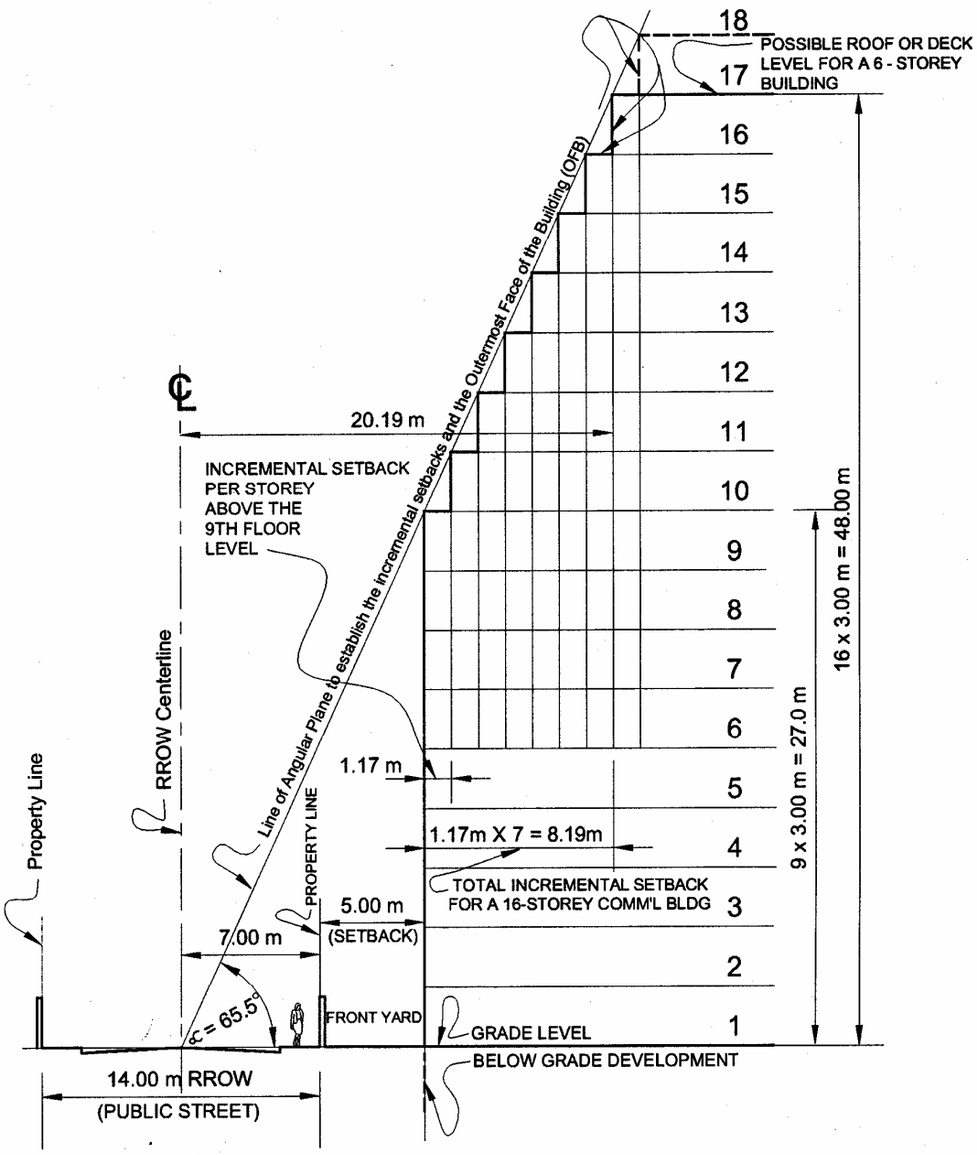
Annotation: Carriageway widths must also be measured in terms of standard-width lanes based on legal/allowed vehicle speeds on the thoroughfare.



LEVELS OF THE ROAD RIGHT-OF-WAY (RROW)
(AT A RROW OF 15.00 M ONLY)

Figure VIII.G.12.

Annotation: Assuming the necessary permits and/or required leasing arrangements for the use of air rights and below-grade rights are perfected, all three levels of RROW development could be introduced/ integrated.



ANGLE FROM RROW CENTERLINE THAT DETERMINE THE INCREMENTAL SETBACK AND OFB OF C-3 BUILDINGS/STRUCTURES ALONG A 14.00 M RROW

NOTE: SEE *FIGURE VIII.20.* RULE VIII FOR RELATED REAR AND SIDE INCREMENTAL SETBACK AND OFB OF C-3 BUILDINGS/ STRUCTURES.

Figure VIII.G.13.

*Annotation: The **incremental setbacks** are not intended for adoption as architectural design standards. These are only tools to **limit** floor area generation using climatic conditions as bases. The actual design solution may actually have a different configuration that must however match the limit prescribed by the incremental setbacks.*

D. SIDEWALKS

1. Subject to existing laws and regulations, the **local planning authority** shall determine which street shall have an **open sidewalk or an arcaded (covered) sidewalk**, or a **combination** of both.

2. The **minimum** width of the sidewalk for a **RROW width of 9.00 meters or more shall be 1.20 meters on each side of the RROW** or a total of 2.40 meters on both sides of the RROW (***Fig. VIII.G.14.***). For the minimum width of sidewalk for RROW of less than 9.00 meters wide, refer to ***Table VIII.G.3***.

3. Sidewalk widths shall be based on the following considerations:

   a. Volume of pedestrians (end-users, visitors and the like) who will use the sidewalk on a regular basis;
   b. Type, intensity or level of operation and size/expanse of the allowed uses/ occupancies along the RROW;
   c. The types and volume of street furniture, e.g., street lighting and traffic signs/signal supports, pedestrian barriers/aids, etc., and other urban design elements that will be allowed as permanent developments design elements that will be allowed as permanent developments within the width of the sidewalk;
   d. The width of the planting strips;
   e. The spatial needs for servicing utility/service lines underneath the sidewalk and for utility/service poles;
   f. Compliance with accessibility requirements as stipulated under *Batas Pambansa Blg.* 344 (Accessibility Law);
   g. Provisions for commuters, e.g., waiting sheds, loading/unloading areas and the like;
   h. Provisions for vehicle crossings/driveways between the roadway/carriageway and the front yards of lots or buildings/structures or provisions for loading/unloading platforms if allowed;
   i. Need for introduction of allowed uses/ elements within the sidewalk area only if there is sufficient sidewalk width, e.g., bicycle lanes, jogging lanes and the like; and
   j. Climate, light, ventilation, safety, security and overall maintenance of the sidewalk and all its surface areas.

4. Sidewalks shall be of **uniform width** throughout the entire length of the street. The sidewalk width grade and finish of the **dominant use**/occupancy along the RROW shall be generally observed.

5. The width of the sidewalk shall be as follows:

Table VIII.G.4. **Range of Required Sidewalk and Planting Strip Widths (total at both sides of RROW) by RROW Width**

Road Right-Of-Way (RROW) Width	Range of Required Sidewalk Widths (Total at both sides of RROW)

30.00 meters & above	From 1/6 up to 1/4 of RROW Width
25.00 - 29.00 meters	From 1/6 up to 1/3 of RROW Width
20.00 - 24.00 meters	From 1/6 up to 1/3 of RROW Width
10.00 - 19.00 meters	From 1/4 up to 1/3 of RROW Width
Below 10.00 meters	From 1/4 up to 1/3 of RROW Width

6. The width of the sidewalk shall include both the paved and unpaved (planted) portions. (see Table VIII.G.5.)

Table VIII.G.5. **Minimum Planting Strip Widths by RROW Width**

Road Right-Of-Way (RROW) Width	Total Minimum Widths of Planting Strip within RROW* (width per sides of RROW) (meters)
30.00 meters & above	1.20 (0.60)
25.00 - 29.00 meters	0.60 (0.30)
20.00 - 24.00 meters	0.60 (0.30)
10.00 - 19.00 meters	0.40 (0.20)
Below 10.00 meters	Optional

Note:

* *Minimum width of planting strip (for grass and shrubs) is 200 millimeters for* ***each side*** *of the RROW. The minimum width of planting strip (for trees) is 300 millimeters for* ***each side*** *of the RROW.*

7. For allowed, disallowed and prohibited structures/developments at RROW, refer to **Sections C.1. (a) and C.1. (b) of this Guideline**.

8. The sidewalk pavement shall have a non-slip surface and shall slope down from the building line towards the curb line at not more than 1/50 and shall level off with the curb. (***Fig. VIII.G.14.***)

9. Sidewalks of 2.00 meters or more in width shall include on its outer side a planting strip of not less than 800 millimeters in width up to a maximum of 1/3 of the allowed sidewalk width, separating the curb from the sidewalk pavement. The planting strip must always be near the curbline. (***Fig. VIII.G.15.***)

10. Combined open and arcaded sidewalks shall be provided with a planting strip of not less than 800 millimeters in width up to a maximum of 1/3 of the allowed sidewalk width, as a separating strip between the arcaded portion and the open portion of the sidewalk. (***Fig. VIII.G.16.***)

11. Grade of Sidewalks
    a. Sidewalks shall, as much as possible, be level and of uniform grade throughout the entire length of the street.

b. Whenever the slope of the street does not exceed 1/12 the sidewalk grade shall follow the level or slope of the street. (***Fig. VIII.G.17.***)

c. Whenever the slope of the street is 1/10, the sidewalk shall be maintained level for every 20.00 to 40.00 meters of run (***Fig. VIII.G.18.***). Sidewalks of different levels shall be joined by means of a ramp having any convenient slope not exceeding 1/6. (***Fig. VIII.G.18.***)

d. When the grade of two (2) connecting sidewalks are between 1/10 and 1/8, the two sidewalks shall be joined by means of a ramp having any convenient slope not exceeding 1/10.

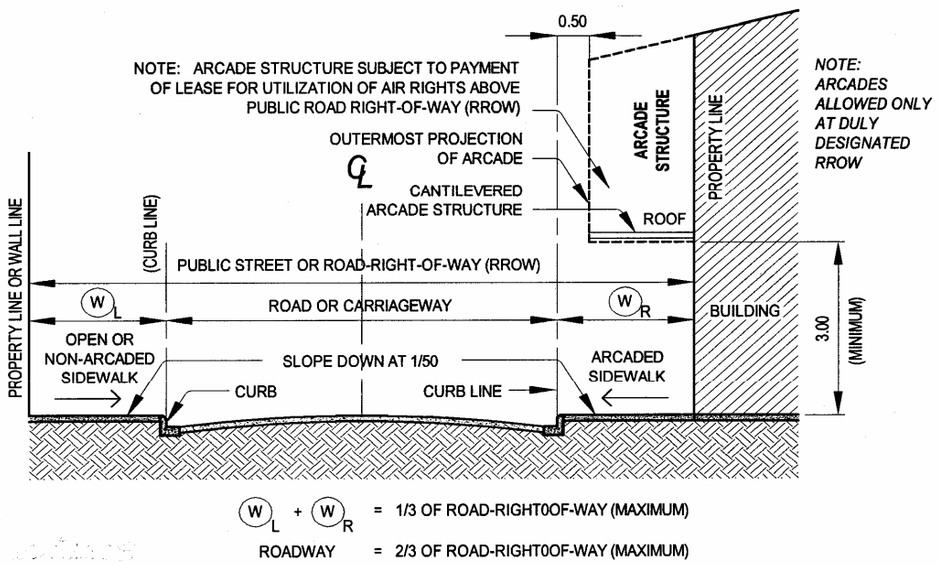


Figure VIII.G.14.

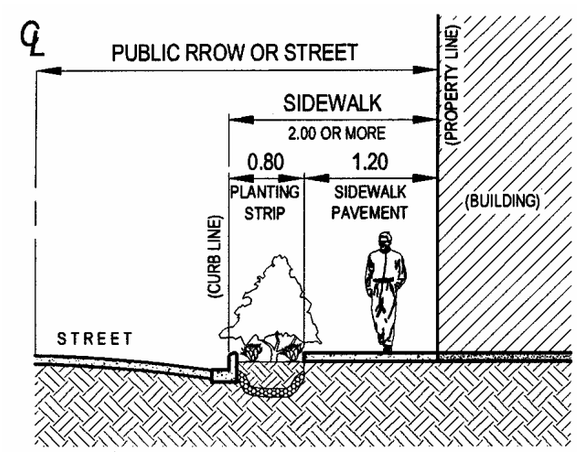


Figure VIII.G.15.
SIDEWALKS & PLANTING STRIPS

Figure VIII.G.16.
SIDEWALKS & PLANTING STRIPS

*Annotation: The arcades shown above were originally for **widened** RROWs where **property recovery** was necessary through **air rights utilization**. If **no** road widening occurs, **arcade structures** above sidewalks represent the **use of public domain**, for which leases need to be paid to the LGU or the DPWH as the case may be. Arcades and arcade structures are best sited **within** the property limits.*

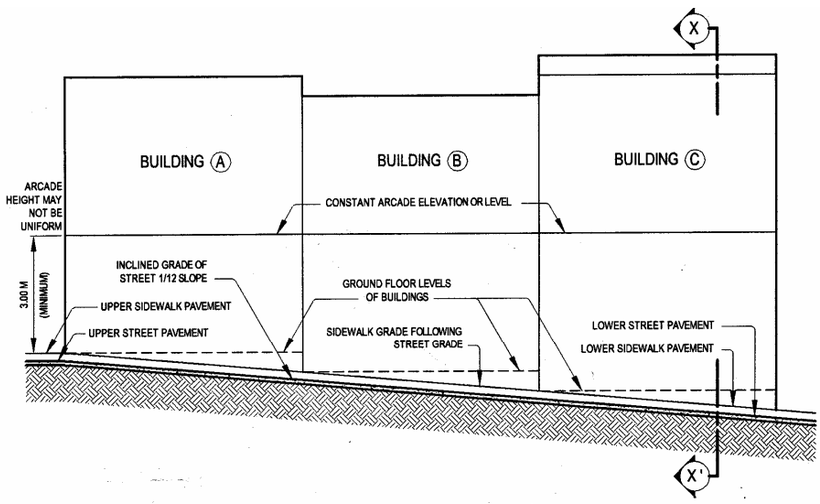


Figure VIII.G.17.

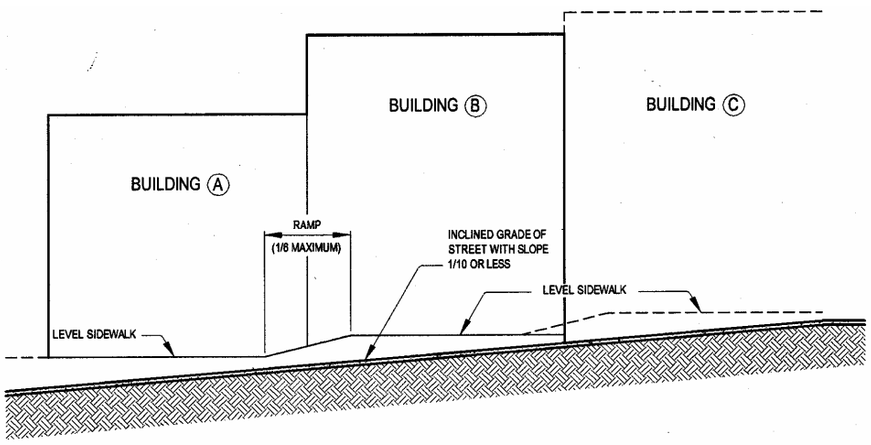


Figure VIII.G.18.

GRADE OF SIDEWALKS

Annotation: Ramped or inclined sections of the sidewalk should have heavily textured surfaces for traction and better surface drainage. Sever inclines for sidewalks should be accompanied by railings or guides for additional safety of the end-users.

12. Driveways, Entrances and Exits

    a. Driveways Across Sidewalks

        i. To maximize the use of the sidewalk area, the surface of the sidewalk and the driveway shall as much as possible, be at the same plane. The entry ramp of the driveway connecting the roadway surface to the sidewalk surface shall have a slope ranging from 1/3 to 1/4. (***Figs. VIII.G.19.*** and ***VIII.G.20.***)

        ii. Whenever the height of the curb is more than 200 millimeters, driveways may be constructed across the entire width of the sidewalk, provided that the driveway shall be joined to the sidewalk by means of a ramp of rough finish have a slope of not more than 1/8. The driveway and the ramp shall be made of the same materials as that of the sidewalk. (***Figs. VIII.G.19., VIII.G.20.,*** and ***VIII.G.21.***)

        iii. Entrances and exits of buildings abutting sidewalks shall be made of either ramps or steps.

        iv. Entrance and exits ramps shall have a slope not exceeding 1/10. (***Fig. VIII.G.22.***)

        v. Entrance or exit steps shall have treads of not less than 300 millimeters. The minimum number of steps shall be two (2) with risers not exceeding 100 millimeters.

        vi. **No portion of either entrance or exit ramps or steps shall intrude into the sidewalk pavement**.

13. Obstruction on Sidewalks

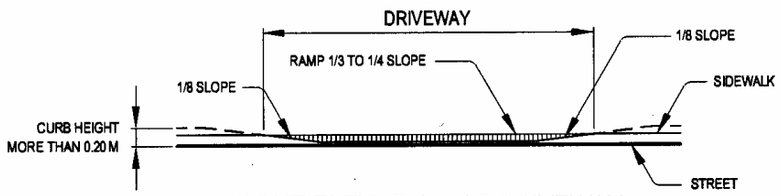
    a. Under no circumstances shall obstruction of any kind be allowed on sidewalks, whether open or arcaded. This specifically refers to all forms of commercial signs and commercial structures that impede sight lines or pedestrian traffic along the sidewalk.

    b. Planted areas forming part of the sidewalk or arcade shall not be fenced in to allow passage of pedestrians and disabled in transit.

14. Curb Configurations

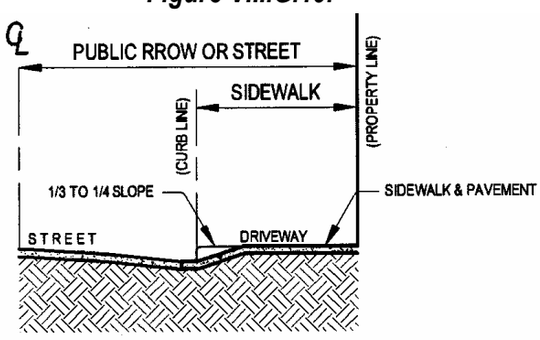
    a. **Mountable** curbs shall only be allowed if the sidewalk width on each side of the RROW is at a minimum of 5.00 meters wide.

    b. For greater protection of pedestrians and the disabled, **raised** curbs are encouraged for use along sidewalks that are less than 5.00 meters in width.



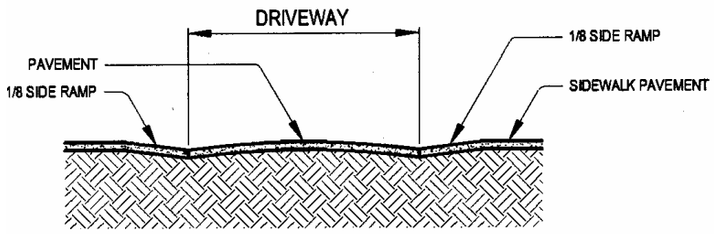
FRONT ELEVATION OF DRIVEWAY

Figure VIII.G.19.



SIDE ELEVATION OF DRIVEWAY

Figure VIII.G.20.



CROSS SECTION OF DRIVEWAY

Figure VIII.G.21.

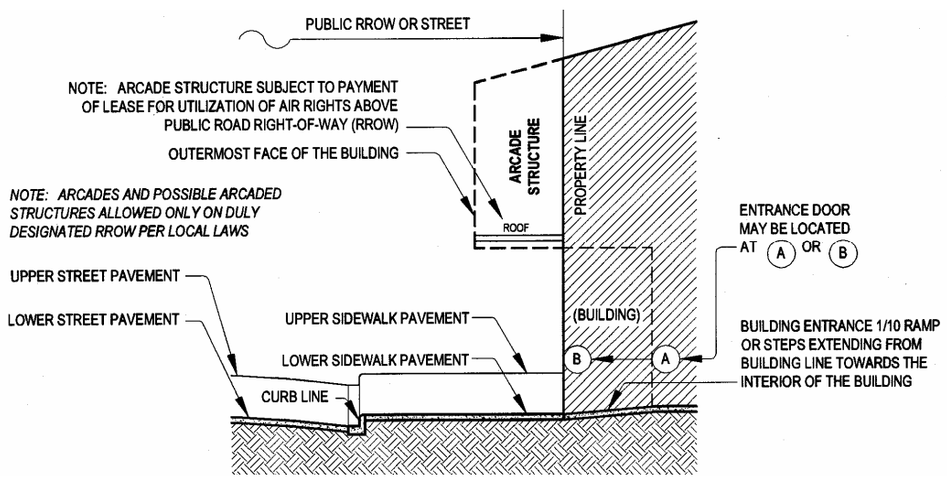


Figure VIII.G.22.

DRIVEWAYS ACROSS SIDEWALKS

Annotation: The foregoing examples are particularly important for basement/below grade and above grade entrances/exits to covered parking areas

E. <u>TOTAL OPEN SPACE REQUIREMENTS ON LOTS BY USE/OCCUPANCY, TYPE/LOCATION AND SUGGESTED MINIMUM LOT SIZES, LOT DIMENSIONS & TYPES BY USE/OCCUPANCY</u>

Table VIII.G.6. **Minimum TOSL Requirements by Lot Type/Location**
Note: Higher Percentages (%) may apply for lots with ***Minimum*** *Total Lot Area (****TLA****).*

LOT TYPE/ LOCATION*	MINIMUM PERCENTAGE OF OPEN SPACE BY OCCUPANCY TYPE** (for Proposed Developments **without Firewalls** or Abutments)			MINIMUM PERCENTAGE OF OPEN SPACE BY OCCUPANCY TYPE** (for Proposed Developments **with Permitted Firewalls** or Allowed Abutments)		
	A & B (Residential or Institution-al) & C, D, E-2 and H (Institutional)	H-1, H-2, H-4 and I (Cultural) and E-1 and E-3 (Transportat-ion/Utility)	All Other Uses/ Occu-pancy	A & B (Residential or Institutional) & C, D,E-2 and H (Institutional)	H-1, H-2, H-4 and I (Cultural) and E-1 and E-3 (Transportat-ion/Utility)	All Other Uses/ Occu-pancy

Interior or Rear Lot (Lot located in the interior of a block made accessible from a public street or alley by means of a private access road); see ***Figure VIII.2.***	40% (for **R-1** use or occupancy only), 30% (for **R-2** use or occupancy only) and 30% (for other residential uses or occupancy); and 50% (for all classes of institutional uses or occupancy)	40% (for all classes of cultural use or occupancy) and 50% (for **all** classes of transportat-ion/ utility use or occupancy)	20%	* 25%** (for **R-2**) 20%*** (for other residential) 40%**** (for **all** institutional)	30% # (for **all** cultural) 40% ## (for **all** transportat-ion/ utility/ services)	15%
Inside Lot otherwise referred to as a Regular Lot (Non - corner or single frontage lot); see ***Figure VIII.3.***	50% (for R-1 use or occupancy only), 40% (for R-2 use or occupancy only) and 30% (for other residential uses or occupancy); and 50% (for all classes of institutional uses or occupancy)	40% (for all classes of cultural use or occupancy) and 50% (for all classes of transport-ation/utility use or occupancy)	25%	* 30%** (for R-2) 20%*** (for other residential) 40%**** (for all institutional)	30% # (for all cultural) 40% ## (for all transportation / utility/ services)	15%

Corner Lot+ or Through Lot; see ***Figures VIII.4. and VIII.5***. +Note: For corner lots, the largest setback requirement shall apply to the two (2) sides serviced by the RROW.	30% (for R-1 and all other residential uses or occupancy); and 40% (for all classes of institutional uses or occupancy)	35% (for all classes of cultural use or occupancy) and 40% (for all classes of transport-ation/ utility use or occupancy)	20%	* 25%** (for R-2) 20%*** (for other residential) 30%**** (for all institutional)	30% # (for all cultural) 30% ## (for all transportation / utility/ services)	10%
End Lots bounded on two (2) or more sides by the property line of the subdivision or by public open spaces such as easements of lake/ sea-shores, rivers, esteros, etc. and accessible only through one (1) side of the lot; see ***Figure VIII.8.***	40% (for **R-1** use or occupancy only), 30% (for **R-2** use or occupancy only) and 30% (for other residential uses or occupancy) and 50% (for all classes of institutional uses or occupancy)	40% (for **all** classes of cultural use or occupancy) and 50% (for **all** classes of transportat-ion/utility use or occupancy)	20%	* 25%** (for **R-2**) 20%*** (for other residential) 40%**** (for **all** institutional)	30% # (for **all** cultural) 40% ## (for **all** transportation /utility /services)	15%

Corner-Through Lots or Corner Lots+ abutting three (3) or more public open spaces such as streets, alleys, ease-ment of lake/sea-shores, rivers, esteros, etc.; see ***Figures VIII.6 . and VIII.7.*** +Note: For corner lots, the largest setback requirement shall apply to the two (2) sides serviced by the RROW.	30% (for **R-1** and all other residential and commercial uses or occupancy) and 40% (for **all** classes of institutional uses or occupancy)	35% (for **all** classes of cultural use or occupancy) and 40% (for **all** classes of transportat-ion/utility use or occupancy)	10%	* 25%** (for R-2) 20%*** (for other residential and commercial) 30%**** (for all institutional)	30% # (for **all** cultural) 30% ## (for **all** transportat-ion/utility/ services)	5%

Notes:

* *with <u>absolutely no firewalls/abutments allowed</u> for R-1 use.*

** *with firewall/abutment allowed on <u>only one (1) side property line</u> and absolutely <u>no firewall/abutment at front and rear property lines</u> for R-2 use.*

*** *with firewalls/ abutments <u>allowed on two (2) side property lines only or on one (1) side property line and the rear property line</u> and absolutely <u>no firewall/abutment at front property lines</u> for R-3 and R-5 uses; and with firewalls/ abutments <u>allowed on two (2) side property lines only</u> and absolutely <u>no firewall/abutment at the front and rear property lines</u> for R-4 use.*

**** *with firewalls/abutments for all classes of institutional uses.*

\# *with firewall/abutment allowed on <u>only one (1) side</u> for all classes of cultural uses.*

\## *with firewalls/abutments <u>allowed on two (2) sides only or on one (1) side and rear boundary</u> for all classes of transportation/utility uses.*

\+ *Refer to Rule VIII - Figures VIII.2. through VIII.8. for lot type/location.*

++ *Refer to Rule VII for occupancy grouping.*

Table VIII.G.7. **Suggested Minimum Lot Sizes, Lot Dimensions and Types by Use or Occupancy**

Use or Occupancy (preferably based on Duly-Approved Local Zoning Ordinance)	Lot Location/Type				
	Interior (or Rear) Lot (See **Rule VIII-*Figure VIII.2.***)	**Inside (or Regular) Lot** (See **Rule VIII-*Figure VIII.3.***)	**Corner Lot or Through Lot** (See **Rule VIII-*Figures VIII.4.& VIII.5.***)	**End Lot** (See **Rule VIII-*Figure VIII.8.***)	**Corner-Through Lot or Corner Lot Abutting 3 or More Streets, etc.** Rivers, etc. (See **Rule VIII-*Figs. VIII.6. & VIII.7.***)
Residential 1 (**R-1**)	301.00 sq. meters 21.50 meters wide *(w)* x 14.00 meters deep *(d)*	301.00 sq. meters 14.00 meters *(w)* x 21.50 meters *(d)*	365.00 sq. meters 17.00 meters *(w)* x 21.50 meters *(d)*	548.00 sq. meters 25.50 meters *(w)* x 21.50 meters *(d)*	365.00 sq. meters 17.00 meters *(w)* x 21.50 meters*(d)*
Basic Residential 2 (**R-2**) Medium Density Housing (single family dwelling unit with a **BHL** of 10.00 meters)	**Not** Allowed	80.00 sq. meters 8.00 meters *(w)* x 10.00 meters *(d)*	96.00 sq. meters 9.60 meters *(w)* x 10.00 meters *(d)*	140.00 sq. meters 14.00 meters *(w)* x 10.00 meters *(d)*	96.00 sq. meters 9.60 meters *(w)* x 10.00 meters *(d)*
Maximum **R-2** Medium Density Housing (multiple family dwelling units within one building/ structure with a **BHL** of 15.00 meters)	**Not** Allowed	192.00 sq. meters 12.00 meters *(w)* x 16.00 meters *(d)*	261.00 sq. meters 14.50 meters *(w)* x 18.00 meters *(d)*	378.00 sq. meters 21.00 meters *(w)* x 18.00 meters *(d)*	261.00 sq. meters 14.50 meters *(w)* x 18.00 meters *(d)*

Basic Residential 3 (**R-3**) High Density Housing (single family dwelling unit with a **BHL** of 10.00 meters)	**Not** Allowed	50.00 sq. meters 4.00 meters *(w)* x 12.50 meters *(d)*	75.00 sq. meters 6.00 meters *(w)* x 12.50 meters*(d)*	200.00 sq. meters 16.00 meters *(w)* x 12.50 meters *(d)*	75.00 sq. meters 6.00 meters *(w)* x 12.50 meters *(d)*
Maximum R-3 High Density Housing (multiple Family dwelling units within one building/ structure with a **BHL** of 36.00 m)	Not Allowed	400.00 sq. meters 16.00 meters (w) x 25.00 meters (d)	475.00 sq. meters 19.00 meters (w) x 25.00 meters (d)	700.00 sq. meters 28.00 meters (w) x 25.00 meters (d)	475.00 sq. meters 19.00 meters (w) x 25.00 meters (d)
Residential 4 (**R-4**) Individual Townhouse Lots	**Not** Allowed	96.00 sq. meters 8.00 meters (w) x 12.00 meters (d)	120.00 sq. meters 10.00 meters (w) x 12.00 meters (d)	180.00 sq meters 15.00 meters (w) x 12.00 meters (d)	120.00 sq. meters 10.00 meters (w) x 12.00 meters (d)
Residential 5 (**R-5**)	**Not** Allowed	500.00 sq. meters 18.50 meters (w) x 27.00 meters (d)	540.00 sq. meters 20.00 meters (w) x 27.00 meters (d)	945.00 sq. meters 35.00 meters (w) x 27.00 meters (d)	540.00 sq. meters 20.00 meters (w) x 27.00 meters (d)
Commercial 1 (**Com-1**)	**Not** Allowed	204.00 sq. meters 12.00 meters (w) x 17.00 meters (d)	238.00 sq. meters 14.00 meters (w) x 17.00 meters (d)	**Not** Allowed	238.00 sq. meters 14.00 meters (w) x 17.00 meters (d)
Commercial 2 (**Com-2**)	**Not** Allowed	301.00 sq. meters 14.00 meters (w) x 21.50 meters (d)	365.00 sq. meters 17.00 meters (w) x 21.50 meters (d)	**Not** Allowed	365.00 sq. meters 17.00 meters (w) x 21.50 meters (d)
Commercial 3* (**Com-3**)	**Not** Allowed	600.00 sq. meters 20.00 meters (w) x 30.00 meters (d)	813.00 sq. meters 25.00 meters (w) x 32.50 meters (d)	**Not** Allowed	813.00 sq. meters 25.00 meters (w) x 32.50 meters (d)

Note:

* *Suggested minimum lot sizes, lot dimensions, types and restrictions for Commercial 3 (C-3) lots may also apply to Industrial (I), General Institutional (GI) and Cultural (C) Uses or Occupancies.*

F. BASEMENTS

1. Maximum Configuration of Basement Levels

   While basements may be developed for medium to very high density residential, commercial, institutional and mixed-use developments, its planning, design and construction shall observe the following limitations:

   a. The **minimum** road right-of-way (RROW) width that services the lot on which the basement can be constructed should be at least 10.00 meters wide;

   b. For basements to be allowed, the prescribed setbacks and yards must be satisfied for the building/structure above grade inasmuch as the very same setbacks shall apply below grade to determine the maximum depth or width of the basement level;

   c. If the Code prescriptions for introducing natural light and ventilation into all basement levels are first satisfied (refer to ***Fig. VIII.G.23.***), the maximum depth of the basement can then be made equal to one-half of the height of the building above grade; if the prescriptions for natural lighting and ventilation are satisfied, the basement depth can therefore be as much as one-third of the combined height of the building to be constructed above grade and below grade;

   d. The center portion of all basement levels shall be reserved for the satisfaction of the basement level may extend by a minimum clear distance of 1.40 meters from the outermost face of the building (**OFB**) at grade level;

   e. The **OFB** at the second and lower basement levels shall follow the line of the **OFB** at grade level; and

   f. All drainage structures below grade shall not exceed the **OFB** below grade.

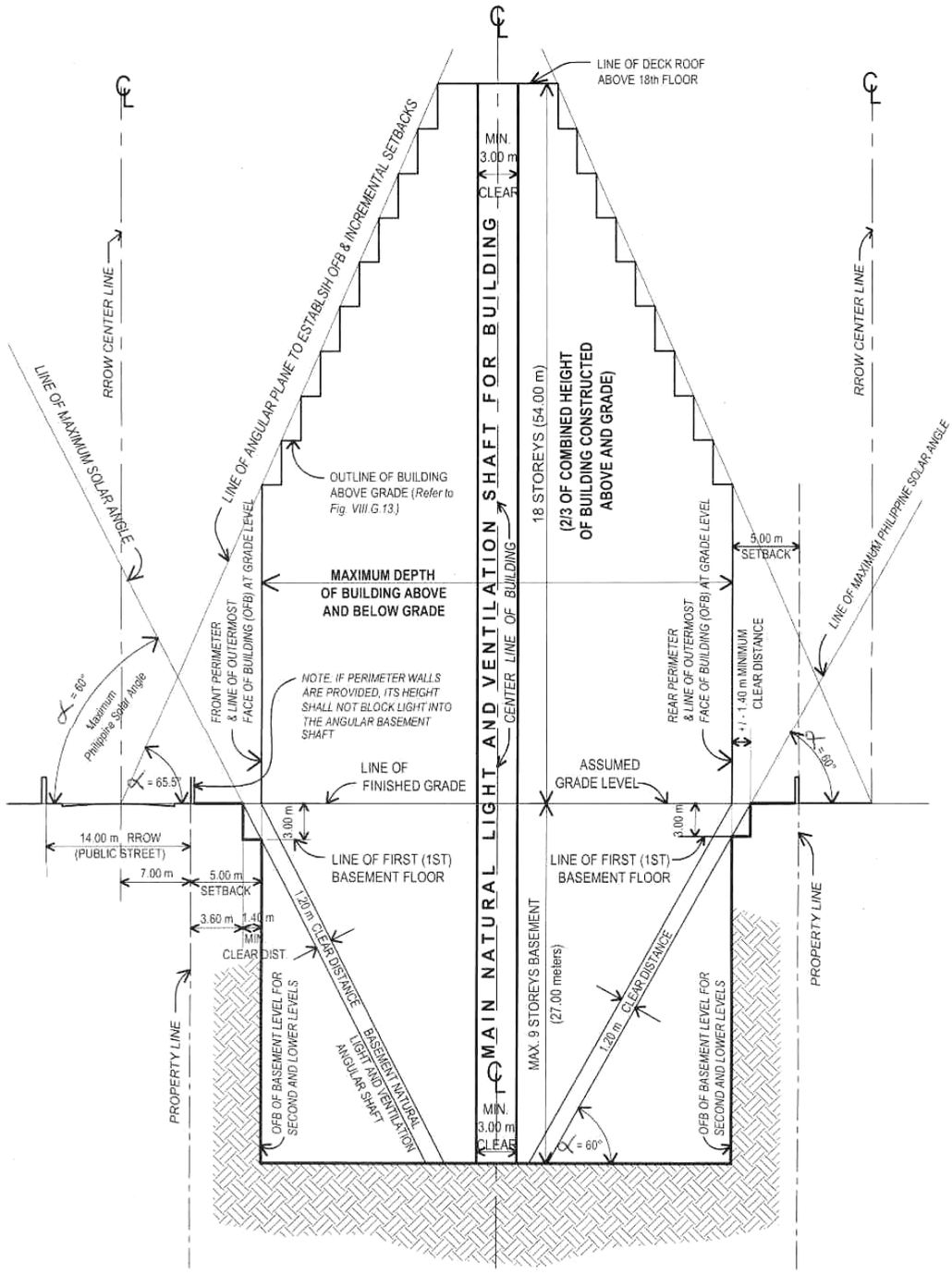
2. Minimum Provisions for Natural Lighting and Ventilation at Basement Levels

   If basements are to be developed, the following minimum provisions for natural light and ventilation shall be satisfied:

   a. A primary or main natural light and ventilation shaft (vertical) with a clear distance of at least 3.00 meters shall be located at the center of the building and shall traverse the entire combined height of the building above and below grade; (refer to ***Fig. VIII.G.23***)

   b. Secondary or support natural light and ventilation shaft/s (angular) with a clear distance of at least 1.20 meters shall emanate from the front and rear perimeters of the building and shall traverse the entire depth of the basement; the angular shaft/s shall be at an angle of 60º from the horizontal, consistent with the **maximum** Philippine solar angle; separate angular shafts emanating from the side perimeters of the building are encouraged; and

   c. Both the vertical and angular shafts shall only be used for natural air and light intake and shall not be used for any form of exhaust or air exchange to keep the temperature inside the shafts at a minimum.



MAXIMUM BASEMENT CONFIGURATION AND MINIMUM NATURAL VENTILATION PROVISIONS FOR BASEMENT CONSTRUCTION

FOR A C-3 BUILDING ALONG 14.00 m RROW

Figure VIII.G.23.

Annotation: The diagonal light shafts through the basement levels consist of imaginary lines of available natural light i.e. not an actual diagonal light shaft. The diagonal lines partly represent natural light-connected grated openings on the basement floors.

G. DESIGN OF PUBLIC BUILDINGS/STRUCTURES

1. General

   a. Public buildings/structures are permanent edifices owned by the government, whether national or local, its agencies, including government-owned and/or controlled corporations.

   b. Design of public buildings/structures shall conform to the applicable provisions of the preceding rules and regulations. Aside from being logically functional and structurally sound, should promote, enhance and express the aesthetic presentability, customs and traditions, socio-economic values environmental quality and cultural heritage of the region concerned towards evolving a distinct Filipino Architecture.

   c. The architectural character of public buildings/structures must fully express the nature of their function, use or occupancy and should reflect their identity as public buildings/structures compatible with their total macro and microenvironment.

   d. Public buildings/structures should be designed for permanence but with maximized flexibility to allow for future adjustments in their uses/occupancies.

   e. Use of indigenous and/or locally manufactured/produced materials such as marble, stone, adobe, clay tiles, wood, coco wood, *kapis* shells, should be maximized unless their production or usage are banned or regulated by the government to promote the efforts to conserve natural resources.

   f. Use of natural light and ventilation by means of proper orientation, cross ventilation, convection, sun control devices and the like should be maximized.

   g. Choice of finishes should aim to minimize maintenance costs.

   h. The architectural plan and design must basically reflect the functional manner or spatial utilization and/or the evolving Filipino, Asian or International usage of spaces that need to be projected if required or used, more than just attention to pure forms/images.

   i. Only the use of good to high quality materials, labor, technologies and construction methods within the approved budget, must be specified by its planners and designers to ensure permanence, long continued use and low maintenance cost of public buildings or structures.

   j. Plans and designs of all public buildings must fully comply with all of the planning and design requirements under the **Code** and this **IRR** including the Fire Code of the Philippines (**PD No. 1185**) and the Accessibility Law (**BP Blg. 344**).

   k. Strictly consider proper landscaping analysis and design not only for aesthetics but more so for the prevention of erosion of its site and immediate vicinity, and for ecological balance.

   l. These requirements are not intended to limit the creativity of the designer nor preclude the use of advanced or innovative technology particularly in instances wherein mandated compliance under this Guideline shall present a major difficulty in or hamper the proper execution of the plan, design or architectural concept.

2. Site Selection

   a. Where a project site is yet to be selected, the potential site must be compatible with the project usage. The site should be accessible, and near power, water, sewerage, drainage as well as transportation, communication and solid waste management system for practical and economic considerations.

   b. Site analysis should show an accurate and thorough understanding of the site. It should include, but not limited to, consideration of topography, point of access, existing buildings/structures/utilities/services, trees, soil characteristics, existing and approved land uses, views and vulnerabilities to flooding, erosion, seismic activity or other threats.

   c. The site must be properly and completely described, clearly defining its technical boundaries, showing access thereto such as highway, road or alley and indicating easements, encroachments, approved building lines, proposed road widening, existing buildings/structures, utilities/services and trees. For site on rolling grounds or steep slope, its contour lines must be shown at convenient intervals.

3. Site Development

   a. *Location and Orientation* - Locate and orient the buildings to maximize the use of natural ventilation and lighting and minimize energy consumption within the constraints of the functional requirements, the topography and site configuration. North-south exposure of buildings has the advantage of maximizing the cooling effect of prevailing winds coming from the southeasterly and southwesterly directions. Such exposures minimize the effect of afternoon solar heat at the same time.

   b. *Site Drainage* - Drainage is a basic site design consideration and must be done in conjunction with siting and orientation of buildings, location of parking lots and roads, consideration of topography and compliance with functional site requirements. Parking lots, roads and walks must be graded to assure positive drainage for each major site element and must be coordinated into a total drainage system. Existing drainage ways, if any, should be utilized to retain the original character of the site and to avoid unnecessary earthwork.

   c. *Grading Design* - Balance the cut and fill for the entire site as closely as possible to eliminate the need for hauling earth on or off the site. If topography for areas required for parking, roadways and other site features require cut and fill, selection of finished elevations for backfilling of the entire site should be well studied and appropriate.

   d. *Vehicular and Pedestrian Access and Circulation* - Access and circulation patterns to and within the site must be studied in the process of site planning. Easy and direct access and smooth circulation should be provided for vehicles and pedestrians including for disabled persons.

   e. *Site Utilities and Services* - Provide adequate underground utilities and services such as concrete or masonry trench with retractable covers for maintenance and avoid diggings of new roads. The trench alignments shall be coordinated with paving of roads and landscape, including future extensions, to avoid conflicts with these site elements. Provide most economical run, and minimize the possibility of utility relocation. Coordinate the location of underground site utilities and services such as power, water supply, sewerage communications and drainage systems to reduce the possibility of utility/service crossing and contamination.

(emphases, underscoring and annotations supplied)

Rule IX follows